

Alpena Schools

Student Handbook

2026-2027



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4.1—RESIDENCE REQUIREMENTS

Definitions:

"In loco parentis" means relating to the responsibility to undertake the care and control of another person in the absence of:

1. Supervision by the person's parent or legal guardian; and
2. Formal legal approval.

"Reside" means to be physically present and to maintain a permanent place of abode for an average of no fewer than four (4) calendar days and nights per week for a primary purpose other than school attendance.

"Resident" means a student whose parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis reside in the school district.

"Residential address" means the physical location where the student's parents, legal guardians, persons having legal, lawful control of the student under order of a court, or persons standing in loco parentis reside. A student may use the residential address of a parent, legal guardian, person having lawful control of the student, or person standing in loco parentis only if the student resides at the same residential address and if the guardianship or other legal authority is not granted solely for educational needs or school attendance purposes.

The schools of the District shall be open and free through the completion of the secondary program to all persons between the ages of five (5) and twenty one (21) years whose parents, legal guardians, persons having lawful control of the student, or person standing in loco parentis reside within the District and to all persons between those ages who have been legally transferred to the District for educational purposes.

Any person eighteen (18) years of age or older may establish a residence separate and apart from his or her parent, legal guardian, person having lawful control of the student, or a person standing in loco parentis for school attendance purposes.

In order for a person under the age of eighteen (18) years to establish a residence for the purpose of attending the District's schools separate and apart from his or her parent, legal guardian, person having lawful control of the student, or a person standing in loco parentis, the student is required to reside in the District for a primary purpose other than that of school attendance; however, a student previously enrolled in the district whose parents move the student into another district or who is placed under the legal guardianship of a noncustodial parent living outside the district by a custodial parent on active military duty may continue to attend district schools. A foster child who was previously enrolled in a District school and who has had a change in placement to a residence outside the District, may continue to remain enrolled in his/her current school unless the presiding court rules otherwise.

Under instances prescribed in A.C.A. § 6-18-203, a child or ward of an employee of the district or of the education co-op to which the district belongs may enroll in the district even though the employee and the employee's child or ward reside outside the district.

Children whose parent or legal guardian relocates within the state due to a mobilization, deployment, or available military housing while on active duty in or serving in the reserve component of a branch of the United States Armed Forces or National Guard may continue attending school in the school district the children were attending prior to the

relocation or attend school in the school district where the children have relocated. A child may complete all remaining school years at the enrolled school district regardless of mobilization, deployment, or military status of the parent or guardian.

Cross References: Policy 4.40—HOMELESS STUDENTS
Policy 4.52—STUDENTS WHO ARE FOSTER CHILDREN

Legal References: A.C.A. § 6-4-302
A.C.A. § 6-18-202
A.C.A. § 6-18-203
A.C.A. § 6-28-108
A.C.A. § 9-28-113

Last Revised: 5/22/23

4.2—ENTRANCE REQUIREMENTS

To enroll in a school in the District, the child must:

- A. Be a resident of the District as defined in District policy (4.1—RESIDENCE REQUIREMENTS);
- B. Meet the criteria outlined in Policy:
 - § 4.40—HOMELESS STUDENTS; or
 - § 4.52—STUDENTS WHO ARE FOSTER CHILDREN;
- C. Be accepted as a transfer student under the provisions of policy 4.4; or
- D. Participate under a school choice option and submit the required paperwork as required by the choice option under Policy 4.5.

A student may enter kindergarten if the student:

- Meets one of the requirements for school attendance of A through D above; and
- Falls under one of the following:
 - o Will attain the age of five (5) on or before August 1 of the year in which the student is seeking initial enrollment; or
 - o Has been enrolled in a state-accredited or state-approved kindergarten program in another state for at least sixty (60) days and:
 - § Will become five (5) years old during the year in which the student is enrolled in kindergarten; and
 - § Submits a written request for enrollment to the District; or
 - o Was enrolled in a state-accredited or state-approved kindergarten program in another state or in a kindergarten program equivalent in another country and:
 - § Becomes a resident of this state as a direct result of active military orders or a court-ordered change of custody;
 - § Will become five (5) years of age during the year in which the student is enrolled in kindergarten; and
 - § Submits a written request for enrollment to the District.

Any child who will be six (6) years of age on or before October 1 of the school year of enrollment and who has not completed a state-accredited kindergarten program shall be evaluated by the district and may be placed in the first grade if the results of the evaluation justify placement in the first grade and the child's parent or legal guardian agrees with placement in the first grade; otherwise the child shall be placed in kindergarten.

Any child may enter first grade in a District school if the child will attain six (6) years of age during the school year in which the child is seeking enrollment and the child has successfully completed a kindergarten program in a public school in Arkansas.

Any child who has been enrolled in the first grade in a state-accredited or state-approved elementary school in another state for a period of at least sixty (60) days, who will become six (6) years of age during the school year in which the student is enrolled in grade one (1), and who meets the basic residency requirements for school attendance may be enrolled in the first grade.

Students who move into the District from an accredited school shall be assigned to the same grade as they were attending in their previous school (mid-year transfers) or as they would have been assigned in their previous school. Private school students shall be evaluated by the District to determine their appropriate grade placement. Home school students enrolling or re-enrolling as a public school student shall be placed in accordance with policy 4.6—HOME SCHOOLING.

The district shall make no attempt to ascertain the immigration status, legal or illegal, of any student or the student's parent or legal guardian presenting for enrollment.¹

Prior to the child's admission to a District school:²

1. The parent, legal guardian, person having lawful control of the student, or person standing in loco parentis shall furnish the child's social security number, or if they request, the district will assign the child a nine (9) digit number designated by the Division of Elementary and Secondary education.
2. The parent, legal guardian, person having lawful control of the student, or person standing in loco parentis shall provide the district with one (1) of the following documents indicating the child's age:
 - a. A birth certificate;
 - b. A statement by the local registrar or a county recorder certifying the child's date of birth;
 - c. An attested baptismal certificate;
 - d. A passport;
 - e. An affidavit of the date and place of birth by the child's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis;
 - f. United States military identification; or
 - g. Previous school records.

3. The parent, legal guardian, person having lawful control of the student, or person standing in loco parentis shall indicate on school registration forms whether the child has been expelled from school in any other school district or is a party to an expulsion proceeding. Any person who has been expelled from any other school district shall receive a hearing before the Board at the time the student is seeking enrollment in the District. The Board reserves the right to not allow the enrollment of such students until the time of the person's expulsion has expired following the hearing before the Board.³

4. In accordance with Policy 4.57—IMMUNIZATIONS, the child shall be age appropriately immunized or have an exemption issued by the Arkansas Department of Health.

Uniformed Services Member's Children

For the purposes of this policy:

"Activated reserve components" means members of the reserve component of the uniformed services who have received a notice of intent to deploy or mobilize under Title 10 of the United States Code, Title 32 of the United States Code, or state mobilization to active duty.

"Active duty"⁴ means full-time duty status in the active, uniformed services of the United States, including without limitation members of The National Guard and Reserve on active duty orders under 10 U.S.C. chapters 1209 and 1211 or 42 U.S.C. § 204.

"Deployment" means a period of time extending from six (6) months before a member of the uniformed services' departure from their home station on military orders through six (6) months after return to the Uniformed Services member's home station.

"Dual status military technician" means a federal civilian employee who is:

- a. Employed under 5 U.S.C. § 3101 or 32 U.S.C. § 709(b);
- b. Required as a condition of employment to maintain membership in the Selected Reserve; and
- c. Assigned to a civilian position as a technician in the organizing, administering, instructing, or training of the Selected Reserve or in the maintenance and repair of supplies or equipment issued to the Selected Reserve of the United States Armed Forces.

"Eligible child" means the children of:

- Active duty members of the uniformed services;
- Members of the active and activated reserve components of the uniformed services;
- Veterans of the uniformed services who are injured in the line of duty and medically separated or retired;
- Members of the uniformed services who die on active duty or as a result of injuries sustained on active duty;
- Dual status military technicians; and

- Traditional members of the National Guard and reserve components of the armed forces who are relocating to the state for employment or to serve as a member of an Arkansas-based reserve component unit.

"Traditional member of the National Guard or federal reserves" means an active member of the Selected Reserve subject to mobilization and deployment for which the member attends monthly and annual training periods.

"Transition" means the:

- o Formal and physical process of transitioning from public school to public school; or
- o Period of time in which a student moves from a sending district to a receiving district.

"Uniformed services"⁴ means the United States Army, United States Navy, United States Air Force, United States Marine Corps, United States Space Force, United States Coast Guard, the National Oceanic and Atmospheric Administration Commissioned Officer Corps, the United States Commissioned Corps of the Public Health Services, and the state and federal reserve components of each of these bodies.

"Veteran" means an individual who served in the uniformed services and who was discharged or released from the uniformed services under conditions other than dishonorable.

The superintendent shall designate an individual as the District's military education coordinator, who shall serve as the primary point of contact for an eligible child and for the eligible child's parent, legal guardian, person having lawful control of the eligible child, or person standing in loco parentis. The individual the superintendent designates as the District's military education coordinator shall possess specialized knowledge regarding the educational needs and unique challenges faced by children of uniformed services families.⁵

An eligible child as defined in this policy shall:

1. Be allowed to continue the student's enrollment at the grade level commensurate with the student's grade level the student was in at the time of transition from the student's previous school, regardless of age;
2. Be eligible for enrollment in the next highest grade level, regardless of age if the student has satisfactorily completed the prerequisite grade level in the student's previous school;
3. Enter the District's school on the validated level from the student's previous accredited school when transferring into the District after the start of the school year;
4. Be enrolled in courses and programs the same as or similar to the ones the student was enrolled in the student's previous school to the extent that space is available. This does not prohibit the District from performing subsequent

evaluations to ensure appropriate placement and continued enrollment of the student in the courses/and/or programs;

5. Be provided services comparable to those the student with disabilities received in the student's previous school based on the student's previous Individualized Education Program (IEP). This does not preclude the District school from performing subsequent evaluations to ensure appropriate placement of the student;

6. Make reasonable accommodations and modifications to address the needs of an incoming student with disabilities, subject to an existing 504 or Title II Plan, necessary to provide the student with equal access to education. This does not preclude the District school from performing subsequent evaluations to ensure appropriate placement of the student;

7. Be enrolled by an individual who has been given the special power of attorney for the student's guardianship. The individual shall have the power to take all other actions requiring parental participation and/or consent;

8. Be eligible to continue attending District schools if the student has been placed under the legal guardianship of a noncustodial parent living outside the district by a custodial parent on active military duty.

Following the receipt of advanced notice and an enrollment application of an eligible student from a military family, the District shall:

- Provisionally enroll, provide placement for, and enter academic course requests on behalf of the incoming student based on the student's education record provided by the student's family or the sending district;
- Provide the uniformed services family with information regarding:⁶
 - a. Career-ready pathways and other academic or education programs offered;
 - b. Required academic courses for each curriculum and elective course options;
 - c. School and community-sponsored extracurricular activities, including without limitation individual and team sports, clubs, junior reserve officer training corps opportunities, and Purple Star School program ambassadors; and
 - d. Contact information for the designated military family education coordinator and the Purple Star School program military family education facilitator, if applicable; and
 - e. Other relevant information regarding the District.

In the event that official copies of an eligible child's education records are not available at the time the eligible child is transferring, then the District shall:

- o Pre-register and place an eligible child based on the eligible child's unofficial education records pending receipt of the eligible child's official records; and
- o Request the eligible child's official education records from the sending district.

The District shall not deny the enrollment of a Uniformed Service Member dependent unless the District has reached the maximum student-to-teacher ratio allowed under federal law; state law; the Standards for Accreditation for Public Schools and School Districts; state rules; or other applicable federal regulations, and the District timely notifies the parent, legal guardian, person having lawful control of the student, or person standing in loco parentis of the lack of capacity.

The District shall notify a prospective student's family in writing regarding whether the student's enrollment has been accepted or rejected within fifteen (15) calendar days of receiving the student's enrollment application and supporting documentation.

To facilitate a smooth transition between the student's previous coursework and the curriculum best suited to ensure educational success in the student's new school, the District may enroll an inbound transitioning eligible student in digital coursework, if available, at the request of the military family.

The District may request a waiver from the State Board as necessary to accommodate an eligible student.

International Exchange Students

"Host family" means the individual or family with whom an international exchange student is placed by an international student exchange visitor placement organization under the International Student Exchange Visitor Placement Organization Registration Act, § 6-18-1701 et seq..

"International exchange student" means a student who is placed with a host family by an international student exchange visitor placement organization under the International Student Exchange Visitor Placement Organization Registration Act, § 6-18-1701 et seq..

Before an international exchange student may attend a District school, the District requires all international student exchange visitor placement organizations that are placing international exchange students within the District to:

- Be certified by the Council on Standards for International Educational Travel;
- Provide documented proof of the international exchange student's English proficiency; and
- Notify the District at least three (3) weeks before the beginning of the academic semester the international exchange student plans to enroll in the District.

The District shall admit for enrollment and attendance an international exchange student who has been placed with a host family who resides within the District boundaries. The international exchange student shall attend the school in the District based on the attendance zone where the host family resides.⁷

Upon an international exchange student's arrival, the international exchange student may be required to submit to quarantine to prevent the spread of infectious diseases as may be necessary, which shall not exceed seven (7) days unless otherwise recommended by the Arkansas Department of Health or the Centers for Disease Control and Prevention.

International exchange students are expected to follow the District handbook and student code of conduct as the District has the authority to expel a student for violations of the school district's written student discipline policies or if the international exchange student presents a danger to the District's students or employees.

Statewide assessment results achieved by an international exchange student enrolled in the District shall be included in the District's results on the statewide assessments.⁸

The District shall provide English-language services to international exchange students as necessary.⁹

Cross References: 4.1—RESIDENCE REQUIREMENTS

4.4—STUDENT TRANSFERS

4.5—SCHOOL CHOICE

4.6—HOME SCHOOLING

4.34—COMMUNICABLE DISEASES AND PARASITES

4.40—HOMELESS STUDENTS

4.52—STUDENTS WHO ARE FOSTER CHILDREN

4.57—IMMUNIZATIONS

Legal References: A.C.A. § 6-4-302

A.C.A. § 6-15-504

A.C.A. § 6-18-201 (c)

A.C.A. § 6-18-207

A.C.A. § 6-18-208

A.C.A. § 6-18-235

A.C.A. § 6-18-510

A.C.A. § 6-18-702

A.C.A. § 6-28-101 et seq.

A.C.A. § 9-28-113

DESE Rules Governing Student Discipline and School Safety

Plyler v Doe 457 US 202,221 (1982)

Date Adopted: 7/17/25

Last Revised: 9/1/26

4.3—COMPULSORY ATTENDANCE REQUIREMENTS

Every parent, legal guardian, person having lawful control of the child, or person standing in loco parentis of any child age five (5) through seventeen (17) years on or before August 1 of that year who resides, as defined by policy (4.1—RESIDENCE REQUIREMENTS), within the District shall enroll the child and ensure the attendance of the child at a District school with the following exceptions:

1. The child is enrolled in private or parochial school.
2. The child is being home-schooled and the conditions of policy (4.6—HOME SCHOOLING) have been met.
3. The child will not be age six (6) on or before August 1 of that particular school year and the parent, legal guardian, person having lawful control of the child, or person standing in loco parentis of the child elects not to have the child attend kindergarten. A kindergarten waiver form prescribed by regulation of the Division of Elementary and Secondary Education must be signed and on file with the District administrative office.
4. The child has received a high school diploma, G.E.D., or its equivalent as determined by the State Board of Education.
5. The child is age sixteen (16) or above and is enrolled in a post-secondary vocational-technical institution, a community college, or a two-year or four-year institution of higher education.
6. The child is age sixteen (16) or seventeen (17) and has met the requirements to enroll in an adult education program as defined by A.C.A. § 6-18-201 (b).

Legal References: A.C.A. § 6-18-201

A.C.A. § 6-18-207

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

4.3b PERFECT ATTENDANCE ELEMENTARY

In order for a student to receive a perfect attendance award at the end of the school year the student must not have missed more than one day of school counting tardy and early out accumulations.

Last Revised: 6/06/2018

4.4—STUDENT TRANSFERS

Transfer applications received by the District shall be placed on the Board's next meeting agenda. At least five (5) days before the meeting where the transfer application appears on the agenda, the superintendent shall notify the Board regarding:

- All transfer applications received since the last meeting; and

- The superintendent's recommendation concerning each transfer application.

Each transfer application shall be considered individually and receive a separate vote by the Board. The parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to a student who submits a transfer application shall be given at least five (5) minutes to present the student's case for a transfer to the Board.

The Board may reject a nonresident's application for admission if its acceptance would necessitate the addition of staff or classrooms; exceed the capacity of a program, class, grade level, or school building; or cause the District to provide educational services not currently provided in the affected school.⁴ The District shall reject applications that would cause it to be out of compliance with applicable laws and regulations regarding desegregation.

If the superintendent intends to recommend the Board deny the transfer application, the superintendent shall provide a written explanation of the reasons for the recommendation to the Board and the parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student.

The parent, legal guardian, person having lawful control of a student, or person standing in loco parentis to the student who submitted a transfer application that was rejected may appeal the decision of the Board to the State Board of Education.

Any student transferring from a school accredited by the Division of Elementary and Secondary Education (DESE) to a school in this district shall be placed into the same grade the student would have been in had the student remained at the former school. Any grades, course credits, and/or promotions received by a student while enrolled in the Division of Youth Services system of education shall be considered transferable in the same manner as those grades, course credits, and promotions from other accredited Arkansas public educational entities.

Any student transferring from a school that is not accredited by the DESE to a District school shall be evaluated by District staff, including a review of a student's transcript, grades, course credits, and test scores, to determine the student's appropriate grade placement. Any grades, course credits, and/or promotions received by a student while enrolled in the Division of Youth Services system of education shall be considered transferable in the same manner as those grades, course credits, and promotions from other accredited Arkansas public educational entities. A student transferring from home school will be placed in accordance with Policy 4.6—HOME SCHOOLING.

Any person who has been expelled from any other school district shall receive a hearing before the Board at the time the student is seeking enrollment in the District. The Board reserves the right to not allow the enrollment of such students until the time of the person's expulsion has expired following the hearing before the Board.⁵

Except as otherwise required or permitted by law,⁶ the responsibility for transportation of any nonresident student admitted to a school in this District shall be borne by the student or the student's parents. The District and the resident district may enter into a written agreement with the student or student's parents to provide transportation to or from the District, or both.

Cross Reference: 4.6—HOME SCHOOLING

Legal References: A.C.A. § 6-15-504
A.C.A. § 6-18-316
A.C.A. § 6-18-510
A.C.A. § 9-28-113(b)(4)
A.C.A. § 9-28-205
DESE Rules Governing Petitions For Student Transfers

Date Adopted: 7/17/25
Last Revised: 9/1/26

4.5—SCHOOL CHOICE

Exemption

The District is under an enforceable desegregation court order/court-approved desegregation plan¹ that explicitly limits the transfer of students between school districts and has submitted the appropriate documentation to the Division of Elementary and Secondary Education (DESE).² As a result of the desegregation order/desegregation plan¹, the District is exempt from the provisions of the Public School Choice Act of 2015 (Standard School Choice) and the Arkansas Opportunity Public School Choice Act (Opportunity School Choice). The District shall notify the superintendents of each of its geographically contiguous school districts of its exemption.³ The exemption prohibits the District from accepting any school choice applications from students wishing to transfer into or out of the District through standard School Choice or Opportunity School Choice.⁴

Definitions

“Lack of capacity” means, based on the maximum student to teacher ratio allowed under federal law; state law; the Rules Governing the Standards for Accreditation for Arkansas Public Schools and School Districts; state rules; or other applicable federal regulations, that ninety-five percent (95%) or more of the seats at the grade level in

which the student would be assigned at the nonresident school are filled on the date the school choice application is made.

"Sibling" means each of two (2) or more children having a parent in common by blood, adoption, marriage, or foster care.

Standard School Choice

Transfers into or Within the District

Capacity Determination and Public Pronouncement

The Board of Directors will annually adopt a resolution containing the capacity standards for the District. The resolution will contain the acceptance determination criteria identified by academic program, class, grade level, and individual school. The school is not obligated to add any teachers, other staff, or classrooms to accommodate choice applications. The District may only deny a Standard School Choice application if the District or school has a lack of capacity.⁵

The District shall advertise in appropriate broadcast media and either print media or on the internet to inform students and parents in the District and adjoining districts of the range of possible openings available under the School Choice program. The public pronouncements shall state the application deadline; the requirements and procedures for participation in the program; and include contact information for the primary point of contact at the District for school choice questions. Such pronouncements shall be made no later than January 1.⁶

Application Process

The student's parent shall submit a school choice application on a form approved by DESE to:

- This District and the student's resident district for students transferring into the District; or
- Only this District for students transferring to another school within the District.

Except for students who are transferring under Uniformed Service Member Dependent School Choice, the transfer application must be postmarked, emailed, or hand delivered between January 1 and June 1. The District shall date and time stamp all applications the District receives as both the resident and nonresident district as they are received in the District's central office. Except for applications from students who

are transferring under Uniformed Service Member Dependent School Choice, applications postmarked, emailed, or hand delivered on or after June 2 will not be accepted. Statutorily, preference is required to be given to siblings of students who are already enrolled in the District. Therefore, siblings whose applications fit the capacity standards approved by the Board of Directors may be approved ahead of an otherwise qualified non-sibling applicant who submitted an earlier application as identified by the application's date and time stamp.

Except for students who are transferring under Uniformed Service Member Dependent School Choice, no earlier than January 1 of each year, the Superintendent will consider all properly submitted applications for School Choice. By no later than the fifteenth (15th) calendar day following the receipt of an application, the Superintendent shall notify the following, in writing, of the decision to accept or reject the application-

- o For transfers within the District, the student's parent; or
- o For transfers into the District, the student's parent and the student's resident district.

Accepted Applications

Applications which fit within the District's stated capacity standards shall be provisionally accepted in writing. A student's acceptance shall be effective on the earlier of:

1. The day the District provides notification to the student of the student's acceptance; or
2. The day the State Board grants an appeal of the student's application.

The written notice of acceptance shall inform the student that the student has ten (10) school days⁷ from when the notice is received to either:

- A. Enroll in the district or in the other District school; or
- B. Inform the district that the student intends to enroll in the district or the other District school at the start of the next school year.

The acceptance shall be null and void if the student fails to enroll within the ten (10) school day period or fails to inform the district within the ten (10) school day period of the student's intent to transfer at the start of the next school year.⁷

A student, whose application has been accepted and who has enrolled in the District or in another District school, is eligible to continue enrollment until completing the student's secondary education. Continued enrollment is conditioned upon the student meeting applicable statutory and District policy requirements. Any student who has been accepted under choice and who fails to initially enroll under the timelines and provisions provided in this policy; chooses to return to the student's resident district or assigned school; or enrolls in a home school or private school voids the transfer and must reapply if, in the future, the student seeks another school choice transfer. A subsequent transfer application will be subject to the capacity standards applicable to the year in which the application is considered by the District.

A present or future sibling of a student who continues enrollment in this District may enroll in the District by submitting a Standard School Choice application. Applications of siblings of presently enrolled choice students are subject to the provisions of this policy including the capacity standards applicable to the year in which the sibling's application is considered by the District. A sibling who enrolls in the District through Standard School Choice is eligible to remain in the District until completion of the student's secondary education.

Students whose applications have been accepted and who have enrolled in the district or another District school shall not be discriminated against on the basis of gender, national origin, race, ethnicity, religion, disability, or residential address.

Rejected Applications

The District may reject an application for a transfer into or within the District under Standard School Choice due to a lack of capacity. The District shall use the date and time stamp the District placed on a student's application to determine when the District has reached capacity. A student's application shall be used to determine capacity regardless of whether the student intends to transfer immediately or at the start of the next school year

The decision to accept or reject an application shall not be based on the student's previous academic achievement; athletic or other extracurricular ability; English proficiency level; or previous disciplinary proceedings other than a current expulsion.⁸

An application may be provisionally rejected if it is for an opening that was included in the District's capacity resolution, but was provisionally filled by an earlier applicant. A provisionally rejected applicant could be provisionally approved and would have to

meet the acceptance requirements to be eligible to enroll in the District or another district school if:

- A provisionally approved applicant subsequently does not enroll in the District;
- A provisionally approved applicant subsequently does not enroll in the District school the District student was seeking to transfer to; or
- A District student submits a school choice application to transfer to another district or another school within the District.

The superintendent shall notify the previously provisionally rejected student within fifteen (15) days of the change in status and shall provide notice of all final rejections by July 1.

Rejection of applications shall be in writing and shall state the reason(s) for the rejection. Unless the student's application was rejected due to the application not being timely received by the student's resident district only for transfers within the District or both the resident and nonresident districts for transfers into the District or another district, a student whose application was rejected may request a hearing before the State Board of Education to reconsider the application. The request for a hearing must be submitted in writing to the State Board within ten (10) days of receiving the rejection letter from the District.

Transfers Out of the District

All Standard School Choice applications for transfers out of the District shall be granted.

Annual Reporting

The District shall report annually to the Secretary of the Department of Education:

- o The number of transfer applications received;
- o The number of applications accepted;
- o The number of applications rejected; and
- o The reason(s) for each rejection.

Facilities Distress School Choice Applications

There are a few exceptions from the provisions of the rest of this policy that govern choice transfers triggered by facilities distress. Any student attending a school district that has been identified as being in facilities distress may transfer under the provisions of this policy, but with the following four (4) differences:

- The receiving district cannot be in facilities distress;
- The transfer is only available for the duration of the time the student's resident district remains in facilities distress;
- The student is not required to meet the June 1 application deadline; and
- The student's resident district is responsible for the cost of transporting the student to this District's school.

Opportunity School Choice

Transfers Into or Within the District⁹

Unless there is a lack of capacity⁵ at the District's school or the transfer conflicts with the provisions of a federal desegregation order applicable to the District, a student may transfer from the student's assigned school to another school in the District⁹ or from the student's resident district into the District if:

- Either:
 - o The student's resident district has been classified by the state board as in need of Level 5 — intensive support; or
 - o The student's assigned school has a rating of "F"; and
- Except for students who are transferring under Uniformed Service Member Dependents School Choice, the student's parent, guardian, or the student if the student is over eighteen (18) years of age has submitted an application of the student's request to transfer by no earlier than January 1 and no later than June 1 of the school year before the school year the student intends to transfer to the District for students transferring within the District or both the sending and receiving school districts for students that are transferring into the District.

Except for students who are transferring under Uniformed Service Members Dependent School Choice or seeking to transfer within the District, the Superintendent shall notify in writing the parent or guardian, or the student if the student is over eighteen (18) years of age, and the student's resident district whether the Opportunity School

Choice application has been accepted or rejected by no later than July 1 of the school year the student is seeking to enroll. If the student is seeking a transfer within the District, the Superintendent shall notify in writing the parent or guardian, or the student if the student is over eighteen (18) years of age, whether the Opportunity School Choice application has been accepted or rejected within fifteen (15) days from receipt of the student's application. The notification shall be sent via First-Class Mail to the address on the application.

If the application is accepted, the notification letter shall state the deadline by which the student must enroll in the receiving school or the transfer will be null and void.

If the District rejects the application, the District shall state in the notification letter the specific reasons for the rejection.¹⁰ Unless the student's application was rejected due to the application not being timely received by the District for students transferring within the District or both the resident and nonresident districts for students that are transferring into the District, a parent or guardian, or the student if the student is over eighteen (18) years of age, may appeal the District's decision to deny the application to the State Board of Education. The appeal must be in writing to the State Board of Education via hand delivery or certified mail, return receipt requested, no later than ten (10) calendar days, excluding weekends and legal holidays, after the notice of rejection was received from the District.

Except for students who are transferring under Uniformed Service Member Dependent School Choice, a student's transfer under Opportunity School choice is effective at the beginning of the next school year and the student's enrollment is irrevocable for the duration of the school year and is renewable until the student completes high school or is beyond the legal age of enrollment. This provision for continuing eligibility under Opportunity School Choice does not negate the student's right to apply for transfer to a district other than the student's assigned school or resident district under the Standard School Choice provisions of this policy.

The District may, but is not obligated to, provide transportation to and from the transferring district.¹¹

Transfers out of, or within, the District⁹

If a District school receives a rating of "F" or the District has been classified by the State Board as in need of Level 5 Intensive Support, the District shall timely notify parents, guardians, or students, if over eighteen (18) years of age, as soon as practicable after the school or district designation is made of all options available under Opportunity School Choice. The District shall offer the parent or guardian, or the student if the

student is over eighteen (18) years of age, an opportunity to submit an application to enroll the student in:

1. A school district that has not been classified by the State Board as in need of Level 5 Intensive Support; or
2. If there is more than one school within the District covering the grade level of the student seeking to transfer that does not have a rating of "F", a public school within the District that is nearest to the student's legal residence that does not have a rating of "F"; or
3. If there is not more than one school within the District covering the grade level of the student seeking to transfer that does not have a rating of "F", a public school that does not have a rating of "F" within a School district that has not been classified by the State Board as in need of Level 5 Intensive Support.

Additionally, the District shall request public service announcements to be made over the broadcast media and in the print media at such times and in such a manner as to inform parents or guardians of students in adjoining districts of the availability of the program, the application deadline, and the requirements and procedure for nonresident students to participate in the program.¹²

Uniformed Service Member Dependent School Choice

"Uniformed service member" means an active or reserve component member of the:

- United States Army, United States Navy, United States Air Force, United States Marine Corps, United States Space Force, or United States Coast Guard;
- National Oceanic and Atmospheric Administration Commissioned Officer Corps; or
- United States Commissioned Corps of the Public Health Service.

"Uniformed service veteran" means a former uniformed service member who has been discharged under conditions other than dishonorable.

A student shall be eligible for school choice under Uniformed Service Member Dependent School Choice if the student is a dependent of a:

- o Uniformed service member in full-time active-duty status;

- o Surviving spouse of a uniformed service member;
- o Reserve component uniformed service member during the period six (6) months before until six (6) months after a Title 10, Title 32, or state active duty mobilization and service; or
- o Uniformed service veteran who is returning to civilian status at the conclusion of the uniformed service veteran's active duty status.

A student's parent, legal guardian, person having lawful control of a student, or person standing in loco parentis to the student shall submit a school choice application by mail, e-mail, or in person to the student's resident district only for transfers within the District or to both the student's nonresident district and resident district. The application shall be accompanied by:

- a. A copy of the identification card of the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis that qualifies the student under Uniformed Service Member Dependent School Choice; and
- b. A copy of the official orders, assignment notification, or notice of mobilization of the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis.

The application deadline required under Standard School Choice and Opportunity School Choice shall not apply to uniformed service member dependents.

The parent, legal guardian, person having lawful control of the student, or person standing in loco parentis of the student shall be notified in writing whether the student's application has been accepted or rejected within fifteen (15) days of the receipt of the application: by:

- a. The District superintendent for students transferring within the District; or
- b. The superintendent of the nonresident district for student's transferring to a nonresident district.

A student's transfer under the Uniformed Services Member Dependent School Choice is effective immediately upon the written notification of an acceptance.

A student shall be permitted only one (1) school transfer per academic year.

The parent, legal guardian, person having lawful control of a student, or person standing in loco parentis to a student shall be responsible for transportation of the student.

Unsafe School Choice Program

Any student that becomes the victim of a violent criminal offense while in or on the grounds of a District school or who is attending a school classified by DESE as a persistently dangerous public school shall be allowed to attend a safe public school within the District.

Legal References: A.C.A. § 6-1-106

A.C.A. § 6-13-113

A.C.A. § 6-15-2915

A.C.A. § 6-18-202

A.C.A. § 6-18-213

A.C.A. § 6-18-227

A.C.A. § 6-18-233

A.C.A. § 6-18-320

A.C.A. § 6-18-510

A.C.A. § 6-18-1901 et seq.

A.C.A. § 6-21-812

DESE Rules Governing Public School Choice

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

4.6—HOMESCHOOLING

Enrollment in Home School

Parents or legal guardians desiring to provide a home school for their children shall give written notice to the Superintendent of their intent to homeschool. The notice shall be given:

1. At the beginning of each school year, but no later than August 15;
1. Five (5) school days prior to withdrawing the child (provided the student is not currently under disciplinary action for violation of any written school policy, including, but not limited to, excessive absences) and at the beginning of each school year thereafter; or
3. Within thirty (30) calendar days of the parent or legal guardian establishing residency within the district during the school year.

Written notice of the parent or legal guardian's intent to homeschool shall be delivered to the Superintendent through any of the following methods:

- Electronically, including without limitation by:
 - Use of the Division of Elementary and Secondary Education's (DESE) online system;
 - Email; or
 - Facsimile;
- By mail; or
- In person.

The notice shall include:

- a. The name, sex, date of birth, grade level, and the name and address of the school last attended, if any;
- b. The mailing address and telephone number of the home school;
- c. The name of the parent or legal guardian providing the home school;
- d. Indicate if the home-schooled student intends to participate in extracurricular activities during the school year;
- e. A statement of whether the home-schooled student plans to seek a high school equivalency diploma during the current school year;
- f. A statement that the parent or legal guardian agrees that the parent or legal guardian is responsible for the education of their children during the time the parents or legal guardians choose to home school; and
- g. A signature of the parent or legal guardian.

To aid the District in providing a free and appropriate public education to students in need of special education services, the parents or legal guardians home-schooling their children shall provide information that might indicate the need for special education services.

A student who has been temporarily issued items, resources, supplies, materials, or other property belonging to the District is eligible for enrollment in a home school during the school year after:

- The items, resources, supplies, materials, or other property belonging to the District have been returned to the District;
- The items, resources, supplies, materials, or other property belonging to the District have been paid for; or
- The semester has ended.

The superintendent or the board of directors may waive the required five (5) school day waiting period for a student's enrollment in home school during a semester if the superintendent or the board of directors is satisfied with the return of temporarily issued items, resources, supplies, materials, or other District property .

Enrollment or Re-Enrollment in Public School

A home-schooled student who wishes to enroll or re-enroll in a District school shall submit:

- A transcript listing all courses taken and semester grades from the home school;
- Score of at least the thirtieth percentile on a nationally recognized norm-referenced assessment taken in the past year; and
- A portfolio of indicators of the home-schooled student's academic progress, including without limitation:
 - Curricula used in the home school;
 - Tests taken and lessons completed by the home-schooled student; and
 - Other indicators of the home-schooled student's academic progress.

If a home-schooled student is unable to provide a nationally recognized norm-referenced score, the District may either assess the student using a nationally recognized norm-referenced assessment or waive the requirement for a nationally recognized norm-referenced assessment score.

A home-schooled student who enrolls or re-enrolls in the District will be placed at a grade level and academic course level equivalent to or higher than the home-schooled student's grade level and academic course level in the home school:

1. As indicated by the documentation submitted by the home-schooled student;
2. By mutual agreement between the public school and the home-schooled student's parent or legal guardian; or
3. If the home-schooled student fails to provide the documentation required by this policy, with the exception of the nationally recognized norm-referenced assessment score, the District may have sole authority to determine the home-schooled student's grade placement and course credits. The District will determine the home-schooled student's grade placement and course credits in the same manner the District uses when determining grade placement and course credits for students enrolling or re-enrolling in the District who attended another public or private school.

The District shall afford a home-schooled student who enrolls or re-enrolls in a public school the same rights and privileges enjoyed by the District's other students. The District shall not deny a home-schooled student who enrolls or re-enrolls in the District any of the following on the basis of the student having attended a home school:

- a. Award of course credits earned in the home school;
- b. Placement in the proper grade level and promotion to the next grade level;
- c. Participation in any academic or extracurricular activity;
- d. Membership in school-sponsored clubs, associations, or organizations;

- e. A diploma or graduation, so long as the student has enrolled or re-enrolled in the District to attend classes for at least the nine (9) months immediately prior to graduation; or
- f. Scholarships.

Legal References: A.C.A. § 6-15-503

A.C.A. § 6-15-504

A.C.A. § 6-41-103

Last Revised: 6/21/20

4.7—ABSENCES

If any student's Individual Education Program (IEP) or 504 Plan conflicts with this policy, the requirements of the student's IEP or 504 Plan take precedence.

Education is more than the grades students receive in their courses. Important as that is, students' regular attendance at school, whether in person or digitally, is essential to their social and cultural development and helps prepare them to accept responsibilities they will face as an adult. Interactions with other students and participation in the instruction within the classroom enrich the learning environment and promote a continuity of instruction which results in higher student achievement.

Absences for students enrolled in synchronous digital courses shall be determined in the same manner as for District students attending courses in person.¹

Excused Absences

Excused absences are those where the student was on official school business or when the absence was due to one of the following reasons:

1. The student's illness or when attendance could jeopardize the health of other students. A maximum of six (6) such days are allowed per semester unless the condition(s) causing such absences is of a chronic or recurring nature, is medically documented, and approved by the principal.²
2. Death or serious illness in their immediate family;³
3. Observance of recognized holidays observed by the student's faith;
4. Attendance at an appointment with a government agency;
5. Attendance at a medical appointment;
6. Exceptional circumstances with prior approval of the principal;
7. Participation in an FFA, FHA, or 4-H sanctioned activity;⁴
8. Participation in the election poll workers program for high school students;
9. Absences granted to allow a student to visit his/her parent or legal guardian who is a member of the military and been called to active duty, is on leave from active duty, or has returned from deployment to a combat zone or combat

support posting. The number of additional excused absences shall be at the discretion of the superintendent or designee;

10. Absences granted, at the Superintendent's discretion, to seventeen (17) year-old students who join the Arkansas National Guard while in eleventh grade to complete basic combat training between grades eleven (11) and (12);
11. Absences for students excluded from school by the Arkansas Department of Health during a disease outbreak because the student has an immunization waiver or whose immunizations are not up to date;⁵
12. Absences due to conditions related to pregnancy or parenting, including without limitation:

- Labor, delivery, and recovery;
- Prenatal and postnatal medical appointments and other medically necessary, pregnancy-related absences;
- The illness or medical appointment of a child belonging to a parent who is enrolled at a District school;
- A legal appointment related to pregnancy or parenting, including without limitation:
 - o Adoption;
 - o Custody; and
 - o Visitation;
- A reasonable amount of time to accommodate a lactating student's need to express breast milk or to breastfeed the student's child on the District's campus; and
- At least ten (10) school days of absences for both a parenting mother and a parenting father after the birth of a child.⁶

13. Absences for a student who is the child of a fallen service member or fallen first responder:

- Due to a mental health concern; or
- To attend an event from a sponsoring organization that provides support to families of fallen service members or first responders or provides support for traumatic loss, grief, or resiliency.

14. Upon the written consent of a student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student, the District shall grant an excused absence for the following purposes:

- Social or public policy advocacy; or
- Attempts to influence legislation or other governmental policy-making at the local, state, or federal level.

Students who serve as pages for a member of the General Assembly shall be considered on instructional assignment and shall not be considered absent from school for the day the student is serving as a page.⁷

Up to one (1) time during each scheduled election, a student shall not be considered absent from school for the time the student accompanies the student's parent when the parent is exercising the parent's right to vote in a scheduled election.

In order for the absence to be considered excused, the student must:

- a. Bring a written statement to the principal or designee upon the student's return to school from the student's parent, legal guardian, or treating physician stating the reason for the student's absence;
- b. If the student is attending the District's courses digitally, upload a written statement from the student's parent, legal guardian, or treating physician stating the reason for the student's absence through the District's digital course management platform for review by the principal or designee; ~~or~~
- c. Provide documentation as proof of a student's participation in an activity or program scheduled and approved by the 4-H program that is provided by a 4-H county extension agent, 4-H educator, or other appropriate entity associated with the 4-H activity or program; or
- d. The student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student provides written documentation that the student's absence is to attend an event from a sponsoring organization that:
 - o Provides support to families of fallen service members or first responders or provides support for traumatic loss, grief, or resiliency; and
 - o May be verified as an organization that provides support to the military and first responder community by reviewing the Resources Page for Military Family Engagement on the Department of Education website.

A written statement presented or uploaded for an absence having occurred more than five (5) school days prior to its presentation or upload will not be accepted.

A student shall not be eligible to receive an excused absence for #13 above if:

- § The student is not in good academic standing;
- § The student does not have a prior record of good attendance; or
- § The absence occurs during a date on which standardized testing is administered.

The District shall annually provide a report by June 30 to the Division of Elementary and Secondary Education that contains the following:

- The number of absences requested under number 14;
- The number of absences granted under number 14; and
- The stated purposes of the absence.

Unexcused Absences

Absences that are not defined above; do not have an accompanying note from the parent, legal guardian, person having lawful control of the student, person standing in loco parentis, the student's treating physician, or a 4-H county extension agent, 4-H educator, or other appropriate entity associated with the 4-H activity or program; or have an accompanying note that is not presented or uploaded within the timeline required by this policy shall be considered as unexcused absences. Students with (8)⁸ unexcused absences in a course in a semester may not receive credit for that course. At the discretion of the principal, after consultation with persons having knowledge of the circumstances of the unexcused absences, the student may be denied promotion or graduation. Excessive absences shall not be a reason for expulsion or dismissal of a student.

When a student has (4)⁸ unexcused absences, his/her parents, legal guardians, persons with lawful control of the student, or persons standing in loco parentis shall be notified⁹. Notification shall be by telephone by the end of the school day in which such absence occurred or by regular mail with a return address sent no later than the following school day.

Whenever a student exceeds (8⁸) unexcused absences in a semester, the District shall notify the prosecuting authority and the parent, legal guardian, person having lawful control of the student, or persons standing in loco parentis shall be subject to a civil penalty as prescribed by law.

It is the Arkansas General Assembly's intention that students having excessive absences be given assistance in obtaining credit for their courses. Therefore, at any time prior to when a student exceeds the number of unexcused absences permitted by this policy, the student, or his/her parent, legal guardian, person with lawful control of the student, or person standing in loco parentis may petition the school or district's administration for special arrangements to address the student's unexcused absences. If formal arrangements are granted, they shall be formalized into a written agreement which will include the conditions of the agreement and the consequences for failing to fulfill the agreement's requirements. The agreement shall be signed by the student; the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis; and the school or district administrator or designee.¹⁰

Students who attend in-school suspension shall not be counted absent for those days.¹¹

Days missed due to out-of-school suspension or expulsion shall be unexcused absences.¹¹

The District shall notify the Department of Finance and Administration whenever a student fourteen (14) years of age or older is no longer in school. The Department of Finance and Administration is required to suspend the former student's operator's license unless the former student meets certain requirements specified in the statute.

Cross References: 4.8—MAKE-UP WORK

4.57—IMMUNIZATIONS

5.11—DIGITAL LEARNING COURSES

5.29—WELLNESS POLICY

Legal References: A.C.A. § 6-4-302

A.C.A. § 6-18-209

A.C.A. § 6-18-213

A.C.A. § 6-18-220

A.C.A. § 6-18-222

A.C.A. § 6-18-229

A.C.A. § 6-18-231

A.C.A. § 6-18-234

A.C.A. § 6-18-236

A.C.A. § 6-18-237

A.C.A. § 6-18-239

A.C.A. § 6-18-507(g)

A.C.A. § 6-18-702

A.C.A. § 6-28-114

A.C.A. § 7-4-116

A.C.A. § 9-28-113(f)

A.C.A. § 27-16-701

Division of Elementary and Secondary Education Rules Governing
Distance and Digital Learning

Date Adopted: 7/17/2025

Last Revised: 8/1//2026

4.8—MAKE-UP WORK

Students who miss school due to an excused absence shall be allowed to make up the work they missed during their absence under the following rules:¹

1. Students are responsible for asking the teachers of the classes they missed what assignments they need to make up.²
2. Teachers are responsible for providing the missed assignments when asked by a returning student.²
3. Students are required to ask for their assignments on their first day back at school or their first class day after their return.²
4. Make-up tests are to be rescheduled at the discretion of the teacher, but must be aligned with the schedule of the missed work to be made up.
5. Students shall have one class day to make up their work for each class day they are absent.³
6. Make-up work which is not turned in within the make-up schedule for that assignment shall receive a zero.⁴
7. Students are responsible for turning in their make-up work without the teacher having to ask for it.²
8. Students who are absent on the day their make-up work is due must turn in their work the day they return to school whether or not the class for which the work is due meets the day of their return.
9. As required/permitted by the student's Individual Education Program or 504 Plan.

Work may not be made up for credit for unexcused absences **unless** the unexcused absences are part of a signed agreement as permitted by policy 4.7—ABSENCES.⁵

Work for students serving an out-of-school suspension or expulsion shall be in accordance with the District's programs, measures, or alternative means and methods to continue student engagement and access to education during the student's period of suspension or expulsion.⁶

In lieu of the timeline above, assignments for students who are excluded from school by the Arkansas Department of Health during a disease outbreak are to be made up as set forth in Policy 4.57—IMMUNIZATIONS.

In addition to the make-up work process above, at the conclusion of a pregnancy-related or parenting-related period of absence, a student may choose from various options to make up missed work, including without limitation:

- a. Retaking a semester at the District school where the student is enrolled;
- b. Participating in an online course credit recovery program;
- c. Being granted six (6) weeks to continue at the same pace and finish the semester at a later date, provided that the student may:
 - Complete the student's coursework within the current school year; or
 - Attend previously scheduled summer school classes made available by the District Where the student is enrolled; and

- d. Receiving home-based instruction services.

Cross References: 4.7—ABSENCES
4.30—SUSPENSION FROM SCHOOL
4.31—EXPULSION
4.57—IMMUNIZATIONS

Legal References: A.C.A. § 6-18-234
A.C.A. § 6-18-502
DESE Rules Governing Student Discipline and School Safety

Date Adopted: 7/20/2026
Last Revised: 9/1/26

4.9a—ARRIVAL AND DISMISSAL

Teachers are scheduled on duty for supervision at 7:25 a.m. Therefore, students should not arrive before 7:25 a.m. Elementary students must be present by 7:45 a.m. and high school students no later than 7:45 am. All students will be dismissed at 4:14 pm. Except for meetings, games, and programs about which parents have been notified, children will not be kept or allowed to stay after school has been dismissed. Changes in transportation must be made to the respective school office by 3:30 on the day of the request. Keeping the child after school will occur only after communication with the parents. No supervision will be provided otherwise.

Reviewed 7/18/23

4.9b—TARDIES

- Promptness is an important character trait. Students who are late to class show a disregard for both the teacher and their classmates which compromises potential student achievement.
- Any district personnel who needs to hold a student causing them to be late to their next class is responsible to contact the next teacher and make arrangements prior to class dismissal.
- If a High School student receives three (3) unexcused tardies in a semester (on an individual class basis) this shall result in an absence in the class.
- If a student is more than ten minutes late or missed more than ten minutes of the class for reasons other than bus transportation or being excused by a teacher or office personnel, he/she is considered absent that period.

Last Revised: 6/13/18

4.10a—CLOSED CAMPUS

Alpena High School shall operate closed campuses. Students are required to stay on campus from their arrival until dismissal at the end of the regular school day unless given permission to leave the campus by a school official. Students must sign out in the office upon their departure.

Last Revised 6/18/18

4.10b—CHECK-IN PROCEDURE

Students must check-in through the principal or principal's designee when absent the previous day or upon arriving late for a class. Students having been absent should bring a note from the parent to the principal stating the reason for the absence.

Last Revised: 6/21/18

4.10c—CHECK-OUT PROCEDURE

High School Students who are present in school and who need to leave campus before the end of the day must present a note signed by the legal parent/guardian or designee and must sign out in the office. The note must be given to the principal or his designee and state the reasons for the early dismissal. A telephone call from the legal parent/guardian or designee will also be acceptable. No school official may check out a student without legal parental authorization. Students becoming ill during the day should report to the office. The office will contact the legal parents and then complete the check-out procedure. If the legal parents/guardian or designee cannot be contacted, the student will remain in the office until the legal parents/guardian or designee can be reached.

Elementary students must be checked out through the office by an adult listed on their contact information form with the office. They must present a valid photo ID to be scanned through the school security system. Elementary students must ride to and return from any school "day trip" (trip occurring during school hours) on school transportation. They may not be checked out until they have returned to school and been accounted for. They may then be checked out in accordance with regular check out procedure.

4.11—EQUAL EDUCATIONAL OPPORTUNITY

No student in the Alpena School District shall be excluded from participation in, or denied the benefits of, or subjected to discrimination under any educational program or activity sponsored by the District on the basis of color, religion, national origin, sex, age, or disability.¹ The District has a limited open forum granting equal access to the Boy Scouts of America and other youth groups.²

Inquiries on non-discrimination may be directed to the 504 Coordinator, who may be reached at 866-425-7362⁴.

Any person may report sex discrimination, including sexual harassment, to the Title IX Coordinator in person or by using the mailing address, telephone number, or email address provided above. A report may be made at any time, including during non-business hours, and may be on the individual's own behalf or on behalf of another individual who is the person alleged to be the victim of conduct that could constitute sex discrimination or sexual harassment.

For further information on notice of non-discrimination or to file a complaint, visit <https://www2.ed.gov/about/offices/list/ocr/complaintintro.html>; for the address and phone number of the office that serves your area, or call 1-800-421-3481.

Legal References: A.C.A. § 6-1-114

A.C.A. § 6-10-132

A.C.A. § 6-16-2001 et seq.

A.C.A. § 6-18-514

A.C.A. § 14-1-403

28 C.F.R. § 35.106

34 C.F.R. § 100.6

34 C.F.R. § 104.8

34 C.F.R. § 106.8

34 C.F.R. § 106.9

34 C.F.R. § 108.9

34 C.F.R. § 110.25

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

4.12—STUDENT ORGANIZATIONS/EQUAL ACCESS

Non curriculum-related secondary school student organizations wishing to conduct meetings on school premises during non-instructional time shall not be denied equal access on the basis of the religious, political, philosophical, or other content of the speech at such meetings. Such meetings must meet the following criteria.

1. The meeting is to be voluntary and student initiated;
2. There is no sponsorship of the meeting by the school, the government, or its agents or employees;
3. The meeting must occur during non-instructional time;
4. Employees or agents of the school are present at religious meetings only in a non-participatory capacity;
5. The meeting does not materially and substantially interfere with the orderly conduct of educational activities within the school; and
6. Non-school persons may not direct, conduct, control, or regularly attend activities of student groups.

All meetings held on school premises must be scheduled and approved by the principal. The school, its agents, and employees retain the authority to maintain order and discipline, to protect the well-being of students and faculty, and to assure that attendance of students at meetings is voluntary.

Fraternities, sororities, and secret societies are forbidden in the District's schools. Membership to student organizations shall not be by a vote of the organization's members, nor be restricted by the student's race, religion, sex, national origin, or other arbitrary criteria. Hazing, as defined by law, is forbidden in connection with initiation into, or affiliation with, any student organization, extracurricular activity or sport program. Students who are convicted of participation in hazing or the failure to report hazing shall be expelled

Legal References: A.C.A. § 6-21-204, 20 U.S.C. 4071 Equal Access Act, Board of Education of the Westside Community Schools v. Mergens, 496 U.S. 226 (1990), A.C.A. § 6-18-601 et seq.

A.C.A. § 6-5-20 2 requires the automatic expulsion of a student who is convicted of hazing.

Last Revised 5-21-2018

4.13-PRIVACY OF STUDENTS' RECORDS/ DIRECTORY INFORMATION

Except when a court order regarding a student has been presented to the district to the contrary, all students' education records are available for inspection and copying by the parent of his/her student who is under the age of eighteen (18). At the age of eighteen (18), the right to inspect and copy a student's records transfers to the student. A student's parent or the student, if over the age of 18, requesting to review the student's education records will be allowed to do so within no more than forty five (45) days of the request. The district forwards education records, including disciplinary records, to schools that have requested them and in which the student seeks or intends to enroll, or is already enrolled so long as the disclosure is for purposes related to the student's enrollment or transfer.

The district shall receive written permission before releasing education records to any agency or individual not authorized by law to receive and/or view the education records without prior parental permission. The District shall maintain a record of requests by such agencies or individuals for access to, and each disclosure of, personally identifiable information from the education records of each student. Disclosure of education records is authorized by law to school officials with legitimate educational interests. A personal record kept by a school staff member is **not** considered an education record if it meets the following tests.

- it is in the sole possession of the individual who made it;
- it is used only as a personal memory aid; and
- information contained in it has never been revealed or made available to any other person, except the maker's temporary substitute.

For the purposes of this policy a school official is a person employed by the school as an administrator, supervisor, instructor, or support staff member (including health or medical staff and law enforcement unit personnel); a person serving on the school board; a person or company with whom the school has contracted to perform a special task (such as an attorney, auditor, medical consultant, or therapist); or a parent or student serving on an official committee, such as a disciplinary or grievance committee, or assisting another school official in performing his or her tasks.

For the purposes of this policy a school official has a legitimate educational interest if the official needs to review an education record in order to fulfill his or her professional responsibility, contracted duty, or duty of elected office.

In addition to releasing PII to school officials without permission, the District may disclose PII from the education records of students in foster care placement to the student's caseworker or to the caseworker's representative without getting prior consent of the parent (or the student if the student is over eighteen (18)). For the District to release the student's PII without getting permission:

- The student must be in foster care;
- The individual to whom the PII will be released must have legal access to the student's case plan; and
- The Arkansas Department of Human Services, or a sub-agency of the Department, must be legally responsible for the care and protection of the student.

The District discloses PII from an education record to appropriate parties, including parents, in connection with an emergency if knowledge of the information is necessary to protect the health or safety of the student or other individuals. The superintendent or designee shall determine who will have access to and the responsibility for disclosing information in emergency situations.

When deciding whether to release PII in a health or safety emergency, the District may take into account the totality of the circumstances pertaining to a threat to the health or safety of a student or other individuals. If the District determines that there is an articulable and significant threat to the health or safety of a student or other individuals, it may disclose information from education records to any person whose knowledge of the information is necessary to protect the health or safety of the student or other individuals.

For purposes of this policy, the Alpena School District does not distinguish between a custodial and noncustodial parent, or a non-parent such as a person acting in loco parentis or a foster parent with respect to gaining access to a student's records. Unless a court order restricting such access has been presented to the district to the contrary, the fact of a person's status as parent or guardian, alone, enables that parent or guardian to review and copy his child's records.

If there exists a court order which directs that a parent not have access to a student or his records, the parent, guardian, person acting in loco parentis, or an agent of the Department of Human Services must present a file-marked copy of such order to the building principal and the superintendent. The school will make good-faith efforts to act in accordance with such court order, but the failure to do so does not impose legal liability upon the school. The actual responsibility for enforcement of such court orders rests with the parents or guardians, their attorneys and the court which issued the order.

A parent or guardian does not have the right to remove any material from a student's records, but such parent or guardian may challenge the accuracy of a record. The right to challenge the accuracy of a record does not include the right to dispute a grade, disciplinary rulings, disability placements, or other such determinations, which must be done only through the appropriate teacher and/or administrator, the decision of whom is final. A challenge to the accuracy of material contained in a student's file must be initiated with the building principal, with an appeal available to the Superintendent or his designee. The challenge shall clearly identify the part of the student's record the parent wants changed and specify why he/she believes it is inaccurate or misleading. If the school determines not to amend the record as requested, the school will notify the requesting parent or student of the decision and inform them of their right to a hearing regarding the request for amending the record. The parent or eligible student will be provided information regarding the hearing procedure when notified of the right to a hearing.

Unless the parent or guardian of a student (or student, if above the age of eighteen [18]) objects, "directory information" about a student may be made available to the public, military recruiters, post-secondary educational institutions, prospective employers of those students, as well as school publications such as annual yearbooks and graduation announcements. **However, without written consent from the parent or guardian of a student (or student if over 18), the District will ONLY release the following:**

- **Student's name, address and phone number to military recruiters and post-secondary educational institutions**
- **Student's name, grade, photo, and school activities and achievements to the public**

"Directory information" includes, but is not limited to, a student's name, address, telephone number, electronic mail address, photograph, date and place of birth, dates of attendance, his/her placement on the honor roll (or the receipt of other types of honors), as well as his/her participation in school clubs and extracurricular activities, among others. If the student participates in inherently public activities (for example, basketball, football, or other interscholastic activities), the publication of such information will be beyond the control of the District. "Directory information" also includes a student identification (ID) number, user ID, or other unique personal

identifier used by a student for purposes of accessing or communicating in electronic systems-A student's name and photograph will only be displayed on the district or school's web page(s) after receiving the written permission from the student's parent or student if over the age of 18.

The form for objecting to making directory information available is located in the back of the student handbook and must be completed and signed by the parent or age-eligible student and filed with the building principal's office no later than ten (10) school days after the beginning of each school year or the date the student is enrolled for school. Failure to file an objection by that time is considered a specific grant of permission. The district is required to continue to honor any signed-opt out form for any student no longer in attendance at the district.

The right to opt out of the disclosure of directory information under Family Educational Rights and Privacy Act (FERPA) does not prevent the District from disclosing or requiring a student to disclose the student's name, identifier, or institutional email address in a class in which the student is enrolled.

Parents and students over the age of 18 who believe the district has failed to comply with the requirements for the lawful release of student records may file a complaint with the U.S. Department of Education at

Student Privacy Policy Office

U.S. Department of Education
400 Maryland Avenue, SW
Washington, DC 20202

The District shall ensure that all contracts that disclose or make available student personally identifiable information to vendors, including school service contract providers, school service on-demand providers, and other third parties, including without limitation subcontractors of contract providers, include express provisions that safeguard the privacy and security of student personally identifiable information that meet the requirements under A.C.A. § 6-18-2601 et seq. The District shall maintain a list of the school service contract providers that the District contracts with for school services that include or make available student personally identifiable information. The list shall be updated at least once at the beginning of each semester and provided to parents upon request.

Legal References:

A.C.A. § 6-18-2601 et seq.
A.C.A. § 9-29-113(b)(6),
20 U.S.C. § 1232g,
20 U.S.C. § 7908 (NCLB Section 9528),
34 CFR §§ 99.3, 99.7, 99.21, 99.22, 99.30, 99.31, 99.32, 99.33, 99.34, 99.35, 99.36, 99.37, 99.63, 99.64,

Cross References:

Policy 4.34—Communicable Diseases and Parasites,

Policy 5.20—District Website,
Policy 5.20.1--Web Site Privacy Policy,
Policy 5.20F1—Permission to Display Photo of Student on Web Site

Last Revised: 5/22/23

FOR WRITTEN OBJECTION TO PUBLICATION OF DIRECTORY INFORMATION, SEE FORM 4.13f

4.14—STUDENT MEDIA

Definitions

“School-sponsored media” means all student media that are:

- Supported financially by the school;
- Supported by the use of school facilities; or
- Produced in conjunction with a class.

“Student journalist” means a student who gathers, writes, edits, photographs, records, video tapes, or prepares information for dissemination in student media.

“Student media” means any means of communication that are:

- Prepared, substantially written, published, or broadcasted by a student;
- Distributed or generally made available, either free of charge or for a fee, to members of the student body; and
- Prepared under the direction of a student media advisor.
- “Student media” does not include media that is intended for distribution or transmission solely in the classroom in which it is produced.

“Student media advisor” means an individual who is employed, appointed, or designated by the District to supervise or provide instruction with respect to student media

Student Media

While the District recognizes a student’s right of expression under the First Amendment of the Constitution of the United States, school-sponsored media does not provide an open public forum for public expression. Student media, as well as the content of student expression in school-sponsored activities, shall be subject to the editorial review of the District’s administration, whose actions shall be reasonably related to legitimate pedagogical concerns and adhere to the following limitations:

1. Advertising may be accepted for media that does not condone or promote products that are inappropriate for the age and maturity of the audience or that endorse such things as tobacco, alcohol, or drugs.
2. Media may be regulated to prohibit communications determined by the appropriate teacher, student media advisor, and/or administrator to be ungrammatical; poorly written;

inadequately researched; biased or prejudiced; vulgar or profane; or unsuitable for immature audiences.

3. Media may be regulated to prohibit the dissemination of material that may reasonably be perceived to advocate drug or alcohol use; irresponsible sex; conduct that is otherwise inconsistent with the shared values of a civilized social order; or to associate the school with any position other than neutrality on matters of political controversy.
4. Prohibited media includes those that:
 - a. Are obscene as to minors;
 - b. Are libelous or slanderous, including material containing defamatory falsehoods about public figures or governmental officials and made with knowledge of their falsity or reckless disregard of the truth;
 - c. Constitute an unwarranted invasion of privacy as defined by state law,
 - d. Publications that suggest or urge the commission of unlawful acts on the school premises;
 - e. Suggest or urge the violation of lawful school regulations;
 - f. Attacks ethnic, religious, or racial groups; or
 - g. Harass, threaten, or intimidate a student.

Student Media on School Web Pages

Student media displayed on school web pages shall follow the same guidelines as listed above; and shall also

1. Not contain any non-educational advertisements.
2. Not contain any personally identifying information, as defined by "Directory Information" in Policy 4.13 (Privacy of Student Records), without the written permission of the parent of the student or the student if over eighteen (18);
3. The views of student publications expressed are not necessarily those of the School Board or the employees of the district.

Student Distribution of Non-school Literature, Publications, and Materials

A student or group of students who distribute ten (10) or fewer copies of the same non-school-sponsored literature, publications, or materials shall do so in a time, place, and manner that does not cause a substantial disruption of the orderly education environment. A student or group of students wishing to distribute more than ten (10) copies of non-school-sponsored materials shall have school authorities review their non-school-sponsored materials at least three (3) school days in advance of their desired time of dissemination. School authorities shall review the non-school-sponsored materials, prior to their distribution and will bar from distribution those non-school-sponsored materials that are obscene, libelous, pervasively indecent, or advertise unlawful products or services. Material may also be barred from distribution if there is evidence that reasonably supports a forecast that a substantial disruption of the orderly operation of the school or educational environment will likely result from the distribution. Concerns related to any denial of distribution by the principal shall be heard by the superintendent, whose decision shall be final.

Distribution of Literature

The school principal or designee shall establish reasonable regulations governing the time, place, and manner of student distribution of non-school-sponsored materials.

The regulations shall:

1. Be narrowly drawn to promote orderly administration of school activities by preventing disruption and may not be designed to stifle expression;
2. Be uniformly applied to all forms of non-school-sponsored materials;
3. Allow no interference with classes or school activities;
4. Specify times and places where distribution may and may not occur; and
5. Not inhibit a person's right to accept or reject any literature distributed in accordance with the regulations.

Cross References:

1.9—POLICY Formulation

4.13—PRIVACY OF STUDENTS' RECORDS/ DIRECTORY INFORMATION

4.43—BULLYING

Legal References: A.C.A. § 6-18-514, & 1204, Tinker v. Des Moines ISD, 393 U.S. 503 (1969), Bethel School District No. 403 v. Fraser, 478 U.S. 675 (1986), Hazelwood School District v. Kuhlmeier, 484 U.S. 260 (1988)

Last Revised: 7/15/19

4.15a—CONTACT WITH STUDENTS WHILE AT SCHOOL

CONTACT BY PARENTS

Parents wishing to speak to their children during the school day shall register first with the office.

CONTACT BY NON-CUSTODIAL PARENTS

If there is any question concerning the legal custody of the student, the custodial parent shall present documentation to the principal or the principal's designee establishing the parent's custody of the student. It shall be the responsibility of the custodial parent to make any court ordered "no contact" or other restrictions regarding the non-custodial parent known to the principal by presenting a copy of a file-marked court order. Without such a court order on file, the school will release the child to either of his/her parents. Non-custodial parents who file with the principal a date-stamped copy of current court orders granting visitation may eat lunch, volunteer in their child's classroom, or otherwise have contact with their child during school hours and the prior approval of the school's principal. Such contact is subject to the limitations outlined in Policy 4.16, Policy 6.5, and any other policies that may apply.

Arkansas law provides that, In order to avoid continuing child custody controversies from involving school personnel and to avoid disruptions to the educational atmosphere in the District's schools, the transfer of a child between his/her custodial parent and non-custodial parent, when both parents are present, shall not take place on the school's property on normal school days during normal hours of school operation. Unless a valid no-contact order has been filed with the student's principal or the principal's designee, district employees shall not become involved in disputes concerning whether or not that parent was supposed to pick up the student on any given day.

CONTACT BY LAW ENFORCEMENT, SOCIAL SERVICES, OR BY COURT ORDER

State Law requires that Department of Human Services employees, local law enforcement, or agents of the Crimes Against Children Division of the Department of Arkansas State Police; may interview students without a court order for the purpose of investigating suspected child abuse. In instances where the interviewers deem it necessary, they may exercise a "72-hour hold" without first obtaining a court order. Except as provided below, other questioning of students by non-school personnel shall be granted only with a court order directing such questioning, with permission of the parents of a student (or the student if above eighteen [18] years of age), or in response to a subpoena or arrest warrant.

If the District makes a report to any law enforcement agency concerning student misconduct or if access to a student is granted to a law enforcement agency due to a court order, the principal or the principal's designee shall make a good faith effort to contact the student's parent, legal guardian, person having lawful control of the student, or other person having lawful control, or person standing in loco parentis identified on student enrollment forms. The principal or the principal's designee shall not attempt to make such contact if presented documentation by the investigator that notification is prohibited because a parent, guardian, custodian, or person standing in loco parentis is named as an alleged offender of the suspected child maltreatment. This exception applies only to interview requests made by a law enforcement officer, an investigator of the Crimes Against Children Division of the Department of Arkansas State Police, or an investigator or employee of the Department of Human Services.

In instances other than those related to cases of suspected child abuse, principals must release a student to either a police officer who presents a subpoena for the student, or a warrant for arrest, or to an agent of state social services or an agent of a court with jurisdiction over a child with a court order signed by a judge. Upon release of the student, the principal or designee shall give the student's parent, legal guardian, or other person having lawful control by court order, or person acting in loco parentis notice that the student has been taken into custody by law enforcement personnel or a state's social services agency. If the principal or designee is unable to reach the parent, he or she shall make a reasonable, good faith effort to get a message to the parent to call the principal or designee, and leave both a day and an after-hours telephone number.

Contact by Professional Licensure Standards Board Investigators

Investigators for the Professional Licensure Standards Board may meet with students during the school day to carry out the investigation of an ethics complaint.

Legal References: A.C.A. § 6-18-513
 A.C.A. § 9-13-104
 A.C.A. § 12-18-609, 610, 613
 A.C.A. § 12-18-1001, 1005

Last Revised: 12/4/18

4.15b—CONFERENCES WITH TEACHERS

Parents seeking a conference with a teacher should make arrangements in advance for conferences with teachers. Conferences may be scheduled either during the teacher's planning period or before or after school.

Last Revised: 3-16-18

4.15c—ADULT VISITORS

1. Parents are welcome to visit the school at any time, but they must stop by the office for permission to visit the classrooms. This protects the child as well as the parents. Upon arrival to campus visitors must check in to a school entering through the door closest to the campus' principal's office.

2. After school, elementary car riders will be dismissed as their parent pull up to the door. For the safety of all of our students, please wait in the car line. Do not pull around other cars and come in unless you have an emergency. If there is an emergency, come by the office, and we will find your children for you. Parents must not go to the classroom to try to pick up their child.

Reviewed 6/13/18

4.16—STUDENT VISITORS

The board strongly believes that the purpose of school is for learning. Social visitors, generally, disrupt the classroom and interfere with learning that should be taking place. Therefore, visiting with students at school is strongly discouraged, unless approved by the principal and scheduled in advance. This includes visits made by former students, friends, and/or relatives of teachers or students. Any visitation to the classroom shall be allowed only with the permission of the school principal and all visitors must first register at the office.

Cross References: For adult visits see Policy 4.15—CONTACT WITH STUDENTS WHILE AT SCHOOL and Policy 6.5—VISITORS TO THE SCHOOLS

4.17—STUDENT DISCIPLINE

The Alpena Board of Education has a responsibility to protect the health, safety, and welfare of the District's students and employees. To help maintain a safe environment conducive to high student achievement, the Board establishes policies necessary to regulate student behavior to promote an orderly school environment that is respectful of the rights of others and ensures the uniform enforcement of student discipline.

Students are responsible for their conduct that occurs:

- At any time on the school grounds;
- Off school grounds at a school sponsored function, activity, or event; and
- Going to and from school or a school activity.

The District's administrators may also take disciplinary action against a student for off-campus conduct occurring at any time that would have a detrimental impact on school discipline, the educational environment, or the welfare of the students and/or staff. A student who has committed a criminal act while off campus and whose presence on campus could cause a substantial disruption to school or endanger the welfare of other students or staff is subject to disciplinary action up to and including expulsion. Such acts could include, but are not limited to:

- o A felony or an act that would be considered a felony if committed by an adult;
- o An assault or battery;
- o Drug law violations; or
- o Sexual misconduct of a serious nature.

Any disciplinary action pursued by the District shall be in accordance with the student's appropriate due process rights.¹

The District shall incorporate the District's multi-tiered behavioral intervention procedures in accordance with Policy 4.60 in the application of student discipline.

The District's personnel policy committees shall annually review the District's student discipline policies, including State and District student discipline data, and may recommend changes in the policies to the Alpena School Board. The Board has the responsibility of determining whether to approve any recommended changes to student discipline policies.

The District's student discipline policies shall be distributed to each student during the first week of school each year and to new students upon their enrollment. Each student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis shall sign and return to the school an acknowledgement form documenting that they have received the policies.

The District shall develop and provide programs, measures, or alternative means and methods for continued student engagement and educational access during periods of suspension or expulsion.

The superintendent is authorized to modify the penalties set forth in the District's student discipline policies on a case-by-case basis.

It is required by law that the principal or the person in charge report to the police any incidents the person has personal knowledge of or has received information leading to a reasonable belief that a person has committed or threatened to commit an act of violence or any crime involving a deadly weapon on school property or while under school supervision. If the person making the report is not the Superintendent, that person shall also inform the Superintendent of the incident. Additionally, the principal shall inform any school employee or other person who initially reported the incident that a report has been made to the appropriate law enforcement agency. The Superintendent or designee shall inform the Board of Directors of any such report made to law enforcement.

The superintendent shall make a report annually to the Board of Directors on student discipline data, which shall include, without limitation, the number of incidents of bullying reported and the actions taken regarding the reported incidents of bullying.

Cross References: 1.9—POLICY FORMULATION
4.60—STUDENT BEHAVIORAL INTERVENTION AND RESTRAINT

Legal References: A.C.A. § 6-17-113
A.C.A. § 6-18-502
A.C.A. § 6-18-514
A.C.A. § 6-18-2401 et seq.
DESE Rules Governing Student Discipline and School Safety

Date Adopted: 7/20/2026
Last Revised: 9/1/26

4.17a Discipline Plans

Alpena Elementary (K-6) Discipline Plan

Discipline at Alpena School District is the job of all teachers and administrative personnel working together. Discipline procedures provide a systematic process of behavioral correction in which inappropriate behaviors are followed by consequences. Disciplinary actions are designed to teach students self-discipline and

to help them substitute inappropriate behaviors with those that are consistent with the character traits from our Character Education program.

When it is necessary to impose discipline, school administrators and teachers will follow a progressive discipline process. The degree of discipline to be imposed by each school official will be in proportion to the severity of the behavior of a particular student and will take into account the student's discipline history, the age of the student and other relevant factors. Discipline consequences shall range from a minimum of verbal warning to a maximum of expulsion.

Teachers will handle most of their minor acts of misconduct by using reasonable approaches that produce positive results when students do not adhere to the classroom procedures and expectations using the following steps. These steps may vary due to situations and individual classrooms:

- 1) The first time a student fails to follow classroom procedures/expectations, the staff member will give the student a verbal warning or take other appropriate action;
- 2) The second time a student misbehaves, the staff may decide to take away a privilege or take other appropriate actions;
- 3) For the third offense, the staff will contact the parents, explaining the child's unacceptable behavior.
- 4) On the fourth offense, the student will be referred to the office for appropriate action. Professional staff members may utilize any of the discipline interventions appropriate for minor acts of misconduct which interfere with the orderly school procedures, including, but not limited to, the following:
 - Loss of recess or other free choice time
 - Isolation during lunch
 - Classroom isolation from peers
 - Student participation in conference with parent/guardian and teacher
 - Participation in a school-service project, which enables the student to be engaged in the desired character trait(s)
 - Development of a written or graphic representation that reflects understanding of the specific misbehavior, the nature of the expected behavior, and the related character trait(s)
 - Any other disciplinary technique that positively promotes the student Discipline Procedures and desired character trait(s) that is approved by the building administrator

The administrator will have the authority to implement the most appropriate level of intervention when dealing with each offense. The degree of discipline imposed will be

in accordance with the progressive discipline process unless otherwise stated. Other misbehaviors not listed below will be dealt with at the appropriate level at the discretion of the building administrator.

The principal or designee may utilize any of the following discipline interventions and/or may employ:

- Student participation in conference with parent, teacher, and/or administrator
- Referral to Counselor
- Assignment to Lunch or Recess Detention
- Partial or full day In-School Suspension (ISS)
- Out of School Suspension (OSS)
- Participation in the cleaning/repair of any damage caused by the student
- Financial or other restitution for the repair of any damage caused by the student
- Restriction from school programs and special assemblies
- Expulsion, as allowed under local board policy
- Any other disciplinary technique that positively promotes the student discipline procedures and desired character trait(s)

These routine steps will take care of most problems with misbehavior; however, more serious or repeated infractions will result in the following disciplinary actions:

Disciplinary Infraction	Minimum Penalty	Maximum Penalty
Assault*/Battery** of School Staff	ISS	OSS/Police Contact
Cheating/Plagiarism	Zero/Parent Contact	ISS
Classroom Disruptions/Disregard of Directions	Warning	OSS
Cyberbullying of School Employee	ISS/Police Contact	Expulsion
Damage, Destruction of Property/Vandalism	Warning	ISS
Disorderly Conduct	Warning	OSS
Displays of Affection	Warning	ISS
Dress Code Violation	Warning	ISS
Electronic Devices	Confiscation/ Detention	ISS
Explosives/Fires-Setting Fires, Fireworks	OSS	Expulsion
Fighting/Student Assault	Detention	OSS

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Game Cards/Toys/Items of Distraction	Warning	ISS
Gambling	Warning	ISS
Gang Activity	ISS	OSS
Harassment/Bullying/Cyberbullying	Warning/ Counselor Referral	OSS
Horseplay /Hall Misconduct	Warning	ISS
Indecent Exposure, Pornography	Warning	OSS
Insubordination	Warning	ISS
Possession, Dispensing, Selling, Use, or Being Under the Influence of Drugs (Including Pretend or Prescription), Alcohol, Controlled Substance, or Possessing Drug Paraphernalia	ISS/OSS	Expulsion/Police Contact
Sexual Harassment	Warning	OSS
Technology Violation	Warning	Suspension of Privileges
Theft	Warning	ISS
Threat of Violence-Bomb, False Fire Alarm, Other Disruptive Intrusions	ISS	Expulsion
Threat of Physical Violence	Warning	Expulsion
Tobacco Products	Detention	ISS
Truancy	Detention	ISS/FINS
Use of Profane, Vulgar, or Obscene Words, Inappropriate Gesturing	Warning	ISS
Verbal Abuse - Student	Warning	OSS
Verbal Abuse - Staff	Warning	OSS
Weapons/Knives	Confiscation/ Parent Contact	Expulsion/ Police Contact
Persistent Disregard of School Rules	OSS	Expulsion
Behavior Not Covered Above-Principal Authority	Warning	Expulsion

*Assault: Any threat or attempt to physically harm another person or any act that reasonably places another person in fear of physical harm.

**Battery: Intentionally making physical contact with another person in an insulting, offensive, or provoking manner or in a way that physically harms the other person.

HIGH SCHOOL DISCIPLINE ACTIONS CHART:

3 Tier Discipline Plan

2026-27 School Year

The Arkansas Department of Education's Response to Intervention (RTI) behavior framework, Positive Behavioral Interventions & Supports (PBIS), has three tiers of support:

- Tier I

Universal supports for all students, such as strong school values and policies, and healthy classroom practices

- Tier II

Supplemental supports for smaller groups of students who are at risk, such as those who aren't making progress in Tier I

- Tier III

Intensive supports for individual students who aren't responding appropriately to Tier I or Tier II

ASD 3 tier discipline plan administered on a series of fives between tiers with required, on site, intervention meetings within and between advancement of tiers. Steps reset each semester. Students are subject to advance and jump tiers in the discipline plan via the principal or his/her designee discretion.

§ Tier 1 – Verbal Warning

- **Five verbal warnings per classroom teacher before Intervention Meeting and movement to detention level. (teacher level)**

§ Tier 1 – Detention Level (D)

- Five detention assignments before Intervention Meeting and movement to Tier 2: In School Suspension level. (campus level)

§ Tier 2 – In School Suspension Level (ISS)

- Five in school suspension actions per student before Intervention Meeting and movement to Tier 2 Out of School Suspension. (campus level)

§ Tier 2 – Out of School Suspension Level (OSS)

- Five out of school suspension actions per student before Intervention Meeting and movement to Tier 3. (campus level)

§ Tier 3 – Alternative School/Expulsion

- Student/Caregiver provided the opportunity to move student to an alternative classroom due to repeat offenses in the standard classroom. If this pathway is selected, the student returns to Tier 2 – Out of School Suspension level of 3 tier plan.
- If student/caregiver refuses the alternative classroom option the student is recommended for expulsion due to repeated offenses.

Alpena Tier 1: Verbal Warning Level

Ø Discipline Policy in the Student Handbook

Ø Each teacher, administrator, or staff member administered within their own observation and control (i.e. classroom, hallway, assembly, etc.)

<i>Discipline Step</i>	<i>Action</i>	<i>Attendant(s)</i>
Verbal Warning 1	§ Teacher (T) notifies student (S) verbally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via email standard document (see Appendix A)	T and S

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Verbal Warning 2	§ Teacher (T) notifies student (S) verbally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via email standard document (see Appendix A)	T and S
Verbal Warning 3	§ Teacher (T) notifies student (S) verbally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via email standard document (see Appendix A) § DOS meets with Teacher to identify problem with student and propose solution. § DOS meets with student to identify problem and propose solution.	T, S, and DOS
Verbal Warning 4	§ Teacher (T) notifies student (S) verbally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via email standard document (see Appendix A) § DOS contacts caregiver (C) to identify problem with student and propose solution.	T, S, DOS, and C
Verbal Warning 5	§ Teacher (T) notifies student (S) verbally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via email standard document (see Appendix A) § DOS contacts caregiver (C) and student (S) to alert problem with student and convey consequence of next infraction.	T, S, DOS, and C
CONSEQUENTIAL INFRACTION Intervention Meeting	§ Dean of Students meets with principal (P), school resource officer (SRO), student and caregiver to discuss next steps of consequence for student infractions and movement to Tier 1: D level.	DOS, P, SRO, S, and C

Alpena Tier 1: Detention Assignment Level**Ø Discipline Policy in the Student Handbook**

Ø Each teacher, administrator, or staff member administered within their own observation and control (i.e. classroom, hallway, assembly, etc.)

Ø Once student has reached this level in qualifying classes (i.e. 5 verbal warnings) across the campus accrue in detention level steps.

<i>Discipline Step</i>	<i>Action</i>	<i>Attendant(s)</i>
Detention Assignment 1	§ Teacher (T) notifies student (S) formally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via detention notice document (see Appendix B).	T, S, and DOS
Detention Assignment 2	§ Teacher (T) notifies student (S) formally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via detention notice document.	T, S, and DOS
Detention Assignment 3	§ Teacher (T) notifies student (S) formally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via detention notice document. § DOS meets with Guidance Counselor (GC) to identify problem with student and propose solution. § DOS meets with student to identify problem and propose solution.	T, S, GC and DOS

Detention Assignment 4	§ Teacher (T) notifies student (S) formally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via detention notice document. § DOS meets with Guidance Counselor (GC) and student (S) to identify problem and propose solution. § DOS contacts caregiver (C) to identify problem with student and propose solution.	T, S, DOS, GC, and C
Detention Assignment 5	§ Teacher (T) notifies student (S) formally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via detention notice document. § DOS contacts caregiver (C) and student (S) to alert problem with student and convey consequence of next infraction.	T, S, DOS, and C
CONSEQUENTIAL INFRACTION Intervention Meeting	§ Dean of Students meets with principal (P), school resource officer (SRO), student and caregiver to discuss next steps of consequence for repeated student infractions and movement to Tier 2: ISS level.	DOS, P, SRO, S, and C

Alpena Tier 2: In School Suspension Level

Ø Discipline Policy in the Student Handbook

Ø Each teacher, administrator, or staff member administered within their own observation and control (i.e. classroom, hallway, assembly, etc.)

Ø Once student has reached this level in qualifying classes (i.e. 5 verbal warnings) and accrued 5 detention level across the campus accrue in ISS level steps.

Discipline Step	Action	Attendant(s)
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ISS Assignment 1 (1 day)	§ Teacher (T) notifies student (S) formally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via disciplinary referral document (Appendix C)	T, S, and DOS
ISS Assignment 2 (2 days)	§ Teacher (T) notifies student (S) formally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via disciplinary referral document.	T, S, and DOS
ISS Assignment 3 (3 days)	§ Teacher (T) notifies student (S) formally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via disciplinary referral document. § DOS meets with Guidance Counselor (GC) to identify problem with student and propose solution. § DOS meets with student to identify problem and propose solution.	T, S, GC and DOS
ISS Assignment 4 (4 days)	§ Teacher (T) notifies student (S) formally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via disciplinary referral document. § DOS meets with Guidance Counselor (GC) and student (S) to identify problem and propose solution. § DOS contacts caregiver (C) to identify problem with student and propose solution.	T, S, DOS, GC, and C

ISS Assignment 5 (5 days)	§ Teacher (T) notifies student (S) formally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via disciplinary referral document. § DOS contacts caregiver (C) and student (S) to alert problem with student and convey consequence of next infraction.	T, S, DOS, and C
CONSEQUENTIAL INFRACTION Intervention Meeting	§ Dean of Students meets with principal (P), school resource officer (SRO), student and caregiver to discuss next steps of consequence for repeated student infractions and movement to Tier 2: OSS level.	DOS, P, SRO, S, and C

Alpena Tier 2: Out of School Suspension (OSS) Level

Ø Discipline Policy in the Student Handbook

Ø Each teacher, administrator, or staff member administered within their own observation and control (i.e. classroom, hallway, assembly, etc.)

Ø Once student has reached this level in qualifying classes (i.e. 5 verbal warnings) and accrued 5 detention level, 5 ISS level, across the campus accrue in OSS level steps.

<i>Discipline Step</i>	<i>Action</i>	<i>Attendant(s)</i>
OSS Assignment 1 (1 day)	§ Teacher (T) notifies student (S) formally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via disciplinary referral document (Appendix C).	T, S, and DOS
OSS Assignment 2 (3 days)	§ Teacher (T) notifies student (S) formally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via disciplinary referral document.	T, S, and DOS

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OSS Assignment 3 (5 days)	§ Teacher (T) notifies student (S) formally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via disciplinary referral document. § DOS meets with School Resource Officer (SRO) to identify problem with student and propose solution. § DOS meets with student to identify problem and propose solution.	T, S, SRO and DOS
OSS Assignment 4 (7 days)	§ Teacher (T) notifies student (S) formally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via disciplinary referral document. § DOS meets with School Resource Officer (SRO) and student (S) to identify problem and propose solution. § DOS contacts caregiver (C) to identify problem with student and propose solution.	T, S, DOS, SRO, and C
OSS Assignment 5 (9 days)	§ Teacher (T) notifies student (S) formally. § Teacher records infraction and student initials acknowledging the action recorded. § Teacher notifies Dean of Students (DOS) via disciplinary referral document. § DOS contacts caregiver (C) and student (S) to alert problem with student and convey consequence of next infraction.	T, S, DOS, and C
CONSEQUENTIAL INFRACTION Intervention Meeting	§ Dean of Students meets with principal (P), school resource officer (SRO), student and caregiver to discuss next steps of consequence for repeated student infractions and movement to Tier 2: OSS level.	DOS, P, SRO, S, and C

Alpena Tier 3: Alternative School Option (AS)/Expulsion Level

Last Revised 06/27/2024

The following chart is a guideline to be used in administering punishments for violations of rules and policies, and state and federal regulations. Punishments for specific infractions may vary depending on the offense, the level of disruption caused, severity of the infraction, attitude of the offender, and frequency of an offender's violations

Offenses	Minimum Penalty	Maximum Penalty
Group I Offenses: - detention violations, - display of affection, - dress code violations, - falsify signatures or information on official school records, - gambling, - distribution of unapproved petitions or other printed matter, *possession of any laser device, *misuse of cell phone or electronic device, - harassment, - profanity, **vehicle violations, - violation of established school or classroom rules and regulations which may not be expressly listed in this policy, - misuse of medication or medical supplies - other disruptive behavior	Warning, *Device confiscated **Loss of privilege for multiple offenses	Expulsion
Computer Use Agreement Violations *Restricted Access: Restricted Access will allow a student to logon to district computers with access to resources required for classwork as determined by the	First Offense: *Restricted Access for 1 Week Second Offense: *Restricted access for 9 weeks, detention, parent notification.	Expulsion

principal or principal's designee. Teachers may request access to additional resources as needed.	Third Offense: * Restricted access for remainder of the school year, 1 day ISS, parent notification.	
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Offenses	Minimum Penalty	Maximum Penalty
Group II Offenses: ▪ cheating/plagiarism (grades 7-12 only) ▪ threatening to assault or abuse another student ▪ disrespect ▪ insubordination ▪ truancy ▪ excessive tardiness (three tardies in one class per semester) ▪ engaging in behavior designed to taunt, degrade, or ridicule another person on the basis of race, ethnicity, national origin, sex, or disability	Detention/C.P./ Auto '0" for assignment for cheating/Plagiarism.	Expulsion
Group III Offenses: ▪ arson ▪ assault and/or battery of another student ▪ bomb threats/false alarms ▪ extortion ▪ false accusation of a district employee ▪ fighting ▪ fireworks ▪ gang-related activities ▪ hazing ▪ indecent exposure ▪ possession of any look-alike weapon ▪ chronic disruption and repeated violations of school rules ▪ mob action	ISS/OSS	Expulsion

- obscene language, gestures or behavior
- possessing, viewing, distributing, transmitting sexually explicit or vulgar images or representation
- violation of any statutory or constitutional regulations, and other disruptive behavior

Arkansas Codes: Offenses and Penalties

In accordance with Arkansas statutes, the following minimum and maximum penalties are prescribed for the indicated offenses:

Offense	Minimum Penalty	Maximum Penalty
Willfully and intentionally assaulting or threatening to assault or abuse any school employee; communicating a death threat to any student or school employee.	10-day suspension	Expulsion
Bullying (A.C.A 6-18-514)	Detention/C.P.	Expulsion
Operating a vehicle on school grounds while using a wireless communication device.	Detention/CP	Expulsion
Possession of any firearm or other weapon prohibited on school campuses by law or by policies adopted by the school board, including knife capable of inflicting serious physical injury or death by cutting or stabbing and club. (A.C.A 6-18-502; A.C.A 5-73-119; A.C.A. 5-73-120)	Expulsion for 1 year, except that the Superintendent may modify such a suspension on a case-by-case basis	Permanent expulsion
Under the influence of, possessing, distributing, huffing, using, offering for sale, or selling, tobacco or tobacco products, beer, alcoholic beverages, or other illicit drugs or look-alike products or inhalants to produce euphoric effect. This includes the inappropriate use or sharing of prescription drugs.	Tobacco: Detention/C.P./ISS/ and Completion of Cessation Program Alcohol: Under the influence of, Use, Possession: 10 days ISS plus 90 day suspension from all extracurricular activities; Second offense: 10 days OSS with a recommendation for expulsion Drugs/Paraphernalia possession, use: Suspension w/ recommendation for expulsion Sale or distribution of Alcohol/Drugs/Paraphernalia : Suspension with recommendation for Expulsion	Expulsion

Use of any electronic communication or entertainment device that impedes the educational process, unless such possession has been specifically approved by the principal for medical or other compelling reasons. Note: Use of cellular phones is permitted before and after normal school hours and during lunch.	Warning and confiscation of device (parent must pick up)	Expulsion
Willfully or intentionally damaging, destroying, or stealing school or private property	ISS & restitution	Expulsion

C.P. – Corporal Punishment ISS - In School Suspension OSS - Out of School Suspension

4.17b—DISCIPLINE FOR IDEA STUDENTS

Discipline for Eligible Students with Disabilities Under the Individuals with Disabilities Education Act (IDEA) PL 94-142.

- Students with disabilities who engage in misbehavior are subject to disciplinary rules and procedures so long as such treatment does not abridge the right to free appropriate public education (FAPE).
- The individualized education program (IEP) team for students with disabilities should consider whether particular discipline procedures should be adopted for that student and be included in the IEP.
- Students with disabilities may be excluded from school.
- For a child with disabilities, a suspension or other disciplinary removal for more than 10 school days may not be considered without first determining that the student's misconduct is neither related to the handicapping condition nor due to an inappropriate placement.

COMMENTARY: An exclusion for longer than ten days constitutes a change in placement and is subject to procedural safeguards. Within the first ten days of suspension the district must:

- I. Convene the student's IEP team to: review the relationship between the student's misbehavior, as well as, the relationship between the student's educational placement and the misbehavior; and review the student's IEP and determine whether an alternate or interim change in placement is appropriate.
- II. Seek parental agreement to the change in placement.
 - If it is determined that a student's placement should be changed, the parents are entitled to prior written notice, and, if requested, a due process hearing.
 - When a student's misbehavior poses a danger to himself or the safety of others, and the student's parent refuses to agree upon a change of placement while administrative remedies are pursued, the district must either return the student to his current placement at the end of 10 days, or seek the court's assistance to change the student's placement pending the outcome of the administrative process.
 - No change may be made over the parent's objections until all administrative and judicial review proceedings have been completed. Further, the district must continue to provide educational services to the student during any disciplinary period that exceeds ten days.

4.17c—DUE PROCESS

Every student is entitled to due process in every instance of disciplinary action for which the student may be subjected to penalties of suspension or expulsion (Ark. State. Ann. 80-1516).

Prior to any suspension, the school principal or his/her designee shall advise the pupil in question of the particular misconduct of which he or she is accused as well as the basis for such accusation.

Due process is a minimum, (1) notice of charge, (2) opportunity for denial, (3) evidence against him/her side, (4) decision, and (5) timely notice and an opportunity for a fair hearing. The degree of due process required is directly proportional to the degree of loss to the student. Any penalty which effectively denies a student's education will require the greatest degree of due process. This means notice in writing at the time sufficient for the student to prepare for a full hearing before the local school board.

Legal Reference: A.C.A. § 6-18-502, A.C.A. § 6-17-113

4.18—PROHIBITED CONDUCT

Students and staff require a safe and orderly learning environment that is conducive to high student achievement. Certain student behaviors are unacceptable in such an environment and are hereby prohibited by the Board. Prohibited behaviors include, but shall not be limited to the following:

1. Disrespect for school employees and failing to comply with their reasonable directions or otherwise demonstrating insubordination;
2. Disruptive behavior that interferes with orderly school operations;
3. Willfully and intentionally assaulting or threatening to assault or physically abusing any student or school employee;
4. Possession of any weapon that can reasonably be considered capable of causing bodily harm to another individual;
5. Possession or use of tobacco in any form on any property owned or leased by any public school;
6. Willfully or intentionally damaging, destroying, or stealing school property;
7. Possession and use of a personal electronic device except as authorized by Policy 4.47 or by the student's IEP or 504 Plan;
8. Possession, selling, distributing, or being under the influence of an alcoholic beverage, any illegal drug, unauthorized inhalants, or the inappropriate use or sharing of prescription or over the counter drugs, or other intoxicants, or anything represented to be a drug;
9. Sharing, diverting, transferring, applying to others (such as needles or lancets), or in any way misusing medication or any medical supplies in their possession;
10. Inappropriate public displays of affection;
11. Cheating, copying, or claiming another person's work to be his/her own;
12. Gambling;
13. Inappropriate student dress;
14. Use of vulgar, profane, or obscene language or gestures;

15. Truancy;
16. Excessive tardiness;
17. Engaging in behavior designed to taunt, degrade, or ridicule another person on the basis of race, ethnicity, national origin, sex, sexual orientation, gender identity, or disability;
18. Possess, view, distribute or electronically transmit sexually explicit or vulgar images or representations, whether electronically, on a data storage device, or in hard copy form;
19. Hazing, or aiding in the hazing of another student;
20. Gangs or gang-related activities, including belonging to secret societies of any kind, are forbidden on school property. Gang insignias, clothing, "throwing signs" or other gestures associated with gangs are prohibited;
21. Sexual harassment;
22. Bullying;
23. Operating a vehicle on school grounds while using a wireless communication device;
24. Theft of another individual's personal property; and
25. Antisemitism.

The Board directs each school in the District to develop implementation regulations for prohibited student conduct consistent with applicable Board policy, State and Federal laws, and judicial decisions.

Cross References:

Prohibited Conduct #2— Policy # 4.20
Prohibited Conduct #3— Policy # 4.21, 4.26
Prohibited Conduct #4— Policy # 4.22
Prohibited Conduct #5— Policy # 4.23
Prohibited Conduct #7—Policy 4.47
Prohibited Conduct #8— Policy # 4.24
Prohibited Conduct # 13— Policy # 4.25
Prohibited Conduct # 14— Policy # 4.21
Prohibited Conduct # 15— Policy # 4.7
Prohibited Conduct # 16 — Policy # 4.9
Prohibited Conduct # 17— Policy # 4.43
Prohibited Conduct # 20— Policy # 4.26
Prohibited Conduct # 21—Policy # 4.27
Prohibited Conduct # 22— Policy # 4.43
Prohibited Conduct # 23— Policy # 4.47
Prohibited Conduct # 25— Policy # 4.65

Legal References: A.C.A. § 6-5-201

A.C.A. § 6-15-1005

A.C.A. § 6-16-2001 et seq.

A.C.A. § 6-18-222

A.C.A. § 6-18-502

A.C.A. § 6-18-514

A.C.A. § 6-18-515

A.C.A. § 6-18-707

A.C.A. § 6-21-609

A.C.A. § 27-51-1602

A.C.A. § 27-51-1603

A.C.A. § 27-51-1609

DESE Rules Governing Student Discipline and School Safety

Date Adopted: 7/20/2026

Last Revised: 9/1/2026

4.18a—ALCOHOL AND DRUG POLICY

Alpena School District prohibits any unauthorized student use, possession, sale or distribution of alcohol, controlled substances, imitation controlled substances, or drug paraphernalia. The District further prohibits students from participating in, visiting/resorting, (that is, being knowingly and intentionally present) where alcohol, controlled substances, imitation controlled substances, or drug paraphernalia are being used. These actions are prohibited in any school building, or on any other property owned or operated by the District, or at any school-sponsored activity, or on any property owned or operated by the District to transport students to or from any activity. These prohibitions apply whether or not the actions occur during regular school hours. **Students under a physician's care and taking prescribed medication must leave the medication in the office.**

STUDENT DRUG TESTING POLICY MISSION STATEMENT

The Alpena School District recognizes that drug abuse is a significant health problem for students, detrimentally affecting overall health, behavior, learning ability, reflexes, and the total development of each individual. The Alpena Board of Education is determined to help students by providing another option for them to say "No". Drug abuse includes, but is not limited to, the use of illegal drugs, alcohol, and the misuse of legal drugs and medications.

DEFINITIONS

Drug: Any substance considered illegal by Arkansas Statutes or which is controlled by the Food & Drug Administration unless prescribed by a licensed physician.

Activity Programs: Any Activity that meets the guidelines of the Arkansas Activities Association and/or sponsored by the Alpena School District. This includes all school sponsored academic, athletic/spirit and student groups.

School Year: From the first day of classes in the fall, unless the activity begins prior to the first day of classes, in which event, from the first day of practice through the last day of classes in the spring.

POLICY STATEMENT

Alpena School District ("the district") conducts a mandatory drug-testing program for students. Its purpose is threefold: (1) to provide for the health and safety of students in all Activity Programs grades 7 -12 and students who park on campus; (2) to undermine the effects of peer pressure by providing a legitimate reason for students to refuse to use illegal drugs; and (3) to encourage students who use drugs to participate in drug treatment programs.

PROCEDURES FOR STUDENTS

Consent: Each student wishing to participate in any activity program or park on campus, and the student's custodial parent or guardian, shall consent in writing to drug testing pursuant to the District's drug testing program. Written consent shall be in the form attached to this policy. No student shall be allowed to participate in any activity program or park on campus absent such consent.

SELECTION PROCESS

Student Selection: Random testing will be conducted monthly during the school year. Selection for random testing will be by lottery drawing from a "pool" of all students participating in activity programs or who park on campus in the district at the time of the drawing. The number of names drawn will be no less than 2% and no greater than 15% of the population. The superintendent or designee shall take all reasonable steps to assure the integrity, confidentiality and random nature of the selection process including, but not necessarily limited to, assuring that the names of all participating students are in the pool, assuring that students providing samples will be given the option of doing so alone in an individual stall with the door closed.

TESTING AGENCY

The district will choose a qualified agency for the purpose of processing sample results and maintaining privacy with respect to test results and related matters.

PRESCRIPTION MEDICATION

Students who are taking prescription medication may provide a copy of the prescription or a doctor's verification, which will be considered in determining whether a "positive" test has been satisfactorily explained. That documentation will be forwarded to the testing lab with instructions for the lab to consider the student's use of such medication to assure the accuracy of the result. Students who refuse to provide verification and test positive will be subject to the actions specified below for "positive tests."

SCOPE OF TESTS

Student samples will not be screened for the presence of any substances other than an illegal drug or for the existence of any physical condition other than drug intoxication. As a quality control measure, the school reserves the right to send any urine sample that appears unusual in color and/or consistency to a laboratory for testing and confirmation or non-confirmation.

RECORDS

The results of drug tests pursuant to this policy will not be documented in any student's academic records. The results will be reported only to the superintendent or his designee. All records concerning chemical abuse testing will be maintained by the Superintendent or his/her designee in a separate, locked file. The files on each student will be destroyed upon graduation or two years after termination of enrollment. A student and the student's custodial parent/legal guardian may obtain a copy of his/her chemical abuse testing records upon written request.

PROCEDURES IN THE EVENT OF A POSITIVE RESULT

Whenever a student's test result indicates the presence of illegal drugs ("positive test"), the following will occur: If the sample tests positive, a custodial parent or legal guardian will be notified and a meeting will be scheduled with the Superintendent or his designee, the student, the custodial parent or legal guardian, and the student's principal and head coach or sponsor. For a positive result, the student will be recommended for counseling. The Alpena School District offers School Based Mental Health services on each campus. If any charge is incurred, it will be the responsibility of the parents. The student will be placed on probation and not be allowed to participate in competitions, presentations and activities of Alpena School District or park on campus for a specified period of time, as described below. A student may be required to practice or participate in off-season activities at the head coach's or sponsor's discretion. He/she cannot compete or dress out for any competition.

FIRST POSITIVE RESULT – PARTICIPATION IN COUNSELING

With the consent of the student and his or her parents/guardians, the superintendent or designee may reduce the suspension so that the student is only prohibited for participating in covered activities for a total of ten (10) *participation days* as long as the student meets the following requirements: 1. Within one (1) week of the conference, the student must receive or be enrolled in substance abuse counseling or School Based Mental Health services. The parents/guardians are responsible for all costs associated with the counseling. The parent/guardian must provide written

verification that the student has been seen for counseling at least once before the student is allowed to begin participation again. If the student does not attend counseling as promised, the district will immediately implement the original consequences. 2. The student will be required to submit to drug tests for the rest of the school year at the expense of the parent/guardian. On day eleven, eligibility will be restored provided student submits to a school test with negative results.

FIRST POSITIVE RESULT – REFUSAL OF COUNSELING

For the first positive result; the student will be suspended from participating in activities or parking on campus for 20 school days. On day twenty-one, the student will be allowed to be retested (at the expense of parent-guardian). If the tests results are found to be negative, the student will again become eligible for competitions, presentations and activities relating to Alpena School District and parking on campus. However, the student must submit to a mandatory school drug screen or lab test on a monthly basis at the expense of the parent/guardian for the next three months.

SECOND POSITIVE RESULT – PARTICIPATION IN COUNSELING

With the consent of the student and his or her parents/guardians, the superintendent or designee may reduce the suspension so that the student is only prohibited from participating in parking and district sponsored activities for a total of forty-five (45) school days as long as the student meets the following requirements: 1. Within one (1) week of the conference, the student must receive or be enrolled in the substance abuse counseling or School Based Mental Health services. The parents/guardians are responsible for all cost associated with the counseling. The parent/guardian must provide written verification that the student has been seen for counseling at least once before the student is allowed to begin participation again. If the student does not attend counseling as promised, the district will immediately implement the original consequences. 2. The student will be required to submit to monthly drug test for the rest of the school year at the expense of the parent/guardian.

SECOND POSITIVE RESULT – REFUSAL OF COUNSELING

For the second positive result in the same year or any two consecutive calendar years, the student will be suspended from participating in activities or parking on campus for 90 school days.

THIRD POSITIVE RESULT

For the third positive result, the student will be suspended from participating in activities or parking on campus for the remainder of his/her enrollment with the district. The parent/guardian may appeal to the superintendent.

NON-PUNITIVE NATURE OF POLICY

No student shall be penalized academically for testing positive for illegal drugs. Information regarding the results of drug tests will not be disclosed to criminal or juvenile authorities absent legal compulsion by valid and binding subpoena or other legal process, which the district shall not solicit. In the event of service of any such subpoena or legal process, the student and the student's custodial parent or legal guardian will be notified as soon as possible by the district.

ALPENA DRUG TESTING POLICY GENERAL AUTHORIZATION FORM

I understand that my performance as a participant or a driver and the reputation of my school are dependent, in part, on my conduct as an individual. I have read and understand the contents of the Alpena School District Drug Testing Policy. I hereby agree to accept and abide by the policies, standards, rules and regulations set forth by Alpena School District Board and the sponsors for the activity in which I participate. I also authorize Alpena School District to conduct breathscan or a urinalysis to test for drugs and/or alcohol use. I also authorize the Alpena School District to conduct random tests during the current school year. I authorize the release of information concerning the results of such a test to the Alpena School District and to the parents and/or guardians of the student. This shall be deemed a consent pursuant to the Family Education Right to Privacy Act for the release of above information to the parties named above.

The student will check all of the clubs, activities, and athletic activities that he/she will participate in THIS school year.

Student Clubs and Activities:

☐ Driving to School ☐ Baseball ☐ Basketball ☐ Band/Choir ☐ Key Club ☐ Cross Country ☐ Chess ☐ Photography Club ☐ Quiz Bowl ☐ FCCLA ☐ FFA Organization ☐ First Responders ☐ Yearbook ☐ other _____	☐ History Club ☐ Art Club ☐ Basketball ☐ Key Club ☐ Cheerleading ☐ Radio Club ☐ Math Club ☐ Golf ☐ FBLA ☐ Shooting ☐ Skills USA VISA ☐ Archery ☐ G/T ☐ other _____	☐ Jazz Band ☐ Junior BETA ☐ Senior BETA ☐ Band/Choir ☐ Library Club ☐ Class officer ☐ Student Council ☐ Drama Club ☐ Science Club ☐ Track ☐ Volleyball ☐ Fire Marshal ☐ other _____ ☐ other _____
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Student Name (Printed) _____

Student Signature _____ Date _____

Custodial Parent/Legal Guardian Signature _____ Date _____

4.19a—CONDUCT TO AND FROM SCHOOL AND TRANSPORTATION ELIGIBILITY

Students are subject to the same rules of conduct while traveling to and from school as they are while on school grounds. Appropriate disciplinary actions may be taken against commuting students who violate student code of conduct rules.

The preceding paragraph also applies to student conduct while on school buses. Students shall be instructed in safe riding practices. The driver of a school bus shall not operate the school bus until every passenger is seated. Disciplinary measures for problems related to bus behavior shall include corporal punishment, suspension or expulsion from school, or suspending or terminating the student's transportation privileges. Transporting students to and from school who have lost their transportation privileges shall become the responsibility of the student's parent or legal guardian.

Students are eligible to receive district bus transportation if they meet the school district's requirements.

Legal Reference: A.C.A. § 6-19-119 (b), AR Division of Academic Facilities and Transportation
Rules Governing Maintenance and Operations of AR Public School Buses and Physical
Examinations of School Bus Drivers 4.0

4.19b—BUS POLICIES

The District's policies apply to students while traveling to and from school or to and from a school activity to the same extent as if the students were on school grounds. Appropriate disciplinary actions may be taken against commuting students who violate the District's policies or behavioral expectations.

The preceding paragraph also applies to student conduct while on school buses. Students shall be instructed in safe riding practices. The driver of a school bus shall not operate the school bus until every passenger is seated. In addition to other disciplinary measures provided for violations of the District's policies or expectations, the student's bus transportation privileges may be suspended or terminated for violations of the Student Code of Conduct related to bus behavior.

Students are eligible to receive district bus transportation if they meet the following requirements.²The transportation to and from school of students who have lost their bus transportation privileges is the responsibility of the student's parent or guardian.

It is a privilege, not a right, to ride the bus to school or to extracurricular activities and bus safety is of the utmost importance. Our bus drivers are qualified people and have met all of the State requirements for driving a school bus. By state law, they are in charge while the children are on the bus. Our bus drivers have been instructed to report any child whose conduct may place the safety of the other children in jeopardy. All students are expected to ride their regular bus directly home. If for some reason a child needs to ride another bus, his/her parent should send a written note

specifying the reason for the bus change and have it approved by the principal or his designee. Changes in transportation must be made to the respective school office by 2:30 on the day of the request.

1. Be at the bus stop at the scheduled time. Stand back about ten feet from the bus stop and wait until the door is open before moving closer to the bus. Do not play on the highway or road. If you miss the bus, do not attempt to hitchhike or walk to or from school.
2. While loading or unloading, enter or leave the bus orderly and quickly.
3. While riding the bus, students are under the supervision of the driver and must obey the driver at all times.
4. Students are expected to conduct themselves in a manner that will not distract the attention of their driver or disturb other riders on the bus (which includes keeping your hands to yourself, attend to your own matters, leave other pupils alone, and be reasonably quiet).
5. No knives, sharp objects of any kind, firearms, pets, or other living animals, etc. are allowed.
6. You are not to tamper with any of the safety devices such as door latches, fire extinguishers, etc. Pupils must stay seated while the bus is in motion and must not move while it is stopped, except as the driver directs. Pupils are not to put their hands, arms, heads, or bodies out of the window. Do not yell at anyone outside the bus.
7. Do not ask the driver to let you off the bus in town, at the store, to get mail out of the box, or any place except at your regular stop.
8. Students are not to deface the bus or any school property. Do not write on the bus or damage the seats, etc. Do not throw paper, food, or other objects on the floor of the bus. Do not eat on the bus. No tobacco products are allowed on the school bus. Keep the aisle of the bus clear of books, lunches, coats, etc. Do not put feet in the aisle.
9. If you must cross the road or highway to enter the bus, try always to be on the right side of the road waiting on the bus. If you should arrive at the stop just as the driver has, wait for his signal to cross in front of the bus. (Unless the driver directs you differently.)
10. All preceding bus policy rules apply to any extracurricular trips.
11. Violation of School Bus Policies may result in loss of privilege of riding the bus or other disciplinary action.

Legal References:

A.C.A. § 5-60-122

A.C.A. § 6-19-119 (b)

Ark. Division of Academic Facilities and Transportation Rules Governing Maintenance and Operations of Ark. Public School Buses and Physical Examinations of School Bus Drivers 4.0

Last Revised: 7/15/19

4.19c—EMERGENCY CLOSINGS

School closings due to bad roads, inclement weather, or any emergency conditions that may endanger students will be announced via School Messenger and Springfield television. Announcements will be made regarding school reopening on the same way. It will not be necessary to call the school.

Last Revised 7-3-18

4.20—DISRUPTION OF SCHOOL

Definitions

"Appropriate interim learning environment" means an appropriate learning environment that is used for a period of time not to exceed ten (10) days.

"Appropriate learning environment" means a setting within the District that provides a similar structure to the following, without limitation:

1. A classroom; or
2. In-school suspension.

"Violent or abusive behavior" means, without limitation:

- a. Using threatening language;
- b. Throwing an item that risks or causes:
 - Harm to another individual;
 - Injury to another individual; or
 - Damage to property;
- c. Physically abusing a teacher or another student; or
- d. Any other similar action that presents a physical danger or a threat of physical danger to a teacher or another student.

No student shall by the use of violence, force, noise, coercion, threat, intimidation, fear, passive resistance, or any other conduct, intentionally cause the disruption of any lawful mission, process, or function of the school, or engage in any such conduct for the purpose of causing disruption or obstruction of any lawful mission, process, or function. Nor shall any student encourage any other student to engage in such activities.

Disorderly activities by any student or group of students that adversely affect the school's orderly educational environment shall not be tolerated at any time on school grounds.

A teacher may, but is not required to, remove a student from class:

- Who has been documented by the teacher as repeatedly interfering with the teacher's ability to teach the students in the class or with the ability of the student's classmates to learn; or
- Whose behavior is so unruly, disruptive, violent, or abusive that it seriously interferes with the teacher's ability to teach the students, the class, or with the ability of the student's classmates to learn.

A student who is removed from class shall:

- o Be sent to the office of the principal or the principal's designee;
- o Be escorted from the classroom by the school administration if the student refuses to leave the classroom voluntarily;
- o Not be returned to the teacher's class until a conference is held; and
- o Be placed in another appropriate classroom learning environment until the conference is completed.

The conference shall be held for the purpose of:

1. Determining the causes of the problem that led to the student's removal and possible solutions;
2. Serving as a manifestation determination review if the student removed from the class is a student with a disability;
3. Determining if a behavioral threat assessment is necessary for the student who was removed from the class due to violent behavior.

The following individuals shall be present at the conference:

- a. The principal or the principal's designee;
- b. The teacher;
- c. The school counselor;
- d. A 504/special education representative (if applicable);
- e. The parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis; and
- f. The student, if appropriate.

The failure of the parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis to attend the conference shall not prevent the conference from being held nor prevent any action from being taken as a result of that conference.

Following the conclusion of the conference, the principal or the principal's designee may take any of the following actions against a student who was removed from class:

- § Place the student into another appropriate learning environment or into in-school suspension;
- § Except for a student who was removed for violent or abusive behavior, return the student to the class; or
- § Take other appropriate action consistent with the District's discipline policy, state law, and federal law.

A student who is removed from class three (3) times during the same school year shall be placed in another appropriate learning environment for the remainder of the school year.

The District shall follow all requirements under the IDEA and 504 for students with a disability, including those surrounding a change in placement.

Legal References: A.C.A. § 6-18-511
DESE Rules Governing Student Discipline and School Safety

Date Adopted: 7/20/2026

Last Revised: 9/1/2026

4.21—STUDENT ASSAULT OR BATTERY

A student shall not threaten, physically abuse, attempt to physically abuse, or behave in such a way as to be perceived to threaten bodily harm to any other person (student, school employee, or school visitor). Any gestures; vulgar, abusive, or insulting language; taunting, threatening, harassing, or intimidating remarks by a student toward another person that threatens their well-being is strictly forbidden. This includes, but is not limited to, fighting, racial, ethnic, religious, or sexual slurs.

Furthermore, it is unlawful, during regular school hours, and in a place where a public school employee is required to be in the course of his or her duties, for any person to address a public school employee using language which, in its common acceptance, is calculated to:

- a. Cause a breach of the peace;
- b. Materially and substantially interfere with the operation of the school; or
- c. Arouse the person to whom it is addressed to anger, to the extent likely to cause imminent retaliation.

Students guilty of such an offense may be subject to legal proceedings in addition to any student disciplinary measures.

Legal References: A.C.A. § 6-17-106
DESE Rules Governing Student Discipline and School Safety

Date Adopted: 7/20/2026

Last Revised: 9/1/2026

4.22—WEAPONS AND DANGEROUS INSTRUMENTS

Definitions

"Firearm" means any device designed, made, or adapted to expel a projectile by the action of an explosive or any device readily convertible to that use.

“Possession” means having a weapon on the student's body or in an area under the student's control.

“Weapon” means any:

- Firearm;
- Knife;
- Razor;
- Ice pick;
- Dirk;
- Box cutter;
- Nunchucks;
- Pepper spray, mace, or other noxious spray;
- Explosive;
- Taser or other instrument that uses electrical current to cause neuromuscular incapacitation; or
- Any other instrument or substance capable of causing bodily harm.

No student, except for Military personnel (such as ROTC cadets) acting in the course of their official duties or as otherwise expressly permitted by this policy, shall possess a weapon, display what appears to be a weapon, or threaten to use a weapon before or after school while:

- o In a school building;
- o On or about school property;
- o At any school sponsored activity or event;
- o On route to or from school or any school sponsored activity; or
- o Off the school grounds at any school bus stop.

If a student discovers prior to any questioning or search by any school personnel that he/she has accidentally brought a weapon, other than a firearm, to school on his/her person, in a book bag/purse, or in his/her vehicle on school grounds, and the student informs the principal or a staff person immediately, the student will not be considered to be in possession of a weapon unless it is a firearm. The weapon shall be confiscated and held in the office until such time as the student's parent/legal guardian shall pick up the weapon from the school's office. Repeated offenses are unacceptable and shall be grounds for disciplinary action against the student as otherwise provided for in this policy.

Except as permitted in this policy, students found to be in possession on the school campus of a firearm shall be recommended for expulsion for a period of one (1) year. The superintendent shall have the discretion to modify such expulsion recommendation for a student on a case-by-case basis.¹

Parents or legal guardians of students expelled under this policy shall be given a copy of the current laws regarding the possibility of parental responsibility for allowing a child to possess a firearm on school property.² Parents or legal guardians shall sign a statement acknowledging that they have read and understand said laws prior to

readmitting the student. Parents or legal guardians of a student enrolling from another school after the expiration of an expulsion period for a firearm policy violation shall also be given a copy of the current laws regarding the possibility of parental responsibility for allowing a child to possess a firearm on school property. The parents or legal guardians shall sign a statement acknowledging that they have read and understand said laws prior to the student being enrolled in school.

The mandatory expulsion requirement for possession of a firearm does not apply to a firearm brought to school for the purpose of participating in activities approved and authorized by the district that include the use of firearms. Such activities may include ROTC programs; hunting safety or military education; or before or after-school hunting or rifle clubs. Firearms brought to school for such purposes shall be brought to the school employee designated to receive such firearms. The designated employee shall store the firearms in a secure location until they are removed for use in the approved activity.

The district shall report any student who brings a firearm to school to the criminal justice system or juvenile delinquency system by notifying local law enforcement.

Cross Reference: 4.31—EXPULSION

Legal References: A.C.A. § 5-4-201

A.C.A. § 5-4-401

A.C.A. § 5-27-210

A.C.A. § 5-73-119(b) (e)(8), (9), (10)

A.C.A. § 5-73-133

A.C.A. § 6-18-502

A.C.A. § 6-18-507

A.C.A. § 6-21-608

DESE Rules Governing Student Discipline and School Safety

20 USC § 7961

Date Adopted: 7/20/2026

Last Revised: 9/1/2026

4.23—TOBACCO, ELECTRONIC NICOTINE DELIVERY SYSTEMS, AND RELATED PRODUCTS

Smoking or use of tobacco or products containing tobacco in any form (including, but not limited to, cigarettes, cigars, chewing tobacco, and snuff) in or on any real property owned or leased by a District school, including school buses owned or leased

by the District, is prohibited. Students who violate this policy may be subject to legal proceedings in addition to student disciplinary measures.

With the exception of recognized tobacco cessation products, this policy's prohibition includes any tobacco or nicotine delivery system or product. Specifically, the prohibition includes any product that is manufactured, distributed, marketed, or sold as e-cigarettes, e-cigars, e-pipes, or under any other name or descriptor.

Legal References: A.C.A. § 6-21-609

A.C.A. § 20-65-103

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

4.24—DRUGS AND ALCOHOL

An orderly and safe school environment that is conducive to promoting student achievement requires a student population free from the deleterious effects of alcohol and drugs. Their use is illegal, disruptive to the educational environment, and diminishes the capacity of students to learn and function properly in our schools.

Therefore, no student in the Alpena School District shall possess, attempt to possess, consume, use, distribute, sell, buy, attempt to sell, attempt to buy, give to any person, or be under the influence of any substance as defined in this policy, or what the student represents or believes to be any substance as defined in this policy.

This policy applies to any student who:

- Is on or about school property;
- Is in attendance at school or any school sponsored activity;
- Has left the school campus for any reason and returns to the campus; or
- Is on route to or from school or any school sponsored activity.

Prohibited substances shall include, but are not limited to:

- o Alcohol, or any alcoholic beverage;
- o Inhalants or any ingestible matter that alter a student's ability to act, think, or respond;
- o LSD or any other hallucinogen;
- o Marijuana;¹
- o Cocaine, heroin, or any other narcotic drug;
- o PCP;
- o Amphetamines;
- o Steroids;
- o "Designer drugs";

- o Look-alike drugs; or
- o Any controlled substance.

The sale, distribution, or attempted sale or distribution of over-the-counter (OTC) medications, dietary supplement or other perceived health remedy not regulated by the US Food and Drug Administration, or prescription drugs is prohibited. The possession or use of OTC medications, dietary supplement or other perceived health remedy not regulated by the US Food and Drug Administration, or prescription drugs is prohibited except as permitted under Policy 4.35—STUDENT MEDICATIONS.

Cross Reference: 4.35—STUDENT MEDICATIONS

Legal References: A.C.A. § 6-18-502
DESE Rules Governing Student Discipline and School Safety
Arkansas Constitution Amendment 98 § 6

Date Adopted: 7/20/2026

Last Revised: 9/1/2026

4.25—STUDENT DRESS AND GROOMING

The Alpena Board of Education recognizes that dress can be a matter of personal taste and preference. At the same time, the District has a responsibility to promote an environment conducive to student learning. This requires limitations to student dress and grooming that could be disruptive to the educational process because they are immodest, disruptive, unsanitary, unsafe, could cause property damage, or are offensive to common standards of decency.

The board recognizes that dress and grooming may substantially disrupt the educational process or interfere with rights or opportunities of others to learn or teach and wishes to act to avoid such disruptions.

The Alpena School Discipline Committee has formulated the following suggested guidelines for dress while on campus or at school sponsored events:

- Students should practice good personal hygiene.
- Clothing should be neat and clean.
- Since the major purpose of school is to provide an atmosphere conducive to learning, any mode of dress which attracts an unusual amount of attention is unacceptable.
- Articles of clothing, badges, buttons, or any other form of advertising of anything illegal or inappropriate for youngsters such as tobacco, alcohol, or drugs are prohibited.
- Clothing with suggestive phrases or pictures, or advertising inappropriate displays or messages may not be worn
- Excessively large or baggy/sagging clothes are prohibited. Approved garments must be of a length and fit that are suitable to the build and stature of the student.

Head Coverings/Sunglasses

- Hats/Caps or any head coverings(hoods), except for approved spirit days or as part of a uniform, are not to be worn inside buildings.
- Sunglasses may not be worn in buildings.

Upper Garments

- Bare midriffs or bare backs are prohibited. Garments must be of appropriate length, cut and/or fit to meet these requirements while sitting, standing, raising hands, and/or bending.
- See-through tops for boys and girls, muscle shirts and tank tops with straps less than 2 inches in width, sleeveless shirts with large arm holes, low-cut revealing shirts, strapless tops, crop tops, immodestly low cut necklines, off the shoulder tops are prohibited.
- Clothing that exposes the breast of a female is prohibited.

Lower Garments

- Clothing that exposes undergarments or the buttocks is prohibited.
- Bike shorts and bathing/swimming wear are prohibited.
- Shorts and skirts must be of modest length and must cover the upper thigh while sitting, standing, or bending.
- Tights or transparent/translucent leggings worn as outerwear are prohibited.
- Opaque leggings may be worn as long as the accompanying top extends to cover the buttocks while sitting, standing, raising hands, and/or bending.
- Jeans/pants or shorts with holes that reveal skin above mid thigh are prohibited.

Footwear

- Students shall wear appropriate footwear for protection and hygienic reasons while on school grounds, participating in school activities, or on school transportation. House slippers, and shower shoes are examples of unacceptable footwear.

Accessories

- Piercings may be prohibited due to health risks and classroom distraction.

A student shall not be disciplined or discriminated against based upon the student's natural, protective, or cultural hairstyle. A student's natural, protective, or cultural hairstyle includes without limitation afros, dreadlocks, twists, locs, braids, cornrow braids, Bantu knots, curls, and hair styled to protect hair texture or for cultural significance.

Violations may result in assignment to detention, ISS, OSS, or corporal punishment. Repeat offenders will be dealt with more severely.

Legal References:

A.C.A. § 6-10-137

A.C.A. § 6-18-502(c)(1),

A.C.A. § 6-18-503(c)

Last Revised: 7/17/25

4.26—GANGS AND GANG ACTIVITY

The Board is committed to ensuring a safe school environment conducive to promoting a learning environment where students and staff can excel. An orderly environment cannot exist where unlawful acts occur causing fear, intimidation, or physical harm to students or school staff. Gangs and their activities create such an atmosphere and shall not be allowed on school grounds or at school functions.

The following actions are prohibited by students on school property or at school functions:

1. Wearing or possessing any clothing, bandanas, jewelry, symbol, or other sign associated with membership in, or representative of, any gang;
2. Engaging in any verbal or nonverbal act such as throwing signs, gestures, or handshakes representative of membership in any gang;
3. Recruiting, soliciting, or encouraging any person through duress or intimidation to become or remain a member of any gang; and/or
4. Extorting payment from any individual in return for protection from harm from any gang.

Students found to be in violation of this policy shall be subject to disciplinary action up to and including expulsion.

Students arrested for gang related activities occurring off school grounds shall be subject to the same disciplinary actions as if they had occurred on school grounds.

Legal References: A.C.A. § 5-74-201 et seq.

A.C.A. § 6-15-1005(b)(2)

A.C.A. § 5-74-201

Last Revised: 7-15-19

4.27—STUDENT SEXUAL HARASSMENT

The Alpena School District is committed to providing an academic environment that treats all students with respect and dignity. Student achievement is best attained in an atmosphere of equal educational opportunity that is free of discrimination. Sexual harassment is a form of discrimination that undermines the integrity of the educational environment and will not be tolerated.

The District believes the best policy to create an educational environment free from sexual harassment is prevention; therefore, the District shall provide informational materials and training to students, parents/legal guardians/other responsible adults, and employees on sexual harassment. The informational materials and training on sexual harassment shall be age appropriate and, when necessary, provided in a language other than English or in an accessible format. The informational materials and training shall include, but are not limited to:

- o The nature of sexual harassment;

- o The District's written procedures governing the formal complaint grievance process;¹
- o The process for submitting a formal complaint of sexual harassment;
- o That the district does not tolerate sexual harassment;
- o That students can report inappropriate behavior of a sexual nature without fear of adverse consequences;
- o The supports that are available to individuals suffering sexual harassment; and
- o The potential discipline for perpetrating sexual harassment.

Definitions

"Complainant" means an individual who is alleged to be the victim of conduct that could constitute sexual harassment.

"Education program or activity" includes locations, events, or circumstances where the District exercised substantial control over both the respondent and the context in which the sexual harassment occurs.

"Formal complaint" means a document filed by a complainant or signed by the Title IX Coordinator alleging sexual harassment against a respondent and requesting an investigation of the allegation of sexual harassment.

"Respondent" means an individual who has been reported to be the perpetrator of conduct that could constitute sexual harassment.

"Sexual harassment" means conduct on the basis of sex that satisfies one or more of the following:

1. A District employee:
 - a. Conditions the provision of an aid, benefit, or service of the District on an individual's participation in sexual conduct;² or
 - b. Uses the rejection of sexual conduct as the basis for academic decisions affecting that individual;²
2. The conduct is:
 - a. Unwelcome; and
 - b. Determined by a reasonable person to be so severe, pervasive, and objectively offensive that it effectively denies a person equal access to the District's education program or activity; or

3. Constitutes:

- a. Sexual assault;
- b. Dating violence
- c. Domestic violence; or
- d. Stalking.

“Supportive measures” means individualized services that are offered to the complainant or made available to the respondent designed to restore or preserve equal access to the District’s education program or activity without unreasonably burdening the other party. The supportive measures must be non-disciplinary and non-punitive in nature; offered before or after the filing of a formal complaint or where no formal complaint has been filed; and offered to either party as appropriate, as reasonably available, and without fee or charge. Examples of supportive measures include, but are not limited to: measures designed to protect the safety of all parties or the District’s educational environment, or deter sexual harassment; counseling; extensions of deadlines or other course-related adjustments; modifications of work or class schedules; campus escort services; mutual restrictions on contact between the parties; changes in work or class locations; leaves of absence; and increased security and monitoring of certain areas of the campus.

Within the educational environment, sexual harassment is prohibited between any of the following: students; employees and students; and non-employees and students.

Actionable sexual harassment is generally established when an individual is exposed to a pattern of objectionable behaviors or when a single, serious act is committed. What is, or is not, sexual harassment will depend upon all of the surrounding circumstances and may occur regardless of the sex(es) of the individuals involved. Depending upon such circumstances, examples of sexual harassment include, but are not limited to:

- Making sexual propositions or pressuring for sexual activities;
- Unwelcome touching;
- Writing graffiti of a sexual nature;
- Displaying or distributing sexually explicit drawings, pictures, or written materials;
- Performing sexual gestures or touching oneself sexually in front of others;
- Telling sexual or crude jokes;
- Spreading rumors related to a person’s alleged sexual activities;
- Discussions of sexual experiences;

- Rating other students or employees as to sexual activity or performance;
- Circulating or showing e-mails or Web sites of a sexual nature;
- Intimidation by words, actions, insults, or name calling; and
- Teasing or name-calling related to sexual characteristics or the belief or perception that an individual is not conforming to expected gender roles or conduct or is homosexual, regardless of whether or not the individual self-identifies as homosexual or transgender.

Students who believe they have been subjected to sexual harassment, or the parent/legal guardian/other responsible adult of a student who believes their student has been subjected to sexual harassment, are encouraged to bring their concerns to **any** District staff member, including a counselor, teacher, Title IX coordinator, or administrator. If the District staff member who received a report of alleged sexual harassment is not the Title IX Coordinator, then the District staff person shall inform the Title IX Coordinator of the alleged sexual harassment. As soon as reasonably possible after receiving a report of alleged sexual harassment from another District staff member or after receiving a report directly through any means, the Title IX Coordinator shall contact the complainant to:

- § Discuss the availability of supportive measures;
- § Consider the complainant's wishes with respect to supportive measures;
- § Inform the complainant of the availability of supportive measures with or without the filing of a formal complaint; and
- § explain to the complainant the process for filing a formal complaint.

Supportive Measures

The District shall offer supportive measures to the complainant and make supportive measures available to the respondent that are designed to restore or preserve equal access to the District's education program or activity without unreasonably burdening the other party before or after the filing of a formal complaint or where no formal complaint has been filed. The District shall provide individualized supportive measures to the complainant unless declined in writing by the complainant and shall provide individualized supportive measures that are non-disciplinary and non-punitive to the respondent. A complainant who initially declined the District's offer of supportive measures may request supportive measures at a later time and the District shall provide individualized supportive measures based on the circumstances when the subsequent request is received.

Formal Complaint

A formal complaint may be filed with the Title IX Coordinator in person, by mail, or by email. Upon receipt of a formal complaint, a District shall simultaneously provide the following written notice to the parties who are known:

- o Notice of the District's grievance process and a copy of the procedures governing the grievance process;
- o Notice of the allegations of sexual harassment including sufficient details known at the time and with sufficient time to prepare a response before any initial interview. Sufficient details include:
 - The identities of the parties involved in the incident, if known;
 - The conduct allegedly constituting sexual harassment; and
 - The date and location of the alleged incident, if known;
- o A statement that the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility is made at the conclusion of the grievance process;
- o That the parties may have an advisor of their choice, who may be, but is not required to be, an attorney;
- o That the parties may inspect and review evidence relevant to the complaint of sexual harassment; and
- o That the District's code of conduct prohibits knowingly making false statements or knowingly submitting false information during the grievance process.

If, in the course of an investigation, the District decides to investigate allegations about the complainant or respondent that are not included in the previous notice, the District shall simultaneously provide notice of the additional allegations to the parties whose identities are known.

The District may consolidate formal complaints of allegations of sexual harassment where the allegations of sexual harassment arise out of the same facts or circumstances and the formal complaints are against more than one respondent; or by more than one complainant against one or more respondents; or by one party against the other party. When the District has consolidated formal complaints so that the grievance process involves more than one complainant or more than one respondent, references to the singular "party", "complainant", or "respondent" include the plural, as applicable.

When investigating a formal complaint and throughout the grievance process, a District shall:

- Ensure that the burden of proof and the burden of gathering evidence sufficient to reach a determination regarding responsibility rest on the District and not on the parties;
- Not require, allow, rely upon, or otherwise use questions or evidence that constitute, or seek disclosure of, information protected under a legally recognized privilege or access, consider, disclose, or otherwise use a party's records that are made or maintained by a physician, psychiatrist, psychologist, or other recognized professional or paraprofessional acting in the professional's or paraprofessional's capacity, or assisting in that capacity, and which are made and maintained in connection with the provision of treatment to the party unless the District obtains the parent, legal guardian, or other responsible adult of that party's voluntary, written consent or that party's voluntary, written consent if the party is over the age of eighteen (18) to do so for the grievance process;
- Provide an equal opportunity for the parties to present witnesses, including fact and expert witnesses, and other inculpatory and exculpatory evidence;
- Not restrict the ability of either party to discuss the allegations under investigation or to gather and present relevant evidence;
- Provide the parties with the same opportunities to have others present during any grievance proceeding, including the opportunity to be accompanied to any related meeting or proceeding by the advisor of their choice, who may be, but is not required to be, an attorney, and not limit the choice or presence of advisor for either the complainant or respondent in any meeting or grievance proceeding;
- Provide, to a party whose participation is invited or expected, written notice of the date, time, location, participants, and purpose of all hearings, investigative interviews, or other meetings, with sufficient time for the party to prepare to participate;
- Provide both parties an equal opportunity to inspect and review any evidence obtained as part of the investigation that is directly related to the allegations raised in the formal complaint so that each party can meaningfully respond to the evidence prior to the conclusion of the investigation; this includes evidence:
 - § Whether obtained from a party or other source;
 - § The District does not intend to rely upon in reaching a determination regarding responsibility; and
 - § That is either Inculpatory or exculpatory; and
- Create an investigative report that fairly summarizes relevant evidence.

At least ten (10)³ days prior to completion of the investigative report, the District shall send to each party and the party's advisor, if any, the evidence subject to inspection

and review in an electronic format or a hard copy. The parties shall have at least ten (10)³ days to submit a written response to the evidence. The investigator will consider the written responses prior to completion of the investigative report. All evidence subject to inspection and review shall be available for the parties' inspection and review at any meeting to give each party equal opportunity to refer to such evidence during the meeting.

After the investigative report is sent to the parties, the decision-maker shall:

- o Provide each party the opportunity to submit written, relevant questions that a party wants asked of any party or witness;
- o Provide each party with the answers;
- o Allow for additional, limited follow-up questions from each party; and
- o Provide an explanation to the party proposing the questions any decision to exclude a question as not relevant. Specifically, questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant, unless such questions and evidence about the complainant's prior sexual behavior are offered to prove that someone other than the respondent committed the conduct alleged by the complainant, or if the questions and evidence concern specific incidents of the complainant's prior sexual behavior with respect to the respondent and are offered to prove consent.

No earlier than ten (10) days following the completion of the investigation period, the decision-maker, who cannot be the same person as the Title IX Coordinator or the investigator, shall issue a written determination regarding responsibility. The written determination shall include—

1. Identification of the allegations potentially constituting sexual harassment;
2. A description of the procedural steps taken from the receipt of the formal complaint through the determination, including:
 - a. Any notifications to the parties;
 - b. Interviews with parties and witnesses;
 - c. site visits;
 - d. Methods used to gather other evidence; and
 - e. Hearings held;
3. Findings of fact supporting the determination;
4. Conclusions regarding the application of the District's code of conduct to the facts;
5. A statement of, and rationale for, the result as to each allegation, including:
 - a. A determination regarding responsibility;
 - b. Any disciplinary sanctions imposed on the respondent; and

c. Whether remedies designed to restore or preserve equal access to the District's education program or activity will be provided by the District to the complainant; and

6. The procedures and permissible bases for the complainant and respondent to appeal.

The written determination shall be provided to the parties simultaneously. The determination regarding responsibility shall become final on the earlier of:

- If an appeal is not filed, the day after the period for an appeal to be filed expires; or
- If an appeal is filed, the date the written determination of the result of the appeal is provided to the parties.

The District shall investigate the allegations in a formal complaint. If the conduct alleged in the formal complaint would not constitute sexual harassment as defined in this policy even if proved; did not occur in the District's education program or activity; or did not occur against a person in the United States, then the District shall dismiss the complaint as not meeting the definition of sexual harassment under this policy. A dismissal for these reasons does not preclude action under another provision of the District's code of conduct.

The District may dismiss the formal complaint or any allegations therein, if at any time during the grievance process:

- o The complainant notifies the Title IX Coordinator in writing that the complainant would like to withdraw the formal complaint or any allegations therein;
- o The respondent is no longer enrolled at the District; or
- o Specific circumstances prevent the District from gathering evidence sufficient to reach a determination as to the formal complaint or allegations therein.

Upon the dismissal of a formal complaint for any reason, the District shall promptly send written notice of the dismissal and reason(s) for the dismissal simultaneously to the parties.

The District may hire an individual or individuals to conduct the investigation or to act as the determination-maker when necessary.

Appeals

Either party may appeal a determination regarding responsibility or from a dismissal of a formal complaint or any allegations therein, on the following bases:

- a. The existence of a procedural irregularity that affected the outcome of the matter;
- b. Discovery of new evidence that was not reasonably available at the time the determination regarding responsibility or dismissal was made, that could affect the outcome of the matter;
- c. The Title IX Coordinator, investigator, or decision-maker had a conflict of interest or bias for or against complainants or respondents generally or the individual complainant or respondent that affected the outcome of the matter; or
- d. An appeal of the disciplinary sanctions from the initial determination.⁴

For all appeals, the District shall:

- 1. Notify the other party in writing when an appeal is filed;
- 2. Simultaneously Provide all parties a written copy of the District's procedures governing the appeal process;
- 3. Implement appeal procedures equally for both parties;
- 4. Ensure that the decision-maker⁵ for the appeal is not the same person as the decision-maker that reached the original determination regarding responsibility or dismissal, the investigator, or the Title IX Coordinator;
- 5. Provide all parties a reasonable, equal opportunity to submit a written statement in support of, or challenging, the outcome;
- 6. Issue a written decision describing the result of the appeal and the rationale for the result; and
- 7. Provide the written decision simultaneously to both parties.

Confidentiality

Reports of sexual harassment, both informal reports and formal complaints, will be treated in a confidential manner to the extent possible. Limited disclosure may be provided to:

§ Individuals who are responsible for handling the District's investigation and determination of responsibility to the extent necessary to complete the District's grievance process;

§ Submit a report to the child maltreatment hotline;

§ Submit a report to the Professional Licensure Standards Board for reports alleging sexual harassment by an employee towards a student; or

§ The extent necessary to provide either party due process during the grievance process.⁵

Except as listed above, the District shall keep confidential the identity of:

Any individual who has made a report or complaint of sex discrimination;

Any individual who has made a report or filed a formal complaint of sexual harassment;

Any complainant;

Any individual who has been reported to be the perpetrator of sex discrimination;

Any respondent; and

Any witness.

Any supportive measures provided to the complainant or respondent shall be kept confidential to the extent that maintaining such confidentiality does not impair the ability of the District to provide the supportive measures.

Emergency removal⁶

The District may remove a respondent from the District's education program or activity on an emergency basis only after the completion of an individualized safety and risk analysis that determines that an immediate threat to the physical health or safety of any student or other individual arising from the allegations of sexual harassment justifies removal. A removed student will be provided with notice and an opportunity to challenge the removal decision immediately following the removal.

Retaliation Prohibited

Students, or the parents/legal guardians/ other responsible adult of a student, who submit a report or file a formal complaint of sexual harassment,; testified; assisted; or participate or refused to participate in any manner in an investigation, proceeding, or hearing on sexual harassment shall not be subjected to retaliation or reprisal in any form, including threats; intimidation; coercion; discrimination; or charges for code of conduct violations that do not involve sex discrimination or sexual harassment, arise out of the same facts or circumstances as a report or formal complaint of sex discrimination, and are made for the purpose of interfering with any right or privilege under this policy. The District shall take steps to prevent retaliation and shall take immediate action if any form of retaliation occurs regardless of whether the retaliatory acts are by District officials, students, or third parties.

Disciplinary Sanctions

It shall be a violation of this policy for any student to be subjected to, or to subject another person to, sexual harassment. Following the completion of the District's grievance process, any student who is found by the evidence to more likely than not⁷ have engaged in sexual harassment will be subject to disciplinary action up to, and including, expulsion. No disciplinary sanction or other action that is not a supportive measure may be taken against a respondent until the conclusion of the grievance process.

Students who knowingly fabricate allegations of sexual harassment or purposely provide inaccurate facts shall be subject to disciplinary action up to and including expulsion. A determination that the allegations do not rise to the level of sexual harassment alone is not sufficient to conclude that any party made a false allegation or materially false statement in bad faith.

Records

The District shall maintain the following records for a minimum of seven (7) years:

- Each sexual harassment investigation including:
 - Any determination regarding responsibility;
 - Any disciplinary sanctions imposed on the respondent;
 - Any remedies provided to the complainant designed to restore or preserve equal access to the District's education program or activity;
 - Any appeal and the result therefrom;
 - All materials used to train Title IX Coordinators, investigators, and decision-makers;
 - Any actions, including any supportive measures, taken in response to a report or formal complaint of sexual harassment, which must include:
 - o The basis for the District's conclusion that its response was not deliberately indifferent; and
 - o Document:
- § If supportive measures were provided to the complainant, the supportive measures taken designed to restore or preserve equal access to the District's education program or activity; or
- § If no supportive measures were provided to a complainant, document the reasons why such a response was not clearly unreasonable in light of the known circumstances.

Cross References: 3.26—LICENSED PERSONNEL SEXUAL HARASSMENT

4.11—EQUAL EDUCATIONAL OPPORTUNITY

5.20—DISTRICT WEBSITE

7.15—RECORD RETENTION AND DESTRUCTION

8.20—CLASSIFIED PERSONNEL SEXUAL HARASSMENT

Legal References: 20 USC 1681 et seq.

34 C.F.R. Part 106

A.C.A. § 6-15-1005

A.C.A. § 6-18-502

A.C.A. § 12-18-102

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

4.28—LASER POINTERS

Students shall not possess any hand held laser pointer while in school; on or about school property, before or after school; in attendance at school or any school-sponsored activity; on route to or from school or any school-sponsored activity; off the school grounds at any school bus stop or at any school-sponsored activity or event. School personnel shall seize any laser pointer from the student possessing it and the student may reclaim it at the close of the school year, or when the student is no longer enrolled in the District.

Legal References: A.C.A. § 6-18-512

DESE Rules Governing Student Discipline and School Safety

Date Adopted: 7/20/2026

Last Revised: 9/1/2026

4.29— INTERNET SAFETY and ELECTRONIC DEVICE USE POLICY

Definition

For the purposes of this policy, "electronic device" means anything that can be used to transmit or capture images, sound, or data.

The District makes electronic device(s) and/or electronic device Internet access available to students, to permit students to perform research and to allow students to learn how to use electronic device technology. Use of district electronic devices is for

educational and/or instructional purposes only. Student use of electronic device(s) shall only be as directed or assigned by staff or teachers; students are advised that they enjoy no expectation of privacy in any aspect of their electronic device use, including email, and that monitoring of student electronic device use is continuous.

No student will be granted Internet access until and unless an Internet and electronic device use agreement, signed by both the student and the parent or legal guardian (if the student is under the age of eighteen [18]) is on file. The current version of the Internet and electronic device use agreement is incorporated by reference into board policy and is considered part of the student handbook.

Technology Protection Measures

The District is dedicated to protecting students from materials on the Internet or world wide web that are inappropriate, obscene, or otherwise harmful to minors; therefore, it is the policy of the District to protect each electronic device with Internet filtering software that is designed to prevent students from accessing such materials. For purposes of this policy, "harmful to minors" means any picture, image, graphic image file, or other visual depiction that:

(A) taken as a whole and with respect to minors, appeals to a prurient interest in nudity, sex, or excretion;

(B) depicts, describes, or represents, in a patently offensive way with respect to what is suitable for minors, an actual or simulated sexual act or sexual contact, actual or simulated normal or perverted sexual acts, or a lewd exhibition of the genitals; and

(C) taken as a whole, lacks serious literary, artistic, political, or scientific value as to minors.

Internet Use and Safety

The District is dedicated to ensuring that students are capable of using the Internet in a safe and responsible manner. The District uses technology protection measures to aid in student safety and shall also educate students on appropriate online behavior and Internet use³-including, but not limited to:

- interacting with other individuals on social networking websites and in chat rooms;
- Cyberbullying awareness; and
- Cyberbullying response.

Misuse of Internet

The opportunity to use the District's technology to access the Internet is a privilege and not a right. Students who misuse electronic devices or Internet access in any way will face disciplinary action, as specified in the student handbook⁴ and/or Internet safety and electronic device use agreement. Misuse of the Internet includes:

- The disabling or bypassing of security procedures, compromising, attempting to compromise, or defeating the district's technology network security or Internet filtering software;
- The altering of data without authorization;
- Disclosing, using, or disseminating passwords, whether the passwords are the student's own or those of another student/faculty/community member, to other students;
- Divulging personally identifying information about himself/herself or anyone else either on the Internet or in an email unless it is a necessary and integral part of the student's academic endeavor. Personally identifying information includes full names, addresses, and phone numbers.
- Using electronic devices for any illegal activity, including electronic device hacking and copyright or intellectual property law violations;
- Using electronic devices to access or create sexually explicit or pornographic text or graphics;
- Using electronic devices to violate any other policy or is contrary to the Internet safety and electronic device use agreement.

Legal References: Children's Internet Protection Act; PL 106-554

FCC Final Rules 11-125 August 11, 2011

20 USC 6777

47 USC 254(h)(l)

47 CFR 54.520

47 CFR 520(c)(4)

A.C.A. § 6-21-107

A.C.A. § 6-21-111

Updated 7-3-18

4.30—SUSPENSION FROM SCHOOL

Students who are not present at school cannot benefit from the educational opportunities the school environment affords. Administrators, therefore, shall strive to find ways to keep students in school as participants in the educational process. There are instances, however, when the needs of the other students or the interests of the orderly learning environment require the removal of a student from school. The Board authorizes school principals or their designees to suspend students for disciplinary reasons for a period of time not to exceed ten (10) school days,¹ including the day upon which the suspension is imposed. The suspension may be in school or out of school. Students are responsible for their conduct that occurs:

- At any time on the school grounds;
- Off school grounds at a school-sponsored function, activity, or event; and
- Going to and from school or a school activity.

A student may be suspended for behavior including, but not limited to, that:

1. Is in violation of school policies, rules, or regulations;
2. Substantially interferes with the safe and orderly educational environment;
3. School administrators believe will result in the substantial interference with the safe and orderly educational environment; and/or
4. Is insubordinate, incorrigible, violent, or involves moral turpitude.

Out-of-school suspension (OSS) shall not be used to discipline a student in kindergarten through fifth (5th) grade unless the student's behavior:

- a. Poses a physical risk to himself or herself or to others;
- b. Causes a serious disruption that cannot be addressed through other means; or
- c. Is the act of bringing a firearm on school campus.

OSS shall not be used to discipline a student for skipping class, excessive absences, or other forms of truancy.

The school principal or designee shall proceed as follows in deciding whether or not to suspend a student:

1. The student shall be given written notice or advised orally of the charges against him/her;
2. If the student denies the charges, he/she shall be given an explanation of the evidence against him/her and be allowed to present his/her version of the facts; and
3. If the principal finds the student guilty of the misconduct, he/she may be suspended.

When possible, notice of the suspension, its duration, and any stipulations for the student's re-admittance to class will be given to the parent(s), legal guardian(s), person(s) with lawful control of the student, person(s) standing in loco parentis, or to the student if age eighteen (18) or older prior to the suspension. Such notice shall be handed to the parent(s), legal guardian(s), person(s) having lawful control of the student, person(s) standing in loco parentis, or to the student if age eighteen (18) or older or mailed to the last address reflected in the records of the school district.

Generally, notice and hearing should precede the student's removal from school, but if prior notice and hearing are not feasible, as where the student's presence endangers persons or property or threatens disruption of the academic process, thus justifying immediate removal from school, the necessary notice and hearing should follow as soon as practicable.

It is the responsibility of a student's parents, legal guardians, person having lawful control of the student, or person standing in loco parentis to provide current contact information to the district, which the school shall use to immediately notify the parent, legal guardian, person having lawful control of a student, or person standing in loco

parentis upon the suspension of a student. The notification shall be by one of the following means, listed in order of priority:²

- A primary call number;
 - o The contact may be by voice, voice mail, or text message.
- An email address;
- A regular first class letter to the last known mailing address.

The district shall keep a log of contacts attempted and made to the parent, legal guardian, person having lawful control of the student, or person standing in loco parentis.

The District shall establish programs, measures, or alternative means and methods to continue student engagement and access to education during a student's period of OSS.

During the period of their suspension, students serving OSS are not permitted on campus except to attend a student/parent/administrator conference or when necessary as part of the District's engagement or access to education program.³

During the period of their suspension, students serving in-school suspension shall not attend or participate in any school-sponsored activities during the imposed suspension.³

Suspensions initiated by the principal or his/her designee may be appealed to the Superintendent, but not to the Board.

Suspensions initiated by the Superintendent may be appealed to the Board.

Cross Reference: 4.7—ABSENCES

Legal References: A.C.A. § 6-18-507

DESE Rules Governing Student Discipline and School Safety

Goss v Lopez, 419 U.S. 565 (1975)

Date Adopted: 7/20/2026

Last Revised: 9/1/2026

4.30b—IN-SCHOOL SUSPENSION (ISS)

The primary goal of ISS is to provide continuity to the educational process of students who violate school rules or neglect their responsibilities involving the rights of others.

Students are generally assigned ISS on a short-term basis ranging from one to five days. Students who are in ISS will not be counted absent from school.

During the period of the discipline action, students serving in-school suspension shall not attend any school-sponsored activities nor shall the student participate in any school-sponsored activities.

Last Revised: 7-3-18

4.30c—SEVERE PENALTY GUIDELINES

The following offenses may result in one or more of the following: detention, suspension, corporal punishment, or expulsion. This is not a comprehensive list of all possible offenses: however, any other behaviors not included that severely disrupt the classroom or campus will also result in these consequences. The principal's discretion will be used for those offenses which do not have recommended consequences listed.

- Defiant acts and refusal to obey a person of authority.
- Leaving school without permission and cutting classes.
- Destruction of property (in addition to paying for repairs or replacement and cleaning up).
- Inappropriate intimate behavior.
- Improper language including cursing, swearing, foul or obscene language.
- Possession or use of any device to shoot water.
- Improper driving and parking on campus.
- Fights between students or willfully and intentionally assaulting, threatening or abusing another student or students. (It is not always possible to determine the person at fault. In such cases, all those involved will be punished.)
- Possession and/or use of fireworks
- Setting fires
- Theft.
- Truancy.
- Cursing school staff members –
- Harassing or threatening students or staff (Threatening the life of another student or school employee is a Class D Felony under Act 1046.) Anyone making threats will be reported to law enforcement officials.
- Gambling.
- Physical assault against staff members
- Sexual harassment.
- Weapons on campus

* NOTE: ALL STUDENTS WITH WEAPONS WILL BE REPORTED TO THE PROPER LAW OFFICIALS.

- Refusal to accept reasonable disciplinary measures by teacher or principal.
- Failure to report to detention.
- Improper use of school computers.
- No rope, chains, or other items that may be considered a weapon may be worn by a student, or be in a student's possession.
- Communicating a false alarm

1. A person commits the offense of communicating a false alarm if the person purposely initiates or circulates a report of a present, past, or impending bombing, fire,

offense, catastrophe, or other emergency knowing that the report is false or baseless and knowing that it is likely to do one or more of the following:

- Cause action of any sort by an official or volunteer agency organized to deal with emergencies
- Place any person in fear of physical injury to himself or herself or another person or of damage to his or her property or that of another person
- Cause total or partial evacuation of any occupiable structure, vehicle, or vital public facility

2. Communicating a false alarm is a Class D Felony if:

- Physical injury to a person results, or
- The false alarm communicates a present or impending bombing and is made to or about a public or private educational institution.

Legal References: A.C.A. § 6-18-507, Goss v Lopez , 419 U.S. 565 (1975)

4.31—EXPULSION

The Board of Education may expel a student for a period longer than ten (10) school days for violation of the District's written discipline policies. The Superintendent may make a recommendation of expulsion to the Board of Education for student conduct:

- Deemed to be of such gravity that suspension would be inappropriate;
- Where the student's continued attendance at school would disrupt the orderly learning environment; or
- Would pose an unreasonable danger to the welfare of other students or staff.

Expulsion shall not be used to discipline a student in kindergarten through fifth (5th) grade unless the student's behavior:

- a. Poses a physical risk to himself or herself or to others;
- b. Causes a serious disruption that cannot be addressed through other means;
- or
- c. Is the act of bringing a firearm on school campus.

The Superintendent or his/her designee shall give written notice to the parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis (mailed to the address reflected on the District's records) that he/she will recommend to the Board of Education that the student be expelled for the specified length of time and state the reasons for the recommendation to expel. The notice shall give the date, hour, and place where the Board of Education will consider and dispose of the recommendation.

The hearing shall be conducted not later than ten (10) school days¹ following the date of the notice, except that representatives of the Board and student may agree in writing to a date not conforming to this limitation.

The President of the Board, Board attorney, or other designated Board member shall preside at the hearing. The student may choose to be represented by legal counsel. Both the district administration and School Board also may be represented by legal counsel. The hearing shall be conducted in open session of the Board unless the parent, legal guardian, person having lawful control of the student, person standing in loco parentis, or student if age eighteen (18) or older, requests that the hearing be conducted in executive session. Any action taken by the Board shall be in open session.

During the hearing, the Superintendent, or designee, or representative will present evidence, including the calling of witnesses, who gave rise to the recommendation of expulsion. The student, or his/her representative, may then present evidence including statements from persons with personal knowledge of the events or circumstances relevant to the charges against the student. Formal cross-examination will not be permitted; however, any member of the Board, the Superintendent, or designee, the student, or his/her representative may question anyone making a statement and/or the student. The presiding officer shall decide questions concerning the appropriateness or relevance of any questions asked during the hearing.

Except as permitted by policy 4.22, the Superintendent shall recommend the expulsion of any student for a period of one (1) year for possession of any firearm prohibited on school campus by law. The Superintendent shall, however, have the discretion to modify the expulsion recommendation for a student on a case-by-case basis. Parents, legal guardians, persons having lawful control of a student, or persons standing in loco parentis of a student enrolling from another school after the expiration of an expulsion period for a weapons policy violation shall be given a copy of the current laws regarding the possibility of parental responsibility for allowing a child to possess a weapon on school property.² The parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis shall sign a statement acknowledging that they have read and understand said laws prior to the student being enrolled in school.

The Superintendent and the Board of Education shall complete the expulsion process of any student that was initiated because the student possessed a firearm or other prohibited weapon on school property regardless of the enrollment status of the student.

The District shall establish programs, measures, or alternative means and methods to continue student engagement and access to education during a student's period of expulsion.

Cross Reference: 4.22—WEAPONS AND DANGEROUS INSTRUMENTS

Legal References: A.C.A. § 6-18-502
A.C.A. § 6-18-507

DESE Rules Governing Student Discipline and School Safety

Date Adopted: 7/20/2026

Last Revised: 9/1/2026

4.32—SEARCH, SEIZURE, AND INTERROGATIONS

The District respects the rights of its students against arbitrary intrusion of their person and property. At the same time, it is the responsibility of school officials to protect the health, safety, and welfare of all students enrolled in the District in order to promote an environment conducive to student learning. The Superintendent, principals, and their designees have the right to inspect and search school property and equipment. They may also search students and their personal property in which the student has a reasonable expectation of privacy, when there is reasonable and individualized suspicion to believe such student or property contains illegal items or other items in violation of Board policy or dangerous to the school community. School authorities may seize evidence found in the search and disciplinary action may be taken. Evidence found which appears to be in violation of the law shall be reported to the appropriate authority.

School property shall include, but not be limited to, lockers, desks, and parking lots, as well as personal effects left there by students. When possible, prior notice will be given and the student will be allowed to be present along with an adult witness, however, searches may be done at any time with or without notice or the student's consent. A personal search must not be excessively intrusive in light of the age and sex of the student and the nature of the infraction.

The Superintendent, principals, and their designees may request the assistance of law enforcement officials to help conduct searches. Such searches may include the use of specially trained dogs.

A school official of the same sex shall conduct personal searches with an adult witness of the same sex present.

State Law requires that Department of Human Services employees, local law enforcement, or agents of the Crimes Against Children Division of the Department of Arkansas State Police may interview students without a court order for the purpose of investigating suspected child abuse. In instances where the interviewers deem it necessary, they may exercise a "72-hour hold" without first obtaining a court order. Other questioning of students by non-school personnel shall be granted only with a court order directing such questioning, with permission of the parents of a student (or the student if above eighteen [18] years of age), or in response to a subpoena or arrest warrant.

If the District makes a report to any law enforcement agency concerning student misconduct or if access to a student is granted to a law enforcement agency due to a court order, the principal or the principal's designee shall make a good faith effort to contact the student's parent, legal guardian, person having lawful control of the

student, or person standing in loco parentis. The principal or the principal's designee shall not attempt to make such contact if presented documentation by the investigator that notification is prohibited because a parent, guardian, person having lawful control of the student, or person standing in loco parentis is named as an alleged offender of the suspected child maltreatment. This exception applies only to interview requests made by a law enforcement officer, an investigator of the Crimes Against Children Division of the Department Division of Arkansas State Police, or an investigator or employee of the Department of Human Services.

In instances other than those related to cases of suspected child abuse, principals must release a student to either a police officer who presents a subpoena for the student, or a warrant for arrest, or to an agent of state social services or an agent of a court with jurisdiction over a child with a court order signed by a judge. Upon release of the student, the principal or designee shall give the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis notice that the student has been taken into custody by law enforcement personnel or a state's social services agency. If the principal or designee is unable to reach the parent, he or she shall make a reasonable, good faith effort to get a message to the parent to call the principal or designee, and leave both a day and an after-hours telephone number.

In instances other than those related to cases of suspected child abuse, principals must release a student to either a police officer who presents a subpoena for the student, or a warrant for arrest, or to an agent of state social services or an agent of a court with jurisdiction over a child with a court order signed by a judge. Upon release of the student, the principal or designee shall give the student's parent, legal guardian, or other person having lawful control by court order, or person acting in loco parentis notice that the student has been taken into custody by law enforcement personnel or a state's social services agency. If the principal or designee is unable to reach the parent, he or she shall make a reasonable, good faith effort to get a message to the parent to call the principal or designee, and leave both a day and an after-hours telephone number.

Legal Reference: A.C.A. § 6-18-513,; A.C.A. § 9-13-104 A.C.A. § 12-18-609, 610, 613 A.C.A. § 12-18-1001, 1005

Updated: 7-15-19

4.33—STUDENTS' VEHICLES

Students, who have presented a valid driver's license and proof of insurance to the appropriate office personnel, may drive their vehicle to school. Vehicles driven to school shall be parked in the area designated for student parking. Parking on school

property is a privilege which may be denied to a student for any disciplinary violation, at the discretion of the student's building principal.

Students are not permitted to loiter in parking areas and are not to return to their vehicles during the school day for any reason unless given permission to do so by school personnel. It is understood that there is no expectation of privacy in vehicles in parking areas. Drivers of vehicles parked on a school campus will be held accountable for illegal substances or any other item prohibited by District policy found in their vehicle. The act of a student parking a vehicle on campus is a grant of permission for school or law enforcement authorities to search that vehicle.

Signs shall be posted on campus buildings and in district vehicles to notify students, staff, and visitors that video cameras may be in use. Parents and students shall also be notified through the student handbook that cameras may be in use in school buildings, on school grounds and in school vehicles. Students will be held responsible for any violations of school discipline rules caught by the cameras.

The district shall retain copies of video recordings until they are erased which may be accomplished by either deletion or copying over with a new recording.

Driver's License Permit

Students who wish to obtain their driver's permit must take the following documents with them or they will not be allowed to take their test

- Proof of receipt of a high school diploma or its equivalent or enrollment and regular attendance in an adult education program or a public, private, or parochial school
- Present proof of a "C" average for previous semester or similar equivalent grading period for which grades are recorded as part of the student's permanent record
- A student with disabilities receiving special education or related services or a student enrolled in an adult education program shall present proof that the student is successfully completing his individual education plan in order to be issued a license.
- Driving and Parking Regulations
- When students enter a school bus or the campus, he/she is under the jurisdiction of the school and we expect the students to observe all safety rules in coming to and from school. The students have designated places where they can park their vehicles during the day. The following shall be observed by students bringing their motor vehicles to school:
 - The student must have a valid non-restricted license.
 - Students will be assigned parking spaces.
 - The student must park his/her vehicle immediately upon arriving at school in the student parking area (front of old gym and Home Ec. Building) and leave it there until buses have left in the afternoon. No student can return to the student parking lot without special permission from the principal. Students will wait until buses have left the grounds before entering the parking lot.
 - Students are not allowed to use their car as a locker.
 - Students are to drive in a safe manner at all times and to make no excessive noise by wheels, exhausts, or horn while on or near the school campus.

- No all-terrain vehicles are allowed on public roads, streets, or parking lots according to state laws.
- A student must have liability insurance in order to drive on the Alpena Campus.
- To better ensure student safety, students that are on school business shall not be allowed to use cell phones while driving their own car.

Last Revised: 7-3-18

4.34—COMMUNICABLE DISEASES AND PARASITES

Students with communicable diseases or with human host parasites (e.g. head lice) that are transmittable in a school environment shall demonstrate respect for other students by not attending school while they are capable of transmitting their condition to others. Students whom the school nurse determines are unwell or unfit for school attendance or who are believed to have a communicable disease or condition will be required to be picked up by their parent or guardian. Specific examples include, but are not limited to: Varicella (chicken pox), measles, scabies, conjunctivitis (Pink Eye), impetigo/MRSA (Methicillin-resistant *Staphylococcus aureus*), streptococcal and staphylococcal infections, ringworm, mononucleosis, Hepatitis A, B, or C, mumps, vomiting, diarrhea, and fever (100.4 F when taken orally).[†] A student who has been sent home by the school nurse will be subsequently readmitted, at the discretion of the school nurse, when the student is no longer a transmission risk. In some instances, a letter from a health care provider may be required prior to the student being readmitted to the school.

To help control the possible spread of communicable diseases, school personnel shall follow the District's exposure control plan when dealing with any blood borne, foodborne, and airborne pathogens exposures. Standard precautions shall be followed relating to the handling, disposal, and cleanup of blood and other potentially infectious materials such as all body fluids, secretions and excretions (except sweat).

In accordance with 4.57—IMMUNIZATIONS, the District shall maintain a copy of each student's immunization record and a list of individuals with exemptions from immunization which shall be education records as defined in policy 4.13. That policy provides that an education record may be disclosed to appropriate parties in connection with an emergency if knowledge of the information is necessary to protect the health or safety of the student or other individuals.

A student enrolled in the District who has an immunization exemption may be removed from school at the discretion of the Arkansas Department of Health during an outbreak of the disease for which the student is not vaccinated. The student may not return to school until the outbreak has been resolved and the student's return to school is approved by the Arkansas Department of Health.

The parents or legal guardians of students found to have live human host parasites that are transmittable in a school environment will be asked to pick their child up. The

parents or legal guardians will be given information concerning the eradication and control of human host parasites. A student may be readmitted after the school nurse or designee has determined the student no longer has live human host parasites that are transmittable in a school environment.

Each school may conduct screenings of students for human host parasites that are transmittable in a school environment as needed. The screenings shall be conducted in a manner that respects the privacy and confidentiality of each student.

Cross References: 4.2—ENTRANCE REQUIREMENTS
 4.7—ABSENCES
 4.13—PRIVACY OF STUDENTS' RECORDS/ DIRECTORY INFORMATION
 4.57—IMMUNIZATIONS

Legal References: A.C.A. § 6-18-702
 DESE Rules Governing Kindergarten Through 12th Grade
 Immunization Requirements in Arkansas Public Schools
 ADH Rules Pertaining to Immunization Requirements

Last Revised: 7-15-19

4.35—STUDENT MEDICATIONS

Prior to the administration of any medication, including any dietary supplement or other perceived health remedy not regulated by the US Food and Drug Administration, to any student under the age of eighteen (18), written parental consent is required. The consent form shall include authorization to administer the medication and relieve the Board and its employees of civil liability for damages or injuries resulting from the administration of medication to students in accordance with this policy. All signed medication consent forms are to be maintained by the school nurse.

Unless authorized to self-administer or otherwise authorized by this policy, students are not allowed to carry any medications, including over-the-counter (OTC) medications or any dietary supplement or other perceived health remedy not regulated by the US Food and Drug Administration while at school. The parent or legal guardian shall bring the student's medication to the school nurse. The student may bring the medication if accompanied by a written authorization from the parent or legal guardian. When medications are brought to the school nurse, the nurse shall document, in the presence of the parent, the quantity of the medication(s). If the medications are brought by a student, the school nurse shall ask another school employee to verify, in the presence of the student, the quantity of the medication(s). Each person present shall sign a form verifying the quantity of the medication(s).

Medications, including those for self-administration, must be in the original container and be properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, its possible side effects, and any other pertinent instructions (such as special storage requirements) or warnings. Schedule II medications that are permitted by this policy to be brought to school shall be stored in a double locked cabinet.

Students with an individualized health plan (IHP) may be given OTC medications to the extent giving such medications are included in the student's IHP.

The district's supervising registered nurse is responsible for creating procedures for the administration of medications on and off campus.

The school shall not keep outdated medications or any medications past the end of the school year. Parents shall be notified ten (10) days in advance of the school's intention to dispose of any medication. Medications not picked up by the parents or legal guardians within the ten (10) day period shall be disposed of by the school nurse in accordance with current law and rules.¹

Schedule II Medications²

Option 1: The only Schedule II medications that shall be allowed to be brought to the school are methylphenidate (e.g. Ritalin or closely related medications as determined by the school nurse), dextroamphetamine (Dexedrine), and amphetamine sulfate (e.g. Adderall or closely related medications as determined by the school nurse).

For the student's safety, no student will be allowed to attend school if the student is currently taking any other Schedule II medication than permitted by this policy.³ Students who are taking Schedule II medications which are not allowed to be brought to school shall be eligible for homebound instruction if provided for in their IEP or 504 plans.⁴

Option 2: Students taking Schedule II medications methylphenidate (e.g. Ritalin or closely related medications as determined by the school nurse), dextroamphetamine (Dexedrine), and amphetamine sulfate (e.g. Adderall or closely related medications as determined by the school nurse) shall be allowed to attend school.

Students taking Schedule II medications not included in the previous sentence³ shall be allowed to bring them to school under the provisions of this policy and shall be permitted to attend and participate in classes **only** to the extent the student's doctor has specifically authorized such attendance and participation.⁵ A doctor's prescription for a student's Schedule II medication is **not** an authorization. Attendance authorization shall specifically state the degree and potential danger of physical exertion the student is permitted to undertake in the student's classes and extracurricular activities. Without a doctor's written authorization, a student taking

Schedule II medications, other than those specifically authorized in this policy, shall **not** be eligible to attend classes, but shall be eligible for homebound instruction if provided for in their IEP or 504 plans.⁴

Self-Administration of Medication

Students who have written permission from their parent or guardian and a licensed health care practitioner on file with the District may:

1. Self-administer either a:
 - Rescue inhaler; or
 - Auto-injectable or nasal spray epinephrine;
2. Perform the student's own blood glucose checks;
3. Administer insulin through the insulin delivery system the student uses;
4. Treat the student's own hypoglycemia and hyperglycemia; or
5. Possess on the student's person:
 - A. A rescue inhaler;
 - B. Auto-injectable or nasal spray epinephrine; or
 - C. The necessary supplies and equipment to perform the student's own diabetes monitoring and treatment functions.

A student may be authorized to self-administer a stress dose medication to treat the student's adrenal insufficiency with:

1. The written authorization of the student's parent, legal guardian, or person standing in loco parentis; and
2. A written order from the student's treating physician stating that the student:
 - a. Is capable of completing the proper method of self-administration of the stress dose medication;; and
 - b. Has been instructed on the details of the student's medical condition and the events that may lead to an adrenal crisis.

The parent, legal guardian, or person standing in loco parentis of a student who is authorized to self-administer a stress dose medication shall sign an IHP developed by the school nurse for the school where the student is enrolled. The IHP shall include a requirement for the notification of appropriate staff following the self-administration of a stress dose medication, which shall include the school nurse, teacher of the classroom where the stress dose medication was administered, and a school administrator.

Students who have a current consent form on file shall be allowed to carry and self-administer such medication while:

- In school;
- At an on-site school sponsored activity;

- While traveling to or from school; or
- At an off-site school sponsored activity.

A student is prohibited from sharing, transferring, or in any way diverting the student's medications to any other person. The fact that a student with a completed consent form on file is allowed to carry a rescue inhaler; auto-injectable or nasal spray epinephrine; diabetes medication; stress dose medication; or combination does not require the student to have such on the student's person. The parent or guardian of a student who qualifies under this policy to self-carry a rescue inhaler; auto-injectable or nasal spray epinephrine; diabetes medication; stress dose medication; or any combination on the student's person shall provide the school with the appropriate medication, which shall be immediately available to the student in an emergency.

Students may possess and use a topical sunscreen that is approved by the United States Food and Drug Administration for OTC use to avoid overexposure to the sun without written authorization from a parent, legal guardian, or healthcare professional while the student is on school property or at a school-related event or activity. The parent or guardian of a student may provide written documentation authorizing specifically named District employee(s), in addition to the school nurse, to assist a student in the application of sunscreen. The District employee(s) named in the parent or legal guardian's written authorization shall not be required to assist the student in the application of sunscreen.

Emergency Administration of Glucagon and Insulin

Students may be administered Glucagon, insulin, or both in emergency situations by the school nurse or, in the absence of the school nurse, a trained volunteer school employee designated as a care provider, provided the student has:

1. An IHP that provides for the administration of Glucagon, insulin, or both in emergency situations; and
2. A current, valid consent form on file from their parent or guardian.

When the nurse is unavailable, the trained volunteer school employee who is responsible for a student shall be released from other duties during:

- A. The time scheduled for a dose of insulin in the student's IHP; and
- B. Glucagon or non-scheduled insulin administration once other staff have relieved him/her from other duties until a parent, guardian, other responsible adult, or medical personnel has arrived.

A student shall have access to a private area to perform diabetes monitoring and treatment functions as outlined in the student's IHP.

Emergency Administration of Epinephrine

The school nurse or other trained⁶ school employees designated by the school nurse as a care provider who have been certified by a licensed physician may administer epinephrine, either through an auto-injector or nasal spray, in emergency situations to students who have an IHP that provides for the administration of epinephrine in emergency situations.

The parent of a student who has an authorizing IHP, or the student if over the age of eighteen (18), shall annually complete and sign a written consent form provided by the student's school nurse authorizing the nurse or other trained⁶ school employee(s) certified to administer epinephrine to administer auto-injector or nasal spray epinephrine to the student when the employee believes the student is having a life-threatening anaphylactic reaction.

Students with an order from a licensed health care provider to self-administer epinephrine, either through an auto-injector or nasal spray, and who have written permission from their parent or guardian shall provide the school nurse either an auto-injector or nasal spray epinephrine. This epinephrine will be used in the event the school nurse, or other school employee certified to administer epinephrine, in good faith professionally believes the student is having a life-threatening anaphylactic reaction and the student is either not self-carrying epinephrine or the nurse is unable to locate it.

The school nurse for each District school shall keep epinephrine on hand that are suitable for the students the school serves. The school nurse or other trained⁶ school employee designated by the school nurse as a care provider who has been certified by a licensed physician may administer epinephrine to those students who the school nurse, or other trained⁶ school employee certified to administer auto-injector epinephrine, in good faith professionally believes is having a life-threatening anaphylactic reaction.

Emergency Administration of Albuterol

The school nurse or other trained⁶ school employees designated by the school nurse as a care provider who have been certified by a licensed physician, advanced practice registered nurse, or physician assistant may administer albuterol in emergency situations to students who have an IHP that provides for the administration of albuterol in emergency situations.

The parent of a student who has an authorizing IHP, or the student if over the age of eighteen (18), shall annually complete and sign a written consent form provided by the student's school nurse authorizing the nurse or other trained⁶ school employee(s) certified to administer albuterol to administer albuterol to the student when the employee believes the student is in perceived respiratory distress.

The school nurse for each District school shall keep albuterol on hand. The school nurse or other trained⁶ school employee designated by the school nurse as a care provider who has been certified by a licensed physician, advanced practice

registered nurse, or physician assistant may administer albuterol to those students who the school nurse, or other trained⁶ school employee certified to administer albuterol, in good faith professionally believes is in perceived respiratory distress.

Emergency Administration of Anti-opioid

The school nurse for each District school shall keep anti-opioid injectors on hand and the school nurse and school resource officer shall possess an anti-opioid at all times when on duty. The school nurse, other school employee, volunteer, or student may administer anti-opioid in accordance with the District's procedures to a student who the school nurse, or other observer, in good faith believes is having an opioid overdose.

An opioid overdose rescue kit shall be placed within all storage locations in the District high school buildings that currently contain an automated external defibrillator for public use. The opioid overdose rescue kits shall be located where it is readily available to the public, be visually free of advertisement, and contain an anti-opioid.

Emergency Administration of Emergency Adrenal Insufficiency Medication

The school nurse or other trained⁶ school employees designated by the school nurse as a care provider who have been certified by a licensed physician may administer an injectable emergency dose medication in emergency situations to students who have an IHP that provides for the administration of an injectable emergency dose medication in emergency situations.

The parent of a student who has an authorizing IHP, or the student if over the age of eighteen (18), shall annually complete and sign a written consent form provided by the student's school nurse authorizing the nurse or other trained⁶ school employee(s) certified to administer an injectable emergency dose medication to administer an injectable emergency dose medication to the student when the employee believes the student is having an adrenal crisis due to adrenal insufficiency.

Students who have met the requirements to be authorized to self-administer a stress dose medication under this policy shall provide the school nurse an emergency injectable dose of the student's medication. This emergency injectable dose will be used in the event the school nurse, or other school employee certified to administer an injectable emergency dose medication, in good faith professionally believes the student is having an adrenal crisis due to adrenal insufficiency.

Seizure Disorder Medications

Students who have been diagnosed with a seizure disorder shall have a seizure action plan that shall be a written IHP designed to acknowledge and prepare for the healthcare needs of the student. The student's seizure action plan shall be created in collaboration between District staff and the student's Parents, legal guardians, persons having lawful control of the student, or persons acting in loco parentis or the student if

over eighteen (18). As part of the creation of the student's seizure action plan, the student's Parents, legal guardians, persons having lawful control of the student, or persons acting in loco parentis shall:

1. Provide the school with written authorization to administer the seizure medication at school;
2. Provide a written statement from the student's healthcare provider that shall contain the following information:
 - The student's name;
 - The name and purpose of the medication;
 - The prescribed dosage;
 - The route of administration;
 - The frequency that the medication should be administered; and
 - The circumstances under which the medication should be administered;
3. Provide the prescribed medication to the school in its unopened, sealed package with the label affixed by the dispensing pharmacy intact, which shall be stored in a safe and secure location accessible only by District personnel or volunteers with training to administer seizure medication.

The written authorization, written statement, and seizure action plan shall be kept on file in the office of the school nurse or school administrator and distributed to any school personnel or volunteers responsible for the supervision or care of the student.

Legal References: Ark. State Board of Nursing: School Nurse Roles and Responsibilities

Division of Elementary and Secondary Education and Arkansas State Board of Nursing
Rules Governing the Administration of Insulin, Glucagon, and Medication for Adrenal Insufficiency or Adrenal Crisis to Arkansas Public School Students

A.C.A. § 6-18-701

A.C.A. § 6-18-707

A.C.A. § 6-18-711

A.C.A. § 6-18-714

A.C.A. § 6-18-717

A.C.A. § 6-18-720

A.C.A. § 6-18-721

A.C.A. § 17-87-103 (11) and (14)

A.C.A. § 20-13-405

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

4.35F2—MEDICATION SELF-ADMINISTRATION CONSENT FORM

Student's Name (Please Print) _____

This form is good for school year _____. This consent form must be updated anytime the student's medication order changes and renewed each year and/or anytime a student changes schools.

The following must be provided for the student to be eligible to self-administer rescue inhalers and/or auto-injectable epinephrine. Eligibility is **only** valid for this school for the current academic year.

- A written statement from a licensed health-care provider who has prescriptive privileges that the health care provider has prescribed the rescue inhaler, auto-injectable epinephrine, and/or nasal spray epinephrine for the student and that the student needs to carry the medication on the student's person due to a medical condition;
- The specific medications prescribed for the student;
- An individualized health care plan developed by the prescribing health-care provider containing the treatment plan for managing asthma and/or anaphylaxis episodes of the student and for medication use by the student during school hours; and
- A statement from the prescribing health-care provider that the student possesses the skill and responsibility necessary to use and administer the asthma inhaler, auto-injectable epinephrine, and/or nasal spray epinephrine.

If the school nurse is available, the student shall demonstrate the student's skill level in using the rescue inhaler, auto-injectable epinephrine, and/or nasal spray epinephrine to the nurse.

Rescue inhalers, -injectable epinephrine, and/or nasal spray epinephrine for a student's self-administration shall be supplied by the student's parent or guardian and be in the original container properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, its possible side effects, and any other pertinent instructions (such as special storage requirements) or warnings.

-Students who self-carry a rescue inhaler, an epinephrine auto-injector, or nasal spray epinephrine shall also provide the school nurse with a rescue inhaler, ~~or~~ an epinephrine auto-injector, and/or nasal spray epinephrine to be used in emergency situations.

I understand this form authorizes my student to possess and use the medication(s) included on this form while on school grounds and at school sponsored events but that distribution of the medication(s) included on this form to other students may lead to disciplinary action against my student.

My signature below is an acknowledgment that I understand that the District, its Board of Directors, and its employees shall be immune from civil liability for injury resulting from the self-administration of medications by the student named above.

Parent or legal guardian signature _____

Date _____

Date Adopted: 7/17/2025 Last Revised: 7/17/2025

4.35F4—EPINEPHRINE EMERGENCY ADMINISTRATION CONSENT FORM

Student's Name (Please Print) _____

This form is good for school year _____. This consent form must be updated anytime the student's medication order changes and renewed each year and/or anytime a student changes schools.

My child has an IHP that provides for the administration of epinephrine in emergency situations. I hereby authorize the school nurse or other school employee certified to administer auto-injectable or nasal spray epinephrine to administer epinephrine in emergency situations when the individual believes my child is having a life-threatening anaphylactic reaction.

The medication must be in the original container and be properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, its possible side effects, and any other pertinent instructions (such as special storage requirements) or warnings.

Date of health-care provider's order _____

Circumstances under which Epinephrine may be administered

Other instructions _____

I acknowledge that the District, its Board of Directors, and its employees shall be immune from civil liability for damages resulting from the administration of auto-injector epinephrine in accordance with this consent form, District policy, and Arkansas law.

Parent or legal guardian signature _____

Date _____

Date Adopted: 7/17/2025 Last Revised: 7/17/2025

4.36—STUDENT ILLNESS/ACCIDENT

If a student becomes too ill to remain in class and/or could be contagious to other students, the principal or designee will attempt to notify the student's parent or legal guardian. The student will remain in the school's health room or a place where he/she can be supervised until the end of the school day or until the parent/legal guardian can check the student out of school.

If a student becomes seriously ill or is injured while at school and the parent/legal guardian cannot be contacted, the failure to make such contact shall not unreasonably delay the school's expeditious transport of the student to an appropriate medical care facility. The school assumes no responsibility for treatment of the student. When available, current, and applicable, the student's emergency contact numbers and medical information will be utilized. Parents are strongly encouraged to keep this information up to date.

Students needing to visit the school nurse are required to come by the office to receive a form to take to the nurse's office.

Last Revised: 7-3-18

4.37—EMERGENCY DRILLS

All schools in the District shall conduct fire drills at least monthly. Tornado drills shall also be conducted not fewer than three (3) times per year.¹ Students who ride school buses,² shall also participate in emergency evacuation drills at least twice each school year.

The District shall annually conduct a lockdown drill at all schools in the District in collaboration with local law enforcement, medical professionals, fire department officials, and emergency management personnel. The lockdown drill training will include use of the District's emergency communication method with law enforcement.^{3,4} Students will be included in the drills to the extent that is developmentally appropriate for the age of both the students and grade configuration of the school.⁵

Drills may be conducted during the instructional day or during non-instructional time periods.

Other types of emergency drills may also be conducted to test the implementation of the District's emergency plans in the event of violence, terrorist attack, natural disaster, other emergency, or the District's emergency communication with law enforcement method³. Students shall be included in the drills to the extent practicable.⁵

When developing your school safety plan, be sure to review and address the items set forth in A.C.A. § 6-15-1303(j).

When updating your emergency response plan, include the cardiac emergency response plan requirements from A.C.A. § 6-18-713.

² Students who only ride buses occasionally, such as to go to and/or from a field trip will also have to participate in the evacuation drills.

³ Due to the State opting to not appropriate funding for an emergency communication method with law enforcement, including a panic button alert system, districts are no longer required to have an emergency communication method with law enforcement, such as a panic button alert system, but may continue to do so if they choose. If you choose not to continue to provide an emergency communication method with law enforcement, remove references to it from this policy. If you choose to continue to provide a panic button alert system as your emergency communication method with law enforcement, A.C.A. § 6-15-1302 requires that a district's Panic Button Alert System meet the following requirements:

A. Connect the caller with 911 while simultaneously notifying designated on-site personnel;

B. Directly integrate into the existing statewide Smart911 system;

C. Be available for use as a smartphone application and have a mechanism for panic notifications to be triggered by non-smartphone wireless callers and landline callers; and

D. Be limited to users designated, approved, and confirmed by school administrators.

Smart911 is required to provide a way for schools to geo-fence the school campus and provide and manage floor plans and other documents to assist emergency responders when they automatically display during a 911 call. Districts are responsible for keeping the floor plans and pertinent emergency contact information for the statewide Smart911 system up to date, which must be done at least annually or if substantial building modifications or changes are made.

⁴ The purpose of the training is to allow participants to:

- Assess the plan and ability of the district to prevent and respond to a threat on campus;
- Clarify the roles and responsibilities of each individual when an emergency occurs;
- Discuss the logistics of handling an emergency on the school campus;

- Identify areas in which the school safety plan should be modified; and
- Collaborate with local law enforcement, fire, and emergency management officials.

⁵ Student involvement will need to be worked out school by school and determined relative to grade and age considerations in conjunction with the actual content of the drill. There may be drills conducted that do not include any students due to the explicit nature of the drill and the age of the students while a drill in another school would include students. There are so many facets of responding to a school intruder/shooting incident that it's difficult to know when your planning has dealt with all the contingencies. A good resource on active shooter drills is the "I Love You Guys" Foundation, which was created by the parents of the victim of the school shooting at Platte Canyon High School in Colorado to develop a protocol to advance school safety. The Foundation has **free** materials for districts that can be a big help when developing protocols and training for both personnel and students. A description of the Foundation's recommended protocol and the materials can be found at <http://iloveuguy.org/srp.html>. An additional resource is the Federal government's "Federal School Safety Clearinghouse", which is located at schoolsafety.gov. Some of these sites' information could also be applied to the other emergency plans required by statute and this policy.

Legal References: A.C.A. § 6-10-110

A.C.A. § 6-10-121

A.C.A. § 6-15-1302

A.C.A. § 6-15-1303

A.C.A. § 6-15-1304

A.C.A. § 6-18-713

A.C.A. § 12-13-109

Ark. Division of Academic Facilities and Transportation Rules
Governing Maintenance and Operations of Ark. Public School Buses
and Physical Examinations of School Bus Drivers 4.03.1

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

4.38—PERMANENT RECORDS

Permanent school records, as required by Division of Elementary and Secondary Education (ADESE), shall be maintained for each student enrolled in the District until the student graduates or is beyond the age of compulsory school attendance. A copy of

the student's permanent record shall be provided to the receiving school district upon the transfer of the student to another district.

Legal References: A.C.A. § 6-18-901

A.C.A. § 6-28-107

DESE Rules Governing Student Permanent Records

Last Revised: 6/21/21

4.39—CORPORAL PUNISHMENT

The Alpena School Board prohibits the use of corporal punishment by any employee of the District against any student.

Legal References: A.C.A. § 6-18-503(b)

DESE Rules Governing Student Discipline and School Safety

DESE Rules Governing Special Education and Related Services

Section 11.00 - Discipline

Date Adopted: 7/20/2026

Last Revised: 9/1/2026

4.40—HOMELESS STUDENTS

The Alpena School District will afford the same services and educational opportunities to homeless children as are afforded to non-homeless children. The Superintendent or his/her designee shall appoint an appropriate staff person to be the local educational agency (LEA) liaison for homeless children and youth whose responsibilities shall include, but are not limited to:

- Receive appropriate time and training in order to carry out the duties required by law and this policy;
- Coordinate and collaborate with the State Coordinator, community, and school personnel responsible for education and related services to homeless children and youths;
- Ensure that school personnel receive Professional development and other support regarding their duties and responsibilities for homeless youths;
- Ensure that unaccompanied homeless youths:
 - Are enrolled in school;
 - Have opportunities to meet the same challenging State academic standards as other children and youths; and
 - Are informed of their status as independent students under the Higher Education Act of 1965 and that they may obtain assistance from the LEA liaison to receive verification of such status for purposes of the Free Application for Federal Student Aid;
- Ensure that public notice of the educational rights of the homeless children and youths is disseminated in locations frequented by parents or guardians of such youth, and unaccompanied homeless youths, including schools, shelters, public libraries, and soup kitchens, in a manner and form that is easily understandable.

To the extent possible, the LEA liaison and the building principal shall work together to ensure no homeless child or youth is harmed due to conflicts with District policies solely because of the homeless child or youth's living situation; this is especially true for District policies governing fees, fines, and absences.

Notwithstanding Policy 4.1, homeless students living in the district are entitled to enroll in the district's school that non-homeless students who live in the same attendance area are eligible to attend. If there is a question concerning the enrollment of a homeless child due to a conflict with Policy 4.1 or 4.2, the child shall be immediately admitted to the school in which enrollment is sought pending resolution of the dispute, including all appeals. It is the responsibility of the District's LEA liaison for homeless children and youth to carry out the dispute resolution process.

For the purposes of this policy "school of origin" means:

- The school that a child or youth attended when permanently housed or the school in which the child or youth was last enrolled, including a preschool; and
- The designated receiving school at the next grade level for all feeder schools when the child completes the final grade provided by the school of origin.

The District shall do one of the following according to what is in the best interests of a homeless child:

1. Continue the child's or youth's education in the school of origin for the duration of homelessness:
 - In any case in which a family becomes homeless between academic years or during an academic year; and
 - For the remainder of the academic year, if the child or youth becomes permanently housed during an academic year; or
2. Enroll the child or youth in any public school that non homeless students who live in the attendance area in which the child or youth is actually living are eligible to attend.

In determining the best interest of the child or youth, the District shall:

- Presume that keeping the child or youth in the school of origin is in the child's or youth's best interest, except when doing so is contrary to the request of the child's or youth's parent or guardian, or (in the case of an unaccompanied youth) the youth;
- Consider student-centered factors related to the child's or youth's best interest, including factors related to the impact of mobility on achievement, education, health, and safety of homeless children and youth, giving priority to the request of the child's or youth's parent or guardian or (in the case of an unaccompanied youth) the youth.

If the District determines that it is not in the child's or youth's best interest to attend the school of origin or the school requested by the parent or guardian, or (in the case of an unaccompanied youth) the youth, the District shall provide the child's or youth's

parent or guardian or the unaccompanied youth with a written explanation of the reasons for its determination, in a manner and form understandable to such parent, guardian, or unaccompanied youth, including information regarding the right to appeal. For an unaccompanied youth, the District shall ensure that the LEA liaison assists in placement or enrollment decisions, gives priority to the views of such unaccompanied youth, and provides notice to such youth of the right to appeal.

The homeless child or youth must be immediately enrolled in the selected school regardless of whether application or enrollment deadlines were missed during the period of homelessness.

The District shall be responsible for providing transportation for a homeless child, at the request of the parent or guardian (or in the case of an unaccompanied youth, the LEA Liaison), to and from the child's school of origin.

For the purposes of this policy, students shall be considered homeless if they lack a fixed, regular, and adequate nighttime residence and:

- A. Are:
 - Sharing the housing of other persons due to loss of housing, economic hardship, or a similar reason;
 - Living in motels, hotels, trailer parks, or camping grounds due to the lack of alternative adequate accommodations;
 - Living in emergency or transitional shelters;
 - Abandoned in hospitals; or
 - Awaiting foster care placement;
- A. Have a primary nighttime residence that is a public or private place not designed for or ordinarily used as a regular sleeping accommodation for human beings;
- B. Are living in cars, parks, public spaces, abandoned buildings, substandard housing, bus or train stations, or similar settings; and
- C. Are migratory children who are living in circumstances described in clauses (a) through (c).

In accordance with Federal law, information on a homeless child or youth's living situation is part of the student's education record and shall not be considered, or added, to the list of directory information in Policy 4.13

Legal References: 42 U.S.C. § 11431 et seq.

42 U.S.C. § 11431 (2)

42 U.S.C. § 11432(g)(1)(H)(I)

42 U.S.C. § 11432 (g)(1)(J)(i), (ii), (iii), (iii)(I), (iii)(II)

42 U.S.C. § 11432 (g)(3)(A), (A)(i), (A)(i)(I), (A)(i)(II), (A)(ii)

42 U.S.C. § 11432 (g)(3)(B)(i), (ii), (iii)

42 U.S.C. § 11432 (g)(3)(C)(i), (ii), (iii)

42 U.S.C. § 11432 (g)(3)(E)(i), (ii), (iii)

42 U.S.C. § 11432 (g)(3)(G)

42 U.S.C. § 11432 (g)(4) (A), (B), (C), (D), (E)

4.41—PHYSICAL EXAMINATIONS OR SCREENINGS

The district conducts routine health screenings such as hearing, vision, and scoliosis due to the importance these health factors play in the ability of a student to succeed in school. The intent of the exams or screenings is to detect defects in hearing, vision, or other elements of health that would adversely affect the student's ability to achieve to his/her full potential.

The rights provided to parents under this policy transfer to the student when he/she turns eighteen (18) years old.

Except in instances where a student is suspected of having a contagious or infectious disease, parents shall have the right to opt their student out of the exams or screenings by using form 4.41F or by providing certification from a physician that he/she has recently examined the student.

Legal References: A.C.A. § 6-18-701

Last Revised: 6/21/21

4.42—STUDENT HANDBOOK

It shall be the policy of the Alpena School District that the most recently adopted version of the Student Handbook be incorporated by reference into the policies of this district. In the event that there is a conflict between the student handbook and a general board policy or policies, and the student handbook is more recently adopted than the general board policy, the student handbook will be considered binding and controlling on the matter provided the parent(s) of the student, or the student if 18 years of age or older have acknowledged receipt of the controlling language.

Principals shall review all changes to student policies and ensure that such changes are provided to students and parents, either in the Handbook or, if changes are made after the handbook is printed, as an addendum to the handbook.

Principals and counselors shall also review Policies 4.45—SMART CORE CURRICULUM AND GRADUATION REQUIREMENTS and the current DESE Standards for Accreditation Rules to ensure that there is no conflict. If a conflict exists, the Principal and/or Counselor shall notify the Superintendent and Curriculum Coordinator immediately, so that corrections may be made and notice of the requirements given to students and parents.

Last Revised: 7-15-19

4.43—BULLYING

Definitions

“Attribute” means an actual or perceived personal characteristic including without limitation race, color, religion, ancestry, national origin, socioeconomic status, academic status, disability, gender, gender identity, physical appearance, health condition, or sexual orientation;

“Bullying” means the intentional harassment, intimidation, humiliation, ridicule, defamation, or threat or incitement of violence by a student against another student or public school employee by a written, verbal, electronic, or physical act that:

1. May address an attribute of the other student, public school employee, or person with whom the other student or public school employee is associated;
2. Involves an actual or reasonably perceived power imbalance;
3. Is repeated or has a high likelihood of repetition; and
4. Causes or creates actual or reasonably foreseeable:
 - Physical harm to a public school employee or student or damage to the public school employee's or student's property;
 - Substantial interference with a student's education or with a public school employee's role in education;
 - A hostile educational environment for one (1) or more students or public school employees due to the severity, persistence, or pervasiveness of the act; or
 - Substantial disruption of the orderly operation of the school or educational environment.

Examples of "Bullying" include, but are not limited to, a pattern of behavior involving one or more of the following:

1. Cyberbullying;
2. Sarcastic comments "compliments" about another student's personal appearance or actual or perceived attributes;
3. Pointed questions intended to embarrass or humiliate;
4. Mocking, taunting or belittling;
5. Non-verbal threats and/or intimidation such as “fronting” or “chesting” a person;
6. Demeaning humor relating to a student's actual or perceived attributes;
7. Blackmail, extortion, demands for protection money or other involuntary donations or loans;
8. Blocking access to school property or facilities;
9. Deliberate physical contact or injury to person or property;
10. Stealing or hiding books or belongings;
11. Threats of harm to student(s), possessions, or others;
12. Sexual harassment, as governed by policy 4.27, is also a form of bullying; and/or

13. Teasing or name-calling related to sexual characteristics or the belief or perception that an individual is not conforming to expected gender roles or conduct or is homosexual, regardless of whether the student self-identifies as homosexual or transgender (Examples: "Slut", "You are so gay.", "Fag", "Queer").

"Cyberbullying" means any form of communication by electronic act that is sent with the purpose to:

- o Harass, intimidate, humiliate, ridicule, defame, or threaten a student, school employee, or person with whom the other student or school employee is associated; or
- o Incite violence towards a student, school employee, or person with whom the other student or school employee is associated.

Cyberbullying of School Employees includes, but is not limited to:

- a. Building a fake profile or website of the employee;
- b. Posting or encouraging others to post on the Internet private, personal, or sexual information pertaining to a school employee;
- c. Posting an original or edited image of the school employee on the Internet;
- d. Accessing, altering, or erasing any computer network, computer data program, or computer software, including breaking into a password-protected account or stealing or otherwise accessing passwords of a school employee;
- e. Making repeated, continuing, or sustained electronic communications, including electronic mail or transmission, to a school employee;
- f. Making, or causing to be made, and disseminating an unauthorized copy of data pertaining to a school employee in any form, including without limitation the printed or electronic form of computer data, computer programs, or computer software residing in, communicated by, or produced by a computer or computer network;
- g. Signing up a school employee for a pornographic Internet site; or
- h. Without authorization of the school employee, signing up a school employee for electronic mailing lists or to receive junk electronic messages and instant messages.

Cyberbullying is prohibited whether or not the cyberbullying originated on school property or with school equipment, if the cyberbullying results in the substantial disruption of the orderly operation of the school or educational environment or is directed specifically at students or school personnel and maliciously intended for the purpose of disrupting school and has a high likelihood of succeeding in that purpose.

"Harassment" means a pattern of unwelcome verbal or physical conduct relating to another person's constitutionally or statutorily protected status that causes, or reasonably should be expected to cause, substantial interference with the other's performance in the school environment.

"Substantial disruption" means without limitation that any one or more of the following occur as a result of the bullying:

- Necessary cessation of instruction or educational activities;
- Inability of students or educational staff to focus on learning or function as an educational unit because of a hostile environment;
- Severe or repetitive disciplinary measures are needed in the classroom or during educational activities; or
- Exhibition of other behaviors by students or educational staff that substantially interfere with the learning environment.

Respect for the dignity of others is a cornerstone of civil society. Bullying creates an atmosphere of fear and intimidation, robs a person of dignity, detracts from the safe environment necessary to promote student learning, and will not be tolerated by the Board of Directors. Students who bully another person shall be held accountable for their actions whether they occur on school equipment or property; off school property at a school sponsored or approved function, activity, or event; going to or from school or a school activity in a school vehicle or school bus; or at designated school bus stops.

Students are encouraged to report behavior they consider to be bullying, including a single action which if allowed to continue would constitute bullying, to their teacher or the building principal. The report may be made anonymously. Teachers and other school employees who have witnessed, or are reliably informed that, a student has been a victim of behavior they consider to be bullying, including a single action which if allowed to continue would constitute bullying, shall report the incident(s) to the building principal, or designee, as soon as possible. Parents or legal guardians may submit written reports of incidents they feel constitute bullying, or if allowed to continue would constitute bullying, to the building principal, or designee.

The person or persons reporting behavior they consider to be bullying shall not be subject to retaliation or reprisal in any form.

A building principal, or designee, who receives a credible report or complaint of bullying shall:

1. As soon as reasonably practicable, but by no later than the end of the school day following the receipt of the credible report of bullying:
 - a. Report to a parent, legal guardian, person having lawful control of a student, or person standing in loco parentis of a student that their student is the victim in a credible report of bullying; and
 - b. Prepare a written report of the alleged incident of bullying;
2. Promptly investigate the credible report or complaint of bullying, which shall be completed by no later than the fifth (5th) school day following the completion of the written report.
3. Notify within five (5) days following the completion of the investigation the parent, legal guardian, person having lawful control of a student, or person standing in loco parentis of a student who was the alleged victim in a credible report of bullying whether the investigation found the credible report or

complaint of bullying to be true and the availability of counseling and other intervention services.

4. Notify within five (5) days following the completion of the investigation the parent, legal guardian, person having lawful control of the student, or person acting in loco parentis of the student who is alleged to have been the perpetrator of the incident of bullying:

- a. That a credible report or complaint of bullying against their student exists;
- b. Whether the investigation found the credible report or complaint of bullying to be true;
- c. Whether action was taken against their student upon the conclusion of the investigation of the alleged incident of bullying; and
- d. Information regarding the reporting of another alleged incident of bullying, including potential consequences of continued incidents of bullying;

5. Make a written record of the investigation, which shall include:

- a. A detailed description of the alleged incident of bullying, including without limitation a detailed summary of the statements from all material witnesses to the alleged incident of bullying;
- b. Any action taken as a result of the investigation; and

6. Discuss, as appropriate, the availability of counseling and other intervention services with students involved in the incident of bullying.

Students found to be in violation of this policy shall be subject to disciplinary action up to and including expulsion. In determining the appropriate disciplinary action, consideration may be given to other violations of the student handbook which may have simultaneously occurred.¹ In addition to any disciplinary actions, the District shall take appropriate steps to remedy the effects resulting from bullying.

Notice of what constitutes bullying, the District's prohibition against bullying, and the consequences for students who bully shall be conspicuously posted in every classroom, cafeteria, restroom, gymnasium, auditorium, and school bus.² Parents, legal guardians, person having lawful control of a student, persons standing in loco parentis, students, school volunteers, and employees shall be given copies of the notice annually.³

The superintendent shall make a report annually to the Board of Directors on student discipline data, which shall include, without limitation, the number of incidents of bullying reported and the actions taken regarding the reported incidents of bullying.

To prevent multiple, simultaneous investigations into the same alleged conduct, if the facts that support an alleged incident of bullying may also constitute a violation of another District policy; State or Federal law; State rule; or Federal regulation, then the District shall investigate and dispose of the alleged incident of bullying in accordance with the other applicable District policy; State or Federal law; State rule; or federal regulation in lieu of the requirements of this policy.

Copies of this policy shall be available upon request.⁴

Legal References: A.C.A. § 5-71-217
A.C.A. § 6-18-514
DESE Rules Governing Student Discipline and School Safety

Date Adopted: 7/20/2026
Last Revised: 9/1/2026

4.44—NATIONAL ANTHEM

Each school in the District shall broadcast The Star-Spangled Banner at:

- The commencement of each school-sanctioned sporting event; however, if two (2) or more school-sanctioned sporting events occur on the same day at the same school, then the broadcast of The Star-Spangled Banner may be performed at only one (1) of the events; and
- At least one (1) time each week during school hours.

The broadcast of The Star-Spangled Banner shall be selected from any recording that adheres to the Division of Elementary and Secondary Education (DESE) Rules, or, when appropriate, performed from original sheet music that adheres to DESE rules by:

- A school-sanctioned band program;
- A school-sanctioned chorale program, vocal group, or vocalist; or
- The attendees of a school-sanctioned event led by a vocalist selected by the principal of the school hosting the school-sanctioned event.

Students shall not be compelled to participate in the performance of The Star-Spangled Banner, but students who choose not to participate in the performance of The Star-Spangled Banner shall not disrupt those students choosing to participate in the performance of The Star-Spangled Banner. Students choosing not to participate in the performance of The Star-Spangled Banner who do not disrupt the participation of performance of The Star-Spangled Banner shall not be subject to any comments, retaliation, or disciplinary action.

Legal References: A.C.A. § 6-10-136
DESE Rules Governing the Star-Spangled Banner Act

Date Adopted: 6/21/21
Last Revised: 6/1/22

4.45.1—GRADUATION REQUIREMENTS FOR THE CLASS OF 2027 AND THEREAFTER

Information regarding graduation requirements will be sent home with students prior to their enrolling in seventh (7th) grade, or when a seventh (7th) through twelfth (12th) grade student enrolls in the district for the first time. This policy is to be included in student handbooks for grades six (6) through twelve (12) and both students and parents must sign an acknowledgement they have received the policy. All students are required to fulfill the Core curriculum or the Alternate Pathway to Graduation when required by their IEP to be eligible for graduation. Counseling by trained personnel shall be available to students and their parents or legal guardians as part of the creation of the student's Student Success Plan.

This policy and the courses necessary for graduation shall be reviewed by staff, students, and parents as part of the annual school district strategic plan development process¹ to determine if changes need to be made to better serve the needs of the district's students. The superintendent, or the superintendent's designee, shall select the composition of the review panel.

Sufficient information relating to the district's graduation requirements shall be communicated to parents and students to ensure their informed understanding; this shall be accomplished through holding an informational meeting for parents, legal guardians, or persons standing in loco parentis to students enrolled in grades six through twelve (6-12) with the school counselor and may be accomplished through any or all of the additional following means:²

- Inclusion in the student handbook of the graduation requirements;
- Discussion of the graduation requirements at the school's annual public meeting, PTA meetings, or a meeting held specifically for the purpose of informing the public on this matter; and/or
- Distribution of a newsletter(s) to parents or guardians of the district's students.

Administrators, or their designees, shall train newly hired employees, required to be licensed as a condition of their employment, regarding this policy. The district's annual professional development shall include the training required by this paragraph.³

To the best of its ability, the District shall follow the requirements covering the transfer of course credit and graduation set forth in the Interstate Compact on Educational Opportunity for Military Children and the Arkansas Military Child School Transitions Act of 2021 for all students who meet the definition of "eligible child" in Policy 4.2—ENTRANCE REQUIREMENTS including the waiving of specific courses that are required for graduation if similar coursework has been satisfactorily completed.

GRADUATION REQUIREMENTS

The number of units students must earn to be eligible for high school graduation is to be earned from the categories listed below. A minimum of twenty-two (22) units is required for graduation. In addition to the twenty-two (22) units required for graduation by the Division of Elementary and Secondary Education (DESE), the district requires an additional __ units to graduate for a total of __ units. The additional required units may be taken from any electives offered by the district.⁴ Accelerated learning courses or career education courses that are determined by DESE to be eligible for use in the place of a listed course may be substituted for the course as designated by DESE.

All seniors are required to be enrolled in and attend the equivalent of **four class periods** each semester, regardless of the number of credits previously earned or current graduation status. This requirement must be met to maintain full-time enrollment unless otherwise approved by school administration in accordance with district policy.

All students must receive a passing score on the Arkansas Civics Exam in order to graduate.

Students shall be trained in quality psychomotor skill bases in cardiopulmonary resuscitation and the use of automated external defibrillators in order to graduate.

Personal and Family Finance

All students shall receive credit in a course covering the Personal and Family Finance Standards in order to graduate.

Computer Science

All students shall earn one (1) unit of credit in a computer science or computer science related career and technical education course in order to graduate.

Community Service

Except as otherwise provided by this policy or the student's IEP, each student must receive seventy-five (75) clock hours of community service that is certified by the service agency or organization where the student volunteers or the student's parent. The community service must be in programs or activities, either in Arkansas or outside of Arkansas, that meet the requirements established by the State Board and the District Board of Directors and include preparation, action, and reflection components. A student who transfers into the District after ninth (9th) grade must receive at least the following documented clock hours of community service each year:

- o Fifteen (15) hours for students in grade nine (9);
- o Twenty (20) hours for students in grade ten (10);
- o Twenty (20) hours for students in grade eleven (11); and
- o Twenty (20) hours for students in grade twelve (12).

Students transferring into the District after grade nine (9) or students who are graduating early may receive a diploma provided that the minimum requirement for

each year the student attends the District is met. The District Board of Directors may grant a waiver of the community service requirement for extenuating circumstances on a case-by-case basis, which may include without limitation:

- A major illness associated with a student or a family member of a student;
- Student homelessness or housing insecurity; and
- Notice to the public school district board of directors if the student is a major contributor to family income.

English: four (4) units – 9th, 10th, 11th, and 12th

- English 1
- English 2
- English 3
- English 4

Oral Communications: one-half ($\frac{1}{2}$) unit

Mathematics: four (4) units

- Algebra or its equivalent* - 1 unit
- Geometry or its equivalent* - 1 unit
- All math units must build on the base of algebra and geometry knowledge and skills.
- (Comparable accelerated learning courses may be substituted where applicable)
- A An applicable computer science flex credit may be taken in the place of a math credit beyond Algebra I and Geometry.

* A two-year algebra equivalent or a two-year geometry equivalent may each be counted as two units of the four (4) unit requirement.

Science: three (3) units

- a. DESE approved biology – 1 credit;
- b. DESE approved physical science – 1 credit; and
- c. A third unit that is either:
 - o An additional science credit approved by DESE; or
 - o A computer science flex credit may be taken in the place of a third science credit.

Social Studies: three (3) units

- Civics one-half ($\frac{1}{2}$) unit
- World history, one (1) unit
- American History, one (1) unit
- Other social studies – one-half ($\frac{1}{2}$) unit

Physical Education: one-half ($\frac{1}{2}$) unit

Note: While one-half ($\frac{1}{2}$) unit is required for graduation, no more than one (1) unit may be applied toward fulfilling the necessary units to graduate.

Health and Safety: one-half ($\frac{1}{2}$) unit

Economics – one half ($\frac{1}{2}$) unit – dependent upon the licensure of the teacher teaching the course, this can count toward the required three (3) social studies credits or the six (6) required Career Focus elective credits.⁵

Fine Arts: one-half ($\frac{1}{2}$) unit

CAREER FOCUS: - Six (6) units

All career focus unit requirements shall be established through guidance and counseling based on the student's contemplated work aspirations. Career focus courses shall conform to the curriculum policy of the district and reflect state curriculum frameworks through course sequencing and career course concentrations where appropriate.

A student who enlists in a branch of the United States Armed Forces or the National Guard through the military delayed entry program, the National Guard Split Training Option, or other similar early entry program and completes basic training before graduating from high school shall receive two (2) units of the Career Focus graduation requirements.

Cross References: 4.55—STUDENT PROMOTION AND RETENTION
5.2—PLANNING FOR EDUCATIONAL IMPROVEMENT
5.12—COMPUTER SCIENCE INTERNSHIPS AND INDEPENDENT STUDIES
5.16—COMPUTER SCIENCE COURSE PREREQUISITES AND PROGRESSION

Legal References: Standards for Accreditation 1-C.2, 1-C.2.1, 1-C.2.2, 1-C.2.3
DESE Rules Governing Distance and Digital Learning
Commissioner's Memo COM-24-021
Commissioner's Memo LS-18-082
Commissioner's Memo LS-26-029
A.C.A. § 6-4-302
A.C.A. § 6-15-2906
A.C.A. § 6-15-2911
A.C.A. § 6-16-122
A.C.A. § 6-16-143
A.C.A. § 6-16-149
A.C.A. § 6-16-150
A.C.A. § 6-16-152
A.C.A. § 6-16-1901 et seq.
A.C.A. § 6-28-115

Date Adopted: 7/20/2026
Last Revised: 9/1/2026

4.46—PLEDGE OF ALLEGIANCE AND MOMENT OF SILENCE

The Pledge of Allegiance shall be recited:

1. During the first class period of each school day;
2. At the commencement of each school-sanctioned after-school assembly; and
3. At the commencement of each school-sanctioned sporting event; however, if two (2) or more school-sanctioned sporting events occur on the same day at the same school, then the Pledge may be recited at only one (1) of the school-sanctioned sporting events.

Students choosing to participate in the recitation of the Pledge shall do so by facing the flag with their right hands over their hearts, or in an appropriate salute if in uniform, while reciting the Pledge. Students choosing not to participate shall either stand or sit quietly while the other students recite the Pledge.

Students shall not be compelled to recite the Pledge, but students who choose not to recite the Pledge shall not disrupt those students choosing to recite the Pledge. Students choosing not to recite the Pledge who do not disrupt those students who choose to recite the Pledge shall not be subject to any comments, retaliation, or disciplinary action.

Following the recitation of the Pledge, there shall be an observance of one (1) minute of silence. During the one (1) minute of silence, each student may reflect, pray, meditate, or engage in any other silent activity that is not likely to interfere with or distract another student. Students who do not disrupt the one (1) minute of silence shall not be subject to any comments, retaliation, or disciplinary action.

Legal References: A.C.A. § 6-10-115
A.C.A. § 6-16-108

Last Revised: 6/21/21

4.47— POSSESSION AND USE OF PERSONAL ELECTRONIC DEVICES

Definitions

“Emergency” means a serious, unexpected, and dangerous situation that requires immediate action, including without limitation:

- An active fire;
- An active tornado or earthquake;
- An active shooter;

- An evacuation of school grounds; or
- A medical emergency

“Personal electronic device” means without limitation a:

- a. Cellular telephone;
- b. Paging device;
- c. Beeper;
- d. Mobile telephone that offers advanced computing and internet accessibility;
- e. Digital media player;
- f. Portable game console;
- g. Tablet, notebook, or laptop computer;
- h. Digital camera;
- i. Digital video or audio recorder;
- j. Smart watch; and
- k. Device that can connect and transmit data through Bluetooth technology.

“School day” means from the time students are required to be at school until the time students are dismissed from school.

“Special school events” may include:²

- Activities held during the school day that occur outside of the standard in-class curriculum, which may include any of the following activities:
 - o Pep rallies;
 - o Interscholastic activities;
 - o Concerts and performances;
 - o Art shows and science fairs;
 - o School sponsored events held off campus; and
 - o Graduation ceremonies; or
- Regular school activities where the public is invited.

Possession of Personal Electronic Device

Except as permitted under this policy, a student shall not be in possession of a personal electronic device during the school day. A student may possess a personal electronic device during the school day if:

- o The personal electronic device is required by the student's individual education plan (IEP), 504 Plan, or Individual Health Plan for health reasons;¹
- o The possession of the personal electronic device is during an emergency as defined by this policy;
- o The personal electronic device is issued by the District for the student's use during the school day; or
- o The possession of the personal electronic device is by a student enrolled in an endorsed concurrent enrollment course at an institution of higher education in order to utilize two-factor authentication to access course work and resources for the endorsed concurrent enrollment course; or
- o The possession of the personal electronic device is during a special event during the school day.²

A student shall be deemed to not be in possession of a personal electronic device if:²³

Use Of Personal Electronic Device

Except as permitted by this policy, a student shall not use a personal electronic device during the school day. A student may use a personal electronic device during the school day if:

- o The personal electronic device is required by the student's individual education plan (IEP), 504 Plan, or Individual Health Plan for health reasons;¹
- o The use of the personal electronic device is during an emergency as defined by this policy;
- o The personal electronic device is issued by the District for the student's use during the school day; or
- o The use of the personal electronic device is by a student enrolled in an endorsed concurrent enrollment course at an institution of higher education in order to utilize two-factor authentication to access course work and resources for the endorsed concurrent enrollment course; or
- o The use of the personal electronic device is during a special event during the school day.²

A student may possess and use a personal electronic device at a special school event for the purpose of taking photographs. The District shall inform the students and students' parents, legal guardians, persons having lawful control of the student, and persons standing in loco parentis the following before a special school event takes place:

When and where the special school event will take place;

Whether or not personal electronic devices shall be allowed at the special school event; and

Where personal electronic devices may be used at the special school event.

The use of personal electronic devices at school sponsored functions outside the regular school day is permitted to the extent and within the limitations allowed by the event or activity the student is attending.

Misuse of Personal Electronic Devices

Even if a student is allowed to possess or use a personal electronic device under this policy, the misuse of a personal electronic device is prohibited. Misuse of personal electronic devices includes, but is not limited to:

1. Using personal electronic devices issued by the District during class time in any manner other than specifically permitted by the classroom instructor;
2. Permitting any audible sound to come from the personal electronic device when not being used for reason #1 above;
3. Engaging in academic dishonesty, including cheating, intentionally plagiarizing, wrongfully giving or receiving help during an academic examination, or wrongfully obtaining test copies or scores;
4. Using the personal electronic device to record audio or video or to take photographs in areas where a general expectation of personal privacy exists, including but not limited to locker rooms and bathrooms;
5. Creating, sending, sharing, viewing, receiving, or possessing an indecent visual depiction of oneself or another person regardless of whether the image is real or created through the use of artificial intelligence;
6. Using a personal electronic device issued by the District in a manner that violates the Electronic Device and Internet Use Agreement regardless of whether the violation occurred on or off campus;

7. Using a personal electronic device at an event during the school day that was not designated as a special school event or in a manner or location that was not authorized as part of the special school event;
8. Using personal electronic devices issued by the District while driving any vehicle at any time;³⁴ or
9. Using a personal electronic device for the purposes of browsing the internet; composing or reading emails and text messages; or making or answering phone calls while driving a motor vehicle that is in motion and on school property.⁴⁵

Discipline

A student may have a personal electronic device confiscated if:

The student is found to possess or use a personal electronic device when the use or possession is not authorized by this policy and the personal electronic device was not issued by the District;

The student misuses a personal electronic device as defined by this policy; or

The student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis uses the remote recording or listening capabilities of a personal electronic device, either through an app installed on the personal electronic device or the built-in capacity of the personal electronic device, except when authorized by the District.^{1, 56}

Confiscated personal electronic devices may be picked up at the school's administration office by the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis .² Students have no right of privacy as to the content contained on any personal electronic devices that have been confiscated.³ A search of a confiscated device shall meet the reasonable individualized suspicion requirements of Policy 4.32—SEARCH, SEIZURE, AND INTERROGATIONS.⁶⁷

A student and the student's parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis expressly assume any risk associated with a student's possession or use of a student's personal electronic device that is not issued by the District. The District shall not be liable for a personal electronic device that is confiscated if the personal electronic device is lost, stolen, or damaged.

In addition to the confiscation of a personal electronic device for a violation of this policy, a student may be subject to the following discipline:⁷⁸

To protect the integrity of the administration of the assessments under the Arkansas Educational Support and Accountability Act, a student who is found to be in possession of or to use a personal electronic device during the administration of a statewide

assessment that is not required by the student's IEP, 504 Plan, or issued by the District shall have the discipline the student is subject to increased by an additional level.

Legal References: A.C.A. § 6-15-2907

A.C.A. § 6-18-515

A.C.A. § 27-51-1602

A.C.A. § 27-51-1603

A.C.A. § 27-51-1609

DESE Test Administration Manual

DESE Rules Governing Student Discipline and School Safety

Date Adopted: 7/20/2026

Last Revised: 9/1/2026

4.48—VIDEO SURVEILLANCE AND OTHER STUDENT MONITORING

The Board of Directors has a responsibility to maintain discipline, protect the safety, security, and welfare of its students, staff, and visitors while at the same time safeguarding district facilities, vehicles, and equipment. As part of fulfilling this responsibility, the board authorizes the use of video/audio surveillance cameras, automatic identification technology, data compilation devices, and technology capable of tracking the physical location of district equipment, students, and/or personnel.

The placement of video/audio surveillance cameras shall be based on the presumption and belief that students, staff and visitors have no reasonable expectation of privacy anywhere on or near school property, facilities, vehicles, or equipment, with the exception of places such as rest rooms or dressing areas where an expectation of bodily privacy is reasonable and customary.

Signs shall be posted on campus buildings and in district vehicles to notify students, staff, and visitors that video cameras may be in use. Parents and students are hereby notified that cameras may be in use in school buildings, on school grounds and in school vehicles. Students will be held responsible for any violations of school discipline rules caught by the cameras and other technologies authorized in this policy. The district is under no obligation to either retain or destroy captured video data.

Videos, automatic identification, or data compilations containing evidence of a violation of student conduct rules and/or state or federal law shall be retained until the issue of the misconduct is no longer subject to review or appeal as determined by the

involved building administrator; any release or viewing of such records shall be in accordance with current law.

Students who vandalize, damage, disable, or render inoperable (temporarily or permanently) surveillance cameras and equipment, automatic identification, or data compilation devices shall be subject to appropriate disciplinary action and referral to appropriate law enforcement authorities.

Legal References: 20 USC 1232(g)
20 U.S.C. 7115
34 CFR 99.3, 4, 5, 7, 8, 10, 12, 31

Last Revised: 7-3-18

4.49—SPECIAL EDUCATION

In accordance with the Individuals With Disabilities Education Act (IDEA), Section 504 of the Rehabilitation Act of 1973, the Americans With Disabilities Act, and Arkansas Statutes, the district shall provide a free appropriate public education and necessary related services to all children with disabilities who reside:

- Within the district boundaries; or
- Outside of the District boundaries but are enrolled in the District.

It is the intent of the district to ensure that students who are disabled within the definition of Section 504 of the Rehabilitation Act of 1973 are identified, evaluated and provided with appropriate educational services. Students may be disabled within the meaning of Section 504 of the Rehabilitation Act even though they do not require services pursuant to the IDEA.

For students eligible for services under IDEA, the District shall follow procedures for identification, evaluation, placement, and delivery of services to children with disabilities provided in state and federal statutes which govern special education. Implementation of an Individualized Education Program (IEP) in accordance with the IDEA satisfies the district's obligation to provide a free and appropriate education under Section 504.

The Board directs the superintendent to ensure procedures are in place for the implementation of special education services and that programs are developed to conform to the requirements of state and federal legislation. The superintendent is responsible for appointing a district coordinator for overseeing district fulfillment of its responsibilities regarding handicapped students. Among the coordinator's responsibilities shall be ensuring district enforcement of the due process rights of handicapped students and their parents.

Cross Reference: 6.7—COMPLAINTS

Legal References:

34 C.F.R. part 300

20 U.S.C. §1400 et seq.

29 U.S.C. § 794

42 U.S.C. §12101 et seq.

A.C.A. § 6-41-102

A.C.A. § 6-41-103

Last Revised: 6-21-21

4.50—SCHOOL MEAL MODIFICATIONS

The district only provides substitute meal components on menus to accommodate students with handicapping conditions meeting the definition of a disability as defined in USDA regulations. A parent/guardian wishing to request such a dietary accommodation must submit to the district's Director of Child Nutrition a Certification of Disability for Special Dietary Needs Form completed by a:

- Physicians, including those licensed by:
 - The Arkansas State Medical Board;
 - The Arkansas State Board of Chiropractic Examiners (Chiropractors);
 - The Arkansas Board of Podiatric Medicine (Podiatrists);
- Nurse Practitioners (APRNs in family or pediatric practice with prescriptive authority);
- Physician Assistants (PAs who work in collaborative practice with a physician); and
- Dentists.

The district will not prepare meals outside the normal menu to accommodate a family's religious or personal health beliefs.

Legal References: Commissioner's Memo FIN-09-044
Commissioner's Memo FIN-15-122
Commissioner's Memo CNU-17-051
7 CFR 210.10(g)

Last Revised: 8-15-22

4.51—FOOD SERVICE PREPAYMENT

Meal Charges¹

Free Breakfast

In accordance with A.C.A. § 6-18-722, a student shall be provided one (1) breakfast at no cost during each school day upon the student's request regardless of whether the student qualifies for a federally funded free or reduced-price meal. Adult breakfast is \$1.50.

Alpena School District participates in the Community Eligible Provision (CEP) program. Through this program, every child's breakfast is provided to the child at no cost.

While districts have the option to allow students to charge for meals and a la carte items, we have not provided any options that would allow students to do so because Chapter 3 of the federal Fair and Accurate Credit Transaction Act of 2007 (15 U.S.C. § 1681 *et seq.*), along with its accompanying regulations (16 C.F.R. part 681), requires "creditors" to implement an Identity Theft Protection Program. We see the establishment and maintenance of an identity theft protection program to be a financial and potentially time-consuming burden. Districts can avoid this burden by not having practices deemed to make them "creditors", such as through the language in this policy.

A copy of this policy must be communicated in writing at least once to all households at the start of each school year and to households of students who transfer to the school during the school year. Some suggestions on communication methods are to include a copy of the policy in:

- § Student enrollment materials;

- § Print versions of student handbooks; or

- § Notification methods on applying for free or reduced price meals.

The United States Department of Agriculture (USDA) does not consider providing a copy of this policy only in electronic format to satisfy the communication requirement.

A written copy of this policy must be provided to all staff responsible for policy enforcement. This includes:

- A. School food service professionals;

- B. Staff involved in notifying families of low prepaid account balances;

- C. School social workers;

- D. School nurses; and

- E. The LEA homeless student liaison.

Legal References: Commissioner's Memo CNU-17-003

Commissioner's Memo CNU-17-024

A.C.A. § 6-18-715

A.C.A. § 6-18-722

Date Adopted: 6/20/2026

Last Revised: 6/20/2026

4.51a—SCHOOL LUNCHES

- a. A hot lunch and breakfast program is provided in the cafeteria for the benefit and convenience of both the student and the parent.
- b. Alpena School District participates in the Community Eligible Provision (CEP) program. Through this program, every child's breakfast is provided to the child at no cost. Adults must pay \$4.25. Extra milk will be available at extra cost. All prices are subject to change at any time.

LUNCHROOM POLICIES

1. Food may only be delivered by parents and at the discretion of the principal or designee.
2. Breakfast and lunch money can be paid to building secretary or cafeteria administrator. No trays or ice cream are allowed out of the cafeteria. (Lunches will be served in carryout trays for those students in ISS or for other disciplinary reasons.)

Date Adopted: 6/20/2026

Last Revised 6/20/2026

4.51b NUT RESTRICTED CAMPUS

Alpena School District is a nut restricted campus. Foods sent in for snack, lunch, or any class event (including parties, field trips, etc.) should be carefully checked to make sure they are nut-free. Nut products may not be consumed in classrooms or on buses. Nuts may be consumed only at designated tables in the lunchroom. Families can help ensure that our school stays nut-free by reading packaging labels and reminding children not to share food with other children at school. We need to make sure that there is little opportunity for a child to be exposed to foods that could harm him/her.

Last Revised: 08/19/19

4.52—STUDENTS WHO ARE FOSTER CHILDREN

The District will afford the same services and educational opportunities to foster children that are afforded other children and youth. The District shall work with the Department of Human Services (DHS), the Division of Elementary and Secondary Education (DESE), and individuals involved with each foster child to ensure that the foster child is able to maintain the foster child's continuity of educational services to the fullest extent that is practical and reasonable.

The Superintendent or the superintendent's designee shall appoint an appropriate staff person to be the local educational liaison for foster children and youth whose responsibilities shall include ensuring the timely school enrollment of each foster child and assisting foster children who transfer between schools by expediting the transfer of relevant educational records.¹

The District, working with other individuals and agencies shall, unless the presiding court rules otherwise or DHS grants a request to transfer under Foster Child School Choice, ensure that the foster child remains in the foster child's school of origin, even if a change in the foster child's placement results in a residency that is outside the district. In such a situation, the District will work with DHS to arrange for transportation to and from school for the foster child to the extent it is reasonable and practical.²

Upon notification to the District's foster care liaison by a foster child's caseworker that a foster child's school enrollment is being changed to one of the District's schools, the school receiving the child must immediately enroll the foster child. Immediate enrollment is required even if a child lacks the required clothing, academic or medical records, or proof of residency.³

A foster child's grades shall not be lowered due to absence from school that is caused by a change in the child's school enrollment, the child's attendance at dependency-neglect court proceedings, or other court-ordered counseling or treatment.

Any course work completed by the foster child prior to a school enrollment change shall be accepted as academic credit so long as the child has satisfactorily completed the appropriate academic placement assessment.⁴

If a foster child was enrolled in a District school immediately prior to completing the foster child's graduation requirements while detained in a juvenile detention facility or while committed to the Division of Youth Services of DHS, the District shall issue the child a diploma.

Foster Child School Choice

If DHS approves a request from a foster parent, or the foster child if the foster child is eighteen (18) years of age, to transfer to another school in the District or into the district as being in the best interest of the foster child, the District shall allow the foster

child to transfer to another school in the District or into the District if the foster parent, or the foster child if the foster child is eighteen (18) years of age, submits a request to transfer on a form approved by DESE that is postmarked by no later than June 1 of the year the student seeks to begin the fall semester at another school in the District or in the District.

By July 1 of the school year in which the student seeks to transfer under this section, the superintendent shall notify the foster parent, or the foster child if the foster child is eighteen (18) years of age, in writing whether the application has been accepted or rejected. If the application is accepted, the superintendent shall state in the notification letter a reasonable deadline for the foster child to enroll in the new school or the District and that failure to enroll by the date shall void the school choice acceptance. If the application is rejected, the superintendent shall state in the notification letter the reason for the rejection and that the foster parent, or the foster child if the foster child is eighteen (18) years of age, may submit a written appeal of the rejection to the State board within ten (10) days of receiving the notification letter.

The District shall only reject a Foster Child School Choice application if:⁵

1. The public school or District has reached the maximum student-to-teacher ratio allowed under federal law; state law; the standards for accreditation; or other applicable State rule or Federal regulation; or
2. Approving the transfer would conflict with a provision of an enforceable desegregation court order or a public school district's court-approved desegregation plan regarding the effects of past racial segregation in student assignment.

A foster child whose application is rejected by the District may submit a written request within ten (10) days following the receipt of the rejection letter from the superintendent to the State Board of Education for the State Board to reconsider the transfer.

A Foster Child School Choice transfer shall remain in effect until the foster child:

- Graduates from high school; or
- Transfers to another school or school district under:
 - o The Foster Child School Choice Act;
 - o Opportunity Public School Choice Act;
 - o The Public School Choice Act of 2015; or
 - o Any other law that allows a transfer.

The District shall accept credits toward graduation that were awarded by another public school district.

When a foster child transfers from the foster child's school of origin to another school in the District or into the District, the foster child or the foster parent is responsible for the foster child's transportation to and from the school the foster child transferred to. The District and the foster parent, or the foster child if the foster child is eighteen (18) years of age, may enter into a written agreement for the District to provide the transportation to and from the school the foster child transferred to.

Cross References: 4.1—RESIDENCE REQUIREMENTS

4.2—ENTRANCE REQUIREMENTS

4.5—SCHOOL CHOICE

4.7—ABSENCES

Legal References: A.C.A. § 6-18-233

A.C.A. § 9-28-113

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

4.53 PLACEMENT OF STUDENTS

Students are assigned to classrooms by grouping in a way that would best fit their educational needs. we appreciate parents allowing us to do this without making personal requests. If there should be a problem with the placement of a child the parents need to discuss it with the principal. There would need to be a definite problem which would affect the educational welfare of the child and which could not be resolved to the building administrator's satisfaction in some other way.

Placement of multiple birth siblings

The parent, guardian or other person having charge or custody of multiple birth siblings in grades pre-K through 6 may request that the multiple birth siblings are placed in either the same or separate classrooms. The request shall be in writing not later than the 14th calendar day prior to the first day of classes at the beginning of the academic year. The school shall honor the request unless it would require the school to add an additional class to the sibling's grade level. If one parent of multiple birth siblings requests a placement that differs from that of the other parent of the same multiple birth siblings, the school shall determine the appropriate placement of the siblings.

The school may change the classroom placement of one or more of the multiple birth siblings if:

- There have been a minimum of 30 instructional days since the start of the school year; and
 - After consulting with each classroom teacher in which the siblings were placed, the school determines the parent's classroom placement request is:
 - Detrimental to the educational achievement of one or more of the siblings;
 - Disruptive to the siblings' assigned classroom learning environment; or
 - Disruptive to the school's educational or disciplinary environment.

If a parent believes the school has not followed the requirements of this policy, the parent may appeal the multiple birth siblings' classroom placement to the Superintendent. The Superintendent's decision regarding the appeal shall be final.

Legal Reference: A.C.A. § 6-18-106

Date Adopted: 8/12/2013

Last Revised: 8/12/2013

4.54 - STUDENT ACCELERATION

The Board believes that acceleration is an effective and research-based intervention for the academic growth of students who are ready for an advanced or faster-paced curriculum. Acceleration can allow a student to move through the traditional educational setting more rapidly, based on assessed readiness, capability, and motivation. At the same time, the Board understands that acceleration is not a replacement for gifted education services or programs.

Generally, acceleration can occur through one of two broad categories: content based and grade based. Grade based acceleration shortens the number of years a student would otherwise spend in K-12 education, while content based acceleration occurs within the normal K-12 time span. Either form of acceleration can be triggered by either a parent/guardian, student, or community member's request or by the referral of school personnel.

Elementary School Students

The process of determining the appropriateness of a request for an elementary school student to receive acceleration shall be under the direction of the district Gifted and Talented Program Coordinator. The district Gifted and Talented Program Coordinator shall convene the Acceleration Placement Committee and communicate with the individuals necessary for the Acceleration Placement Committee to make an informed decision, which shall include the student's parents or guardians.

While the needs of the student should dictate when acceleration decisions are considered, the Board believes the optimal time for referrals is in the spring, which gives adequate time for working through the determination process and for preparing those concerned for a smooth transition to the acceleration beginning in the following school-year.

The District's Gifted and Talented (GT) Program Coordinator will create a written format to govern the referral and determination process for elementary school students, which shall be made available to any parent or staff member upon request.

The parents/guardians of any elementary school student whose request for acceleration has been denied may appeal the decision, in writing to the District's GT Coordinator. The District's GT Coordinator and the Acceleration Placement Committee will again thoroughly review the case study that was completed on the student. Upon completion of the review, the Committee will either request additional new testing be conducted to help the Committee make its determination or it will uphold the initial decision. The Committee's decision may not be further appealed.

Course Selection Students

District students who attend a District school that authorizes the student to select individual courses shall have acceleration options provided to them by the counselor during the course selection process. The course selection process shall be part of the Student Success Plan created and modified in accordance with Policy 4.55—STUDENT PROMOTION AND RETENTION.

Cross Reference: 4.55—STUDENT PROMOTION AND RETENTION

Legal Reference: DESE Gifted and Talented Rules

Date adopted: 6/4/2026

Last Revised: 6/4/2026

4.55—STUDENT PROMOTION AND RETENTION

A disservice is done to students through social promotion and is prohibited by state law. The District shall, at a minimum, evaluate each student annually in an effort to help each student who is not performing at grade level. Parents, legal guardians, persons having lawful control of the student, or persons acting in loco parentis shall be kept informed concerning the progress of their student(s). Notice of a student's possible retention or required retaking of a course shall be included with the student's grades sent home to each parent/guardian or the student if 18 or older.

Parent-teacher conferences are encouraged and may be held as necessary in an effort to improve a student's academic success.

Each time a student is assessed by use of a high-quality literacy screener, with results at least once each semester, the parents, legal guardians, persons having lawful control of the student, or persons acting in loco parentis, and teacher(s) of a student in kindergarten through eighth (8th) grade shall be notified in writing of the student's independent grade-level-equivalency in reading and, in a parent friendly manner, the student's reading progress.

Any grades, course credits, and/or promotions received by a student while enrolled in the Division of Youth Services system of education shall be considered transferable in the same manner as those grades, course credits, and promotions from other accredited Arkansas public educational entities.

Promotion or retention of students, or their required retaking of a course shall be primarily based on the following criteria.

For students in kindergarten through grade four (k-4):

- A student who has not met the third-grade reading standard as defined by the state board shall not be promoted to fourth(4th) grade unless the student has a good cause waiver. The following students may receive a good cause waiver:
- Limited English Proficiency students who have had less than three (3) years of instruction in an English language learner program;
- Students with a disability who are not eligible for the alternate assessment and who have an individualized education program or a 504 plan that reflects that the individual student:
 - Has received an intensive, evidence-based literacy intervention program aligned to the science of reading for more than two (2) years; and
 - Still demonstrates a need in reading proficiency or previously was retained in kindergarten, grade one (1), grade two (2), or grade three (3);
- Students who:
 - Have received an intensive, evidence-based literacy intervention program aligned to the science of reading for two (2) or more years;
 - Still demonstrate a need in reading proficiency and who previously were retained in kindergarten, grade one (1), grade two (2), or grade three (3);
 - Have received a special education referral and a full comprehensive evaluation; and
 - Have not met exceptional education criteria;
- Students who have already been retained in kindergarten, grade one (1), grade two (2), or grade three (3) for one (1) year;
- Students who can demonstrate that they are successful and independent readers and can perform at or above grade level by use of subsequent student assessments or alternative assessments; or
- Other students with necessary, justifiable good-cause exemptions identified as appropriate by the state board, in consultation with reading experts.

If there is doubt concerning the promotion or retention of a student or his/her required retaking of a course, a conference shall be held before a final decision is made that includes the following individuals:

- a. The building principal or designee;
- b. The student's teacher(s);
- c. School counselor;
- d. A 504/special education representative (if applicable); and
- e. The student's parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis.

The conference shall be held at a time and place that best accommodates those participating in the conference. The school shall document participation or non-participation in required conferences. If the conference attendees fail to agree concerning the student's placement or receipt of course credit, the final decision shall rest with the principal or the principal's designee.

Each student shall have a student success plan (SSP) developed by school personnel in collaboration with the student's parents and the student that is reviewed and updated annually. A student's SSP shall use multiple academic measures to personalize learning in order for students to achieve their grade-level expectations and individual growth. The SSP will identify if the student is in need of additional support or acceleration. Academic measures to be used in creating and updating a student's SSP shall include, but are not limited to:

- Statewide student assessment results;
- Subject grades;
- Student work samples; and
- Local assessment scores.

The SSP for a student in kindergarten through grade three (K-3) who does not meet the reading standard As set by the state board and determined by a high-quality literacy screener or the statewide assessment shall include an individual reading plan for each student. An individual reading plan shall include:

1. The student's specific, diagnosed reading skill needs, including without limitation:
 - Phonemic awareness;
 - Phonics decoding;
 - Text reading fluency;
 - Vocabulary-building strategies; and
 - Self-regulated use of reading comprehension strategies, as identified by high-quality literacy screener data;
2. The goals and benchmarks for the student's growth;
3. How the student's progress will be monitored and evaluated;
4. The type of additional instructional services and interventions the student may receive;
5. The intensive, evidence-based literacy intervention program aligned to the science of reading the student's teacher will use to address the areas of phonemic awareness, phonics, fluency, vocabulary, and comprehension;

6. The strategies the student's parents, legal guardians, or persons standing in loco parentis to the student are encouraged to use in assisting the student to achieve the student's reading goal; and
7. Any additional services the student's teacher determines are available and appropriate to accelerate the student's reading skill development.

All parents, legal guardians, or persons standing in loco parentis shall be notified in writing:

- a. Of the content of their child's independent reading plan and progress on the independent reading plan throughout the year; and
- b. By no later than October 1 of each year, or as soon as practicable if a student's reading need is identified after October 1:
 - o Of their student's eligibility to participate in the literacy tutoring grant program;
 - o The process for applying for the literacy tutoring grant program; and
 - o Other information provided by DESE.

For each student who does not meet the reading standard established by the state board by the end of third (3rd) grade, including students who are promoted to the fourth (4th) grade under a good cause waiver, the District, during the subsequent summer and school year, shall :

- a. Provide at least ninety (90) minutes of evidence-based literacy instruction aligned to the science of reading during each school day;
- b. Assign the student to:
 - If the District has a teacher with a value-added model score in the top quartile statewide in English language arts for the past three (3) years, a teacher with a value-added model score in the top quartile statewide in English language arts for the past three (3) years; or
 - If the District is unable to identify a teacher with a value-added model score in the top quartile statewide in English language arts for the past three (3) years, a teacher:
 - o With a highly-effective rating according to the Teacher Excellence and Support System, when possible; or
 - o Deemed to be a high-performing teacher as defined by a Master Professional Educator designation.
- c. Provide parents, legal guardians, or persons standing in loco parentis to students with a "read-at-home" plan to support student early literacy growth, which shall include evidence-based science of reading strategies and tools that are aligned to a student's individual reading plan for parents, legal guardians, or persons standing in loco parentis to use with their student;
- d. Notify parents, legal guardians, or persons standing in loco parentis to a student regarding their student's eligibility for a literacy tutoring grant;
- e. Be given priority to receive a literacy tutoring grant; and
- f. Be given the option to participate in additional intensive, evidence-based literacy intervention programs aligned to the science of reading.

The SSP of a student in kindergarten through grade eight (K-8) who is not performing at or above grade level on the state assessment, as defined by the State Board of Education shall include a math intervention plan. The math intervention plan may include the:

1. Provision of each student with access to high-dosage, targeted math tutoring in the subsequent school year, which shall include three (3) or more tutoring sessions a week in a one-on-one or small-group setting;
2. Assignment to:
 - if the District has a teacher with a value-added model score in the top quartile statewide in math for the previous three (3) years, a teacher, with a value-added model score in the top quartile statewide in math for the previous three (3) years; or
 - if the District is unable to find a teacher with a value-added model score in the top quartile statewide in math for the previous three (3) years, a teacher:
 - o With a highly-effective rating in the Teacher Excellence and Support System, when possible; or
 - o Deemed to be a high-performing teacher as defined by a Master Professional Educator designation; and
3. Provision of each student with extended time on math instruction during or after school.

All parents, legal guardians, or persons standing in loco parentis shall receive written notification of their student's math intervention plan and progress on the student's math intervention plan throughout the school year.

- By the end of grade eight (8), the student's SSP shall:
- Guide the student along pathways to graduation;
- Address accelerated learning opportunities;
- Address academic deficits and interventions; and
- Include college and career planning components.

Based on a student's score on the college and career assessment:

- The student's SSP will be updated in order to assist the student with college and career readiness skills, course selection in high school, and improved academic achievement; and
- Provide a basis for counseling concerning postsecondary preparatory programs.

A student's SSP shall include the recommended sequence of courses for successful completion of the diploma pathway selected by the student but be sufficiently flexible to allow the student to change the student's selected diploma pathway. The school counselor shall meet with the student's parent, legal guardian, or persons standing in loco parentis and the student to review the student's SSP annually and to revise the student's SSP as necessary to identify the courses to be taken each year until all required core courses are completed. Part of the review shall include an explanation of the possible impacts the revisions to the plan might have on the student's graduation requirements and postsecondary education goals. Any change

made to a student's SSP as part of the review that amends the student's diploma pathway shall be structured to ensure that the student will meet the high school graduation requirements for the student's chosen diploma pathway and be qualified for admission to a postsecondary educational institution or to enter the workforce. After each review, the student's SSP shall be signed by the student; student's parent, legal guardian, or person standing in loco parentis to the student; and the school counselor.

An SSP shall be created:

1. By no later than the end of the school year for a student in grade eight (8) or below who enrolls in the District during the school year; or
2. As soon as reasonably possible for a student in grade nine (9) or above who enrolls in the District at the beginning or during the school year.

A student's individualized education program (IEP) may act in the place of the student's SSP if the IEP addresses academic deficits and interventions for the student's failure to meet standards-based academic goals at an expected rate or level and includes a transition plan that addresses college and career planning components. Promotion or retention - of students with an IEP shall be based on their successful attainment of the goals set forth in their IEP.

Students who either refuse to sit for a Statewide assessment or attempt to boycott a Statewide assessment by failing to put forth a good faith effort on the assessment as determined by the assessment administrator/proctor, or whose parents do not send their student to school on the dates the assessments are originally administered or scheduled as make-up days shall not be permitted to participate in any non-curriculum related extracurricular activity, including field trips, school dances, prom, homecoming, senior events, and may be prevented from walking or participating in graduation exercises. The student shall remain ineligible to participate until the student takes the same or a following Statewide assessment, as applicable. The Superintendent or designee may waive this paragraph's provisions when the student's failure was due to exceptional or extraordinary circumstances.

Cross References:

3.30—PARENT-TEACHER COMMUNICATION

4.56—EXTRACURRICULAR ACTIVITIES - SECONDARY SCHOOLS

4.56.1—EXTRACURRICULAR ACTIVITIES - ELEMENTARY

5.13—STUDENT INTERVENTION SERVICES AND SUMMER SCHOOL

Legal References: A.C.A. § 6-15-2001

A.C.A. § 6-15-2005

A.C.A. § 6-15-2006

A.C.A. § 6-15-2907

A.C.A. § 6-15-2911

A.C.A. § 6-17-429

A.C.A. § 6-17-431

A.C.A. § 9-28-205

DESE Rules Governing the Arkansas Educational Support and Accountability Act

DESE Rules Governing Grading and Course Credit

Murphy v. State of Ark., 852 F.2d 1039 (8th Cir. 1988)

Last Revised: 5/22/23

4.56—EXTRACURRICULAR ACTIVITIES – SECONDARY SCHOOLS

Definitions

“Academic Courses” are those courses for which class time is scheduled, which can be credited to meet the minimum requirements for graduation, which is taught by a teacher required to have State licensure in the course or is otherwise qualified under Arkansas statute, and has a course content guide which has been approved by the Division of Elementary and Secondary Education (DESE). Any of the courses for which concurrent high school credit is earned may be from an institution of higher education recognized by DESE. If a student passes an academic course offered on a block schedule, the course can be counted twice toward meeting the requirement for students to pass four (4) academic courses per semester as required by this policy.

“Extracurricular activities” are defined as: any school sponsored program where students from one or more schools meet, work, perform, practice under supervision outside of regular class time, or are competing for the purpose of receiving an award, rating, recognition, or criticism, or qualification for additional competition. Examples include, but are not limited to, inter/intrascholastic athletics, cheerleading, band, choral, math, or science competitions, field trips, and club activities.

“Field Trips” are when individual students or groups of students are invited to programs or events when there is no competition and the students are not interacting with each other for the purpose of planning, qualifying, or arranging for future programs or for the purpose of receiving recognition.

“Interscholastic Activities” means athletic or non-athletic/academic activities where students compete on a school vs. school basis.¹

“Intrascholastic Activities” means athletic or non-athletic/academic activities where students compete with students from within the same school.¹

“Supplemental Improvement Program (SIP)” is an additional instructional opportunity for identified students outside of their regular classroom and meets the criteria outlined in the current Arkansas Activities Association (AAA) Handbook.

Extracurricular Eligibility

The Board believes in providing opportunities for students to participate in extracurricular activities that can help enrich the student's educational experience. At the same time, the Board believes that a student's participation in extracurricular activities cannot come at the expense of the student's classroom academic achievement. Interruptions of instructional time in the classroom are to be minimal and absences from class to participate in extracurricular activities shall not exceed one (1) per week per extracurricular activity (tournaments excepted)². Additionally, a student's participation in, and the District's operation of, extracurricular activities shall be subject to the following policy. All students are eligible for extracurricular activities unless specifically denied eligibility on the basis of criteria outlined in this policy.

Any student who refuses to sit for a Statewide assessment or attempts to boycott a Statewide assessment by failing to put forth a good faith effort on the assessment as determined by the assessment administrator/proctor, or whose parents do not send their student to school on the dates the assessments are administered or scheduled as make-up days shall not be permitted to participate in any non-curriculum related extracurricular activity. The student shall remain ineligible to participate until the student takes the same or a following statewide assessment, as applicable. The superintendent or designee may waive this paragraph's provisions when the student's failure was due to exceptional or extraordinary circumstances.³ Students falling under the provisions of this paragraph shall be permitted to attend curriculum related field trips occurring during the school day.⁴

A student who enrolls in the district and meets the definition of "eligible child" in Policy 4.2—ENTRANCE REQUIREMENTS shall be eligible to try out for an extracurricular activity regardless of the date the student enrolls in the District so long as the student meets all other eligibility requirements and the extracurricular activity is still ongoing.

A student and the parent or legal guardian of the student shall sign and return an acknowledgement of receipt and review of an information sheet regarding signs and symptoms of sudden cardiac arrest before the student may participate in an athletic activity and before each school year the student participates in an athletic activity.

No student shall be required to pay for individual or group instruction in order to participate in an extracurricular activity.

Interscholastic Activities

Each school in the District shall post on its website its schedule of interscholastic activities, including sign-up, tryout, and participation deadlines, at least one semester in advance of those activities. A hard copy of the schedule shall be available upon request.⁵

ACADEMIC REQUIREMENTS: Junior High

A student promoted from the sixth to the seventh grade automatically meets scholarship requirements. A student promoted from the seventh to the eighth grade

automatically meets scholarship requirements for the first semester. The second semester eighth-grade student meets the scholarship requirements for junior high if the student has successfully passed four (4) academic courses the previous semester.

The first semester ninth-grade student meets the scholarship requirements for junior high if the student has successfully passed four (4) academic courses the previous semester.

The second semester ninth-grade student meets the scholarship requirements for junior high if the student has successfully passed (4) academic courses the previous semester which count toward the student's high school graduation requirements.

Ninth-grade students must meet the requirements of the senior high scholarship rule by the end of the second semester in the ninth grade in order to be eligible to participate the fall semester of their tenth-grade year.

ACADEMIC REQUIREMENTS: Senior High

In order to remain eligible for competitive interscholastic activity, a student must have passed (4) academic courses the previous semester and either:

1. Have earned a minimum Grade Point Average (GPA) of 2.0 from all academic courses the previous semester; or
2. If the student has passed four (4) academic courses the previous semester but does not have a 2.0 GPA the student must be enrolled and successfully participating in an SIP to maintain their competitive interscholastic extracurricular eligibility.

STUDENTS WITH AN INDIVIDUAL EDUCATION PROGRAM

In order to be considered eligible to participate in competitive interscholastic activities, students with disabilities must pass at least four (4) courses per semester as required by their individual education program (IEP).

Homeless Students

Students who are determined to be experiencing homelessness by the school's homeless LEA shall be eligible for participation in interscholastic activities.

ARKANSAS ACTIVITIES ASSOCIATION

In addition to the foregoing rules, the district shall abide by the rules of AAA governing interscholastic activities. AAA provides catastrophic insurance coverage for students participating in AAA governed extracurricular activities who are enrolled in school. As a matter of District policy, no student may participate in a AAA governed

extracurricular activity unless the student is enrolled in a district school, to ensure all students are eligible for AAA catastrophic insurance.⁶

Intrascholastic Activities

AAA Governed Activities

Students participating in intrascholastic extracurricular activities that would be governed by AAA if they were to occur between students of different schools shall meet all interscholastic activity eligibility requirements to be eligible to participate in the comparable intrascholastic activity. The District will abide by the AAA Handbook for such activities to ensure District students are not disqualified from participating in interscholastic activities.⁷

Non-AAA Governed Activities

Unless made ineligible by District policies, all students shall be eligible to participate in non-AAA governed intrascholastic extracurricular activities. Intrascholastic activities designed for a particular grade(s) or course(s) shall require the student to be enrolled in the grade(s) or course(s).

School Choice Transfers

A student who transfers under a legal school choice option shall not be denied participation in an extracurricular activity where the student transfers based exclusively on the student's decision to transfer. A student who transfers after June 1 of the year the student enters grades seven through ten (7-10) shall complete a Changing Schools/Athletic Participation form as defined by AAA, which must be signed by the:

- Superintendent of the student's resident school district;
- Superintendent of the nonresident school district to which the student transfers; and
- Parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student.

The completed Changing Schools/Athletic Participation form shall be filed with the non-resident school district where the student transfers and the AAA. The Changing Schools/Athletic Participation form shall be signed by the superintendent of a student's resident school district and the superintendent of the nonresident school district to which a student transfers unless there is demonstrable evidence of recruiting by the receiving school district personnel or that the student is transferring to the nonresident school district solely for athletic purposes.

A student who transfers into the District and is enrolled in the District by June 1 of the school year the transfer student will be enrolled in grade seven (7), eight (8), nine (9), or ten (10) shall be immediately eligible to participate in an extracurricular activity that

is an athletic activity. If a transfer student is not enrolled in the District by June 1 of the school year the student will be enrolled in grade seven (7), eight (8), nine (9), or ten (10), then the transfer student shall not be eligible to participate in an extracurricular activity that is a varsity athletic activity for up to three hundred sixty-five (365) days.

- a. Football;
- b. Basketball;
- c. Baseball;
- d. Softball; and
- e. Volleyball.

Cross References: 4.40—HOMELESS STUDENTS

4.55—STUDENT PROMOTION AND RETENTION

4.56.1—EXTRACURRICULAR ACTIVITIES - ELEMENTARY

Legal References: Arkansas Activities Association Handbook

A.C.A. § 6-4-302

A.C.A. § 6-15-2907

A.C.A. § 6-16-151

A.C.A. § 6-18-114

A.C.A. § 6-18-115

A.C.A. § 6-18-227

A.C.A. § 6-18-713

A.C.A. § 6-18-1904

A.C.A. § 6-28-108

Commissioner's Memo COM-18-009

Commissioner's Memo LS-18-015

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

4.56.1—EXTRACURRICULAR ACTIVITIES - ELEMENTARY

Elementary and middle school parents must ensure that students attending school sporting events or other extracurricular activities have appropriate supervision. Unsupervised students may be disciplined and/or asked to leave the activity or event.

Definitions

"Extracurricular activities" are defined as: any school sponsored program where students from one or more schools meet, work, perform, practice under supervision outside of regular class time, or are competing for the purpose of receiving an award, rating, recognition, or criticism, or qualification for additional competition. Examples include, but are not limited to, inter/intrascholastic athletics, cheerleading, band, choral, math, or science competitions, field trips, and club activities.

"Field Trips" are when individual students or groups of students are invited to programs or events when there is no competition and the students are not interacting with each other for the purpose of planning, qualifying, or arranging for future programs or for the purpose of receiving recognition.

"Interscholastic Activities" means athletic or non-athletic/academic activities where students compete on a school vs. school basis.

"Intrascholastic Activities" means athletic or non-athletic/academic activities where students compete with students from within the same school.

Extracurricular Eligibility

The Board believes in providing opportunities for students to participate in extracurricular activities that can help enrich the student's educational experience. At the same time, the Board believes that a student's participation in extracurricular activities cannot come at the expense of his/her classroom academic achievement. Interruptions of instructional time in the classroom are to be minimal and absences from class to participate in extracurricular activities shall not exceed one per week per extracurricular activity (tournaments or other similar events excepted with approval of the building Principal). All students are eligible for extracurricular activities unless specifically denied eligibility on the basis of criteria outlined in this policy.

A student may lose his/her eligibility to participate in extracurricular activities when, in the opinion of the school's administration, the student's participation in such an activity may adversely jeopardize his/her academic achievement. Students may also be denied permission to participate in extracurricular activities as a consequence of disciplinary action taken by the administration for inappropriate behavior.

Elementary students must be present for a full day of school on the day of a sporting event in order to participate. Any extenuating circumstances must be approved by

the principal. Extenuating circumstances may include: doctor/dentist appointments, funeral, etc. Doctor/dentist notes must be turned in the same day. Elementary students that go home ill from school may not participate in that day's sporting event. Any student who is serving ISS/OSS or other disciplinary action shall follow the guidelines in the Student Handbook.

Any student who refuses to sit for a Statewide assessment or attempts to boycott a Statewide assessment by failing to put forth a good faith effort on the assessment as determined by the assessment administrator/proctor, or whose parents do not send their student to school on the dates the assessments are administered or scheduled as make-up days shall not be permitted to participate in any non-curriculum related extracurricular activity. The student shall remain ineligible to participate until the student takes the same or a following statewide assessment, as applicable. The building principal or designee may waive this paragraph's provisions when the student's failure was due to exceptional or extraordinary circumstances. Students falling under the provisions of this paragraph shall be permitted to attend curriculum related field trips occurring during the school day

A student who enrolls in the district and meets the definition of "eligible child" in Policy 4.2—ENTRANCE REQUIREMENTS shall be eligible to try out for an extracurricular activity regardless of the date the student enrolls in the District so long as the student meets all other eligibility requirements and the extracurricular activity is still ongoing.

No student shall be required to pay for individual or group instruction in order to participate in an extracurricular activity.

A student and the parent or legal guardian of the student shall sign and return an acknowledgement of receipt and review of an information sheet regarding signs and symptoms of sudden cardiac arrest before the student may participate in an athletic activity and before each school year the student participates in an athletic activity.

Cross References: 4.55—STUDENT PROMOTION AND RETENTION

4.56—EXTRACURRICULAR ACTIVITIES – SECONDARY SCHOOLS

Legal References: State Board of Education Standards for Accreditation 10.05 and 10.06

Legal References: A.C.A. § 6-4-302

A.C.A. § 6-15-2907

A.C.A. § 6-16-151

A.C.A. § 6-18-713

A.C.A. § 6-28-108

Commissioner's Memo LS-18-015

Last Revised: 6/20/26

4.56.2—EXTRACURRICULAR ACTIVITY ELIGIBILITY FOR HOME SCHOOLED STUDENTS

Home-schooled student means a student legally enrolled in an Arkansas home school and who meets or has met the criteria for being a home-schooled student, as established by A.C.A. § 6-15-503.

Interscholastic activity means an activity between schools subject to rules of the Arkansas Activities Association that is outside the regular curriculum of the school district, such as an athletic activity, fine arts program, or a special interest group or club.

Each school in the District shall post on its website its schedule of interscholastic activities, including sign-up, tryout, and participation deadlines, at least one semester in advance of those activities. A hard copy of the schedule shall be available upon request.¹

Home-schooled students whose parents or guardians are legal residents of the school district will be permitted to pursue participation in an interscholastic activity in the student's resident school zone² as permitted by this policy.

Home-schooled students whose parent or legal guardian are not residents of the school district will be permitted to pursue participation in an interscholastic activity in the District if:

- The superintendent of the student's resident district and the superintendent of the District both agree in writing to allow the student to participate in interscholastic activities at the District; or
- The student's resident school does not offer the interscholastic activity and the superintendent of the non-resident district agrees to allow the student to enroll in the interscholastic activity.

Although not guaranteed participation in an interscholastic activity, home-school students who meet the provisions of this policy, AAA Rules, and applicable Arkansas statutes shall have an equal opportunity to try out and participate in interscholastic activities without discrimination. The District shall provide a reasonable alternative to any prerequisite for eligibility to participate in an interscholastic activity that the home-schooled student is unable to meet because of the student's enrollment in a home school.

No student shall be required to pay for individual or group instruction in order to participate in an interscholastic activity.

To be eligible to try out and participate in interscholastic activities, the student or the parent of a student shall mail or hand deliver the student's request to participate to the student's school's principal before the sign-up, tryout or participation deadline

established for traditional students. Additionally, the student shall demonstrate academic eligibility by obtaining a minimum test score of the 30th percentile or better in the previous 12 months on the Stanford Achievement Test Series, Tenth Edition; another nationally recognized norm-referenced test; or a minimum score on a test approved by the State Board of Education.

A student who meets the requirements for eligibility to participate in an interscholastic activity is required to register for no more than one non-academic course³ in the District's school where the student is intending to participate in an interscholastic activity that coincides with the interscholastic activity in which the homeschooled student participates and shall be required to be at school only when participation in the interscholastic activity requires other students who participate in the interscholastic activity to be at school.

The student shall regularly attend the class in which the student is registered beginning no later than the eleventh (11th) day of the semester in which the student's interscholastic activity participation is desired. The student must attend the practices for the interscholastic activity to the same extent as is required of traditional students.

A student and the parent or legal guardian of the student shall sign and return an acknowledgement of receipt and review of an information sheet regarding signs and symptoms of sudden cardiac arrest before the student may participate in an athletic activity and before each school year the student participates in an athletic activity.

-A home-schooled student who has met the try out criteria and who has been selected to participate in the interscholastic activity shall meet the following criteria that also apply to traditional students enrolled in the school:

- standards of behavior and codes of conduct;
- attend the practices for the interscholastic activity to the same extent as is required of traditional students;
- required drug testing;⁴
- permission slips, waivers, physical exams; and
- participation or activity fees.

Students who participate in extracurricular or athletic activities under this policy will be transported to and from the interscholastic activities on the same basis as other students are transported.

A home schooled student may begin participating in an interscholastic activity immediately upon being approved to participate by the District if:

- The home schooled student has not withdrawn from an Arkansas Activities Association member school; or
- The student has withdrawn from an AAA member school and enrolled in a home school but did not participate in an interscholastic activity that is a varsity

sport at the student's resident district prior to the student's withdrawal from the AAA member school.

A home schooled student shall not be eligible to participate for up to three hundred sixty-five (365) days if:

1. The District is the home schooled student's resident district and the home schooled student is not approved to participate in an interscholastic activity at the District by June 1 of the school year the student will be enrolled in grade seven (7), eight (8), nine (9), or ten (10);
2. The District is not the home schooled student's resident district and the home schooled student is not approved to participate in an interscholastic activity that is a varsity athletic activity at the District by June 1 of the school year the student will be enrolled in grade seven (7), eight (8), nine (9), or ten (10); or
3. The home schooled student withdrew from an AAA member school and participated in an interscholastic activity that is a varsity athletic activity at the student's resident district during the previous three hundred sixty-five (365) days and is seeking to participate in an interscholastic activity that is a varsity athletic activity in the District.

A student who is prohibited from participation in an interscholastic activity due to number 1 shall not become eligible to participate in any interscholastic activity until the completion of the three hundred sixty-five (365) day period. A student who is prohibited from participation in an interscholastic activity that is a varsity athletic activity due to numbers 2 or 3 shall not be eligible for full participation in an interscholastic activity that is a varsity athletic activity until the completion of the three hundred sixty-five (365) day period. A student who is not eligible for full participation may participate in tryouts, practices, classes, or other endeavors associated with the interscholastic activity until the completion of the three hundred sixty-five (365) day period.

Cross Reference: 4.59—ACADEMIC COURSE ATTENDANCE BY PRIVATE SCHOOL AND HOME SCHOOL STUDENTS

Legal References: A.C.A. § 6-15-509

A.C.A. § 6-16-151

A.C.A. § 6-18-232

A.C.A. § 6-18-713

Arkansas Activities Association Handbook

Commissioner's Memo COM-18-009

Commissioner's Memo LS-18-015

Division of Elementary and Secondary Education Rules Governing Home Schools

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

4.56.3—EXTRACURRICULAR ACTIVITY ELIGIBILITY FOR PRIVATE SCHOOL STUDENTS

Interscholastic activity means an activity between schools subject to rules of the Arkansas Activities Association that is outside the regular curriculum of the school district, such as an athletic activity, fine arts program, or a special interest group or club.

"Private school" means a nonpublic elementary or secondary school that is a registered nonprofit and accredited or licensed by an accrediting association recognized by the State Board of Education.

"Private school student" means a student attending a private school.

Each school in the District shall post on its website its schedule of interscholastic activities, including signup, tryout, and participation deadlines, at least one semester in advance of those activities. A hard copy of the schedule shall be available upon request.¹

Private school students whose parents, legal guardians, persons having lawful control of the student, or persons standing in loco parentis are legal residents of the school district will be permitted to pursue participation in an interscholastic activity in the student's resident school zone² if the private school the student attends does not offer the interscholastic activity.

Although not guaranteed participation in an interscholastic activity, private students who meet the provisions of this policy, AAA Rules, and applicable Arkansas statutes shall have an equal opportunity to try out and participate in interscholastic activities without discrimination. The District shall provide a reasonable alternative to any prerequisite for eligibility to participate in an interscholastic activity that the private school student is unable to meet because of his or her enrollment in a private school.

No student shall be required to pay for individual or group instruction in order to participate in an interscholastic activity.

To be eligible to try out and participate in interscholastic activities, the student or the parent of a student shall mail or hand deliver the student's request to participate to the student's school's principal before the signup, tryout or participation deadline established for traditional students.

A student who meets the requirements for eligibility to participate in an interscholastic activity is required to register for no more than one non-academic course³ in the

District's school where the student is intending to participate in an interscholastic activity that coincides with the interscholastic activity in which the private school student participates and shall be required to be at school only when participation in the interscholastic activity requires other students who participate in the interscholastic activity to be at school.

The student shall regularly attend the class in which the student is registered beginning no later than the eleventh (11th) day of the semester in which the student's interscholastic activity participation is desired. The student must attend the practices for the interscholastic activity to the same extent as is required of traditional students.

A student and the parent or legal guardian of the student shall sign and return an acknowledgement of receipt and review of an information sheet regarding signs and symptoms of sudden cardiac arrest before the student may participate in an athletic activity and before each school year the student participates in an athletic activity.

-A private school student who has met the tryout criteria and who has been selected to participate in the interscholastic activity shall meet the following criteria that also apply to traditional students enrolled in the school:

- Standards of behavior and codes of conduct;
- Attend the practices for the interscholastic activity to the same extent as is required of traditional students;
- Required drug testing;⁴
- Permission slips, waivers, physical exams; and
- Participation or activity fees.

Students who participate in extracurricular or athletic activities under this policy will be transported to and from the interscholastic activities on the same basis as other students are transported.

Cross Reference: 4.59—ACADEMIC COURSE ATTENDANCE BY PRIVATE SCHOOL AND HOME SCHOOL STUDENTS

Legal References: A.C.A. § 6-16-151

A.C.A. § 6-18-232

A.C.A. § 6-18-238

A.C.A. § 6-18-713

Arkansas Activities Association Handbook

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

4.56a—OTHER EXTRACURRICULAR ACTIVITY RULES/ACADEMIC ORGANIZATIONS

The Beta Club and National Honor Society (NHS) recognize students who demonstrate academic excellence, leadership, character, and service. Membership is both an honor and a responsibility. Members are expected to maintain high standards throughout their participation.

To be eligible for BETA membership, students must:

- Be enrolled as a full-time student at the high school.
- Meet the minimum cumulative GPA requirement established by the school (3.5).
- Demonstrate good character and citizenship.
- Have no major disciplinary infractions during the current school year.

Students may be considered for NHS if they:

- Meet the minimum cumulative GPA established by the local chapter (3.75).
- Demonstrate excellence in scholarship, leadership, service, and character.
- Complete the NHS application process, including any required documentation or essays.
- Receive approval from the Faculty Council based on established selection criteria.

ATHLETIC BUS TRIPS

All players and cheerleaders must ride the bus to games away from home. Players will return from games on the bus or with their parents. (Any exceptions must be cleared with the coaches and administration before bus departure). Only a parent may sign the student out on the coach's roster and take responsibility for the student at that time in order for the student not to ride the bus back.

ATHLETIC PARTICIPATION

Student athletes must not be counted absent from any scheduled classes of the school day in order to participate in an athletic contest that day. Managers must meet the same requirements as athletes. Any extenuating circumstances must be approved by the principal.

INSURANCE COVERAGE

All athletes must show proof of insurance coverage.

HOMECOMING ROYALTY

Homecoming maid and queen candidates are elected by their classes according to the following guidelines:

Grades 7-9: one candidate per grade level

Grades 10-12: two candidates per grade level

The homecoming queen is selected from the candidates in grade 12 and is voted on by the student body. Candidates may campaign for Homecoming Queen; however, all campaign materials (propaganda) must receive prior approval from the school administrator before any campaigning begins. The distribution of food or

beverages as part of a campaign is not permitted. Escorts are chosen by the candidates from the senior boys' basketball team, beginning with seniors. The new queen is crowned by the previous year's queen.

SCHOOL DANCES

- Dances are for AHS students. Only present students and their approved dates will be permitted to attend.
- Students planning to bring a date that is not enrolled in AHS (whether a graduate of AHS or not) must register that date in the principal's office prior to 12:00 noon the day of the dance or as otherwise directed by the principal.
- Students must accompany their dates to the dance.
- Dates may be no older than 20 at the time of any dance being attended.
- Dates at the prom dance must be at least 16 years old or be classified as freshman or above at the time of the dance.
- **Once a student or their date has entered the dance/prom location they may not leave the facility/building and return to the function but must leave the grounds.**
- If a student is asked to leave any school dance because of conduct and/or violation of school rules, that student is prohibited from attending future AHS dances either as a student or as a graduate.

Last Revised: 06/20/2026

4.57—IMMUNIZATIONS

Definitions

"In process" means the student has received at least one dose of the required immunizations and is waiting the minimum time interval to receive the additional dose(s).

"Serologic testing" refers to a medical procedure used to determine an individual's immunity to Hepatitis B, Measles, Mumps, Rubella and Varicella.

General Requirements

Unless otherwise provided by law or this policy, no student shall be admitted to attend classes in the District who has not been age appropriately immunized against:

- Poliomyelitis;
- Diphtheria;
- Tetanus;
- Pertussis;
- Red (rubella) measles;
- Rubella;
- Mumps;
- Hepatitis A;

- Hepatitis B;
- Meningococcal disease;
- Varicella (chickenpox); and
- Any other immunization required by the Arkansas Department of Health (ADH).

The District administration has the responsibility to evaluate the immunization status of District students. The District shall maintain a list of all students who are not fully age appropriately immunized or who have an exemption provided by ADH to the immunization requirements based on medical, religious, or philosophical grounds. Students who are not fully age appropriately immunized when seeking admittance shall be referred to a medical authority for consultation.

The only types of proof of immunization the District will accept are immunization records provided by a:

- A. Licensed physician;
- B. Health department;
- C. Military service;
- D. Official record from another educational institution in Arkansas; or
- E. An immunization record printed off of the statewide immunization registry with the Official Seal of the State of Arkansas.

The proof of immunization must include the vaccine type and dates of vaccine administration. Documents stating "up-to-date", "complete", "adequate", and the like will not be accepted as proof of immunization. No self or parental history of varicella disease will be accepted as a history of varicella disease must be documented by a licensed physician, advanced practice nurse, doctor of osteopathy, or physician assistant. Valid proof of immunization and of immunity based on serological testing shall be entered into the student's record.

In order to continue attending classes in the District, the student must have submitted:

- 1) Proof of immunization showing the student to be fully age appropriately vaccinated;
- 2) Written documentation by a public health nurse or private physician of proof the student is in process of being age appropriately immunized, which includes a schedule of the student's next immunization;
- 3) A copy of a letter from ADH indicating immunity based on serologic testing; and/or
- 4) A copy of the letter from ADH exempting the student from the immunization requirements for the current school year, or a copy of the application for an exemption for the current school year if the exemption letter has not yet arrived.

Students whose immunization records or serology results are lost or unavailable are required to receive all age appropriate vaccinations or submit number 4 above.

Temporary Admittance

While students who are not fully age appropriately immunized or have not yet submitted an immunization waiver may be enrolled to attend school, such students shall be allowed to attend school on a temporary basis only. Students admitted on a temporary basis may be admitted for a maximum of thirty (30) days (or until October 1st of the current school year for the tetanus, diphtheria, pertussis, and meningococcal vaccinations required at ages eleven (11) and sixteen (16) respectively if October 1st is later in the current school year than the thirty (30) days following the student's admittance). No student shall be withdrawn and readmitted in order to extend the thirty (30) day period. Students may be allowed to continue attending beyond the thirty (30) day period if the student submits a copy of either number 2 or number 4 above.

Students who are in process shall be required to adhere to the submitted schedule. Failure of the student to submit written documentation from a public health nurse or private physician demonstrating the student received the vaccinations set forth in the schedule may lead to the revocation of the student's temporary admittance; such students shall be excluded from school until the documentation is provided.

The District will not accept copies of applications requesting an exemption for the current school year that are older than two (2) weeks based on the date on the application. Students who submit a copy of an application to receive an exemption from the immunization requirements for the current year to gain temporary admittance have thirty (30) days from the admission date to submit either a letter from ADH granting the exemption or documentation demonstrating the student is in process and a copy of the immunization schedule. Failure to submit the necessary documentation by the close of the thirty (30) days will result in the student being excluded until the documentation is submitted.

Exclusion from School

In the event of an outbreak, students who are not fully age appropriately immunized, are in process, or are exempt from the immunization requirements may be required to be excluded from school in order to protect the student. ADH shall determine if it is necessary for students to be excluded in the event of an outbreak. Students may be excluded for no fewer than twenty-one (21) days or even longer depending on the outbreak. No student excluded due to an outbreak shall be allowed to return to school until the District receives approval from ADH.

Students who are excluded from school are not eligible to receive homebound instruction unless the excluded student had a pre-existing IEP or 504 Plan and the IEP/504 team determines homebound instruction to be in the best interest of the student. To the extent possible, the student's teacher(s) shall place in the principal's office a copy of the student's assignments:

- for the remainder of the week by the end of the initial school day of the student's exclusion; and
- by the end of each school's calendar week for the upcoming week until the student returns to school.

It is the responsibility of the student or the student's parent/legal guardian to make sure that the student's assignments are collected.

Students excluded from school shall have five (5) school days from the day the student returns to school to submit any homework and to make up any examinations. State mandated assessments are not included in "examinations" and the District has no control over administering state mandated make-up assessments outside of the state's schedule. Students shall receive a grade of zero for any assignment or examination not completed or submitted on time.

Annually by December 1, the District shall create, maintain, and post to the District's website a report that includes the following for each disease requiring an immunization under this policy:

- The number of students in the District that were granted an exemption by the Department of Health from an immunization;
- The percentage of students in the District that were granted an exemption by the Department of Health from an immunization;
- The number of students within the District who have failed to provide to the public school proof of the vaccinations required and have not obtained an exemption from ADH;
- The percentage of students within the District who have failed to provide to the public school proof of the vaccinations required and have not obtained an exemption from ADH; and
- The percentage of a population that must receive an immunization for herd immunity to exist.

Cross References: 4.2—ENTRANCE REQUIREMENTS

4.7—ABSENCES

4.8—MAKE-UP WORK

4.34—COMMUNICABLE DISEASES AND PARASITES

Legal References: A.C.A. § 6-18-702

DESE Rules Governing Immunization Requirements in Arkansas Public Schools

ADH Rules Pertaining to Immunization Requirements

Last Revised: 6/21/21

4.58—FOOD SHARING AND ITS REMOVAL FROM FOOD SERVICE AREA

Students may not share food brought from outside sources with other students.

Food Sharing Table

In an effort to reduce wasted food and to provide students access to healthy foods when possible, the District shall have in the district cafeteria a food sharing table located at the end of the service line. Prior to leaving the service line, students may place on or retrieve items from the table, at no additional charge, any of the following:

- Raw whole fruit traditionally eaten without the peel (e.g. bananas and oranges);
- Raw whole fruit traditionally eaten with the peel provided the fruit is wrapped to prevent contamination (e.g. apples and grapes);
- Raw whole vegetables provided the vegetable is wrapped to prevent contamination (e.g. carrot sticks);
- Milk; and
- Juice.

Fruit and vegetables to be shared are to be placed into a designated container on the table. Milk and juice to be shared are to be placed in an ice-filled cooler. Milk and juice may not be taken by another student unless the carton is unopened and was completely covered by ice while in the cooler. A student may not return to the table to place an item for sharing after the student has left the service line.

At all times, the sharing table will be under the supervision of the food service staff. Remaining items should be discarded at the end of the meal period, and no item may remain on the table for longer than four (4) hours.

At all times, the cooler will be under the supervision of the food service staff. Remaining items should be discarded at the end of the meal period, and no item is to remain in the cooler for longer than four (4) hours.

Removing Food Items From the Food Service Area

No student shall remove school provided food items from the food service area at the end of the meal period, especially milk, juice, and other items requiring temperature controlled environments.

Except for food service workers as required by their job duties, District employees may only remove school provided food items from the food service area when required by a 504 plan or a student's IEP.

At the end of the meal period, a student may leave the cafeteria with up to two school provided whole fruit or whole vegetable food items.

Food service workers as required by their job duties, and District employees may remove school provided food items as needed from the food service area and when required by a 504 plan or a student's IEP.

Legal References: Commissioner's Memo FIN 08-076
Commissioner's Memo FIN 15-052

4.59—ACADEMIC COURSE ATTENDANCE BY PRIVATE SCHOOL AND HOME SCHOOLED STUDENTS

The District allows private school and home schooled students whose parents, legal guardians, or other responsible adult with whom the student resides are residents of the District to attend academic courses offered by the District. The District will place a list of courses that a private school or home schooled student may request to attend on its website by:

1. June 1 for courses to be offered during the Fall semester; and
2. November 1 for courses to be offered during the Spring semester.

A private school or home schooled student who desires to attend one or more of the available academic courses shall submit a written request to attend the academic course(s) to the superintendent, or designee, no later than:

- a. August 1 for Fall semester courses; or
- b. December 1 for Spring semester courses.

The superintendent, or designee, is authorized to waive the application deadline on a case by case basis.

The District permits a private school or home schooled student to attend a maximum of six (6) courses per semester.

The District may reject a private school or home schooled student's request for attendance if the District's acceptance would:

- Require the addition of staff or classrooms;
- Exceed the capacity of a program, class, grade level, or school building;
- Cost the District more for the student to attend the academic course than the District receives for the student's attendance;
- Cause the District to provide educational services the District does not currently provide at a financial burden to the District; or
- Cause the District to be out of compliance with applicable laws and regulations regarding desegregation.

Requests to attend an academic course will be granted in the order the requests are received. Upon the receipt of a private or home schooled student's request to attend academic course(s), the District will date and time stamp the request for attendance. If a private school or home schooled student is denied attendance based on a lack of capacity and an opening in the requested course occurs prior to the start of the

course, the District will use the date and time stamp on the request for attendance to determine the private school or home schooled student who will be notified of an opening in the requested course.

As part of the request to attend academic courses in the District, a private school or home schooled student shall:

- Indicate the course(s) the private school or home schooled student is interested in attending;
- If the course(s) the private school or home schooled student is interested in attending is being offered by the District in both a physical and a digital format, whether the private school or home schooled student intends to attend the physical course or the digital course;
- Submit, along with the student's application, a copy of the student's transcript indicating that the student has received credit for the course(s), or equivalent course(s), that are a prerequisite to the course(s) the student desires to attend at the District;
- Agree to follow the District's discipline policies; and
- Submit immunization documentation required by Policy 4.57—IMMUNIZATIONS.

A private school or home schooled student who fails to attend an academic course by the eleventh (11) day of class or who is absent without excuse for eleven (11) consecutive days during the semester shall be dropped from the course; however, a private school or home schooled student shall not be considered truant for unexcused absences from the course(s) the student is attending at the District.

Private school or home schooled students shall receive a final grade and transcript for each academic course the student completes.

The responsibility for transportation of any private school or home schooled student attending academic courses in the District shall be borne by the student or the student's parents.

The opportunity provided to home schooled students under this policy is in addition to the opportunity provided in Policy 4.56.2—EXTRACURRICULAR ACTIVITY ELIGIBILITY FOR HOME SCHOOLED STUDENTS.

4.60—STUDENT BEHAVIORAL INTERVENTION AND RESTRAINT

Definitions

"Aversive behavioral intervention" means a physical or sensory intervention program that is intended to modify behavior through the use of a substance or stimulus that the intervention implementer knows will cause physical trauma, emotional trauma, or

both, to a student, even when the substance or stimulus appears to be pleasant or neutral to others.

Examples of aversive behavioral interventions include, but are not limited to:

- Hitting;
- Pinching;
- Slapping;
- Using a water spray;
- Using noxious fumes;
- Requiring extreme physical exercise;
- Using loud auditory stimulus;
- Withholding meals; and
- Denying reasonable access to toileting facilities.

"Behavioral intervention" means the implementation of a service, support, or strategy to teach and increase appropriate behavior or substantially decrease or eliminate behavior that is dangerous, inappropriate, or otherwise impedes the learning of a student.

"Behavior Intervention Plan" (BIP) means a written plan that:

- Is developed by a problem-solving and intervention team and delineates emotional, social, or behavioral goals for a student and the steps that the school, student, parent of the student, and others will take to positively support the progress of the student towards the student's emotional, social, or behavioral goals;
- Is comprised of practical and specific strategies to increase or reduce a defined behavior or one (1) or more patterns of behavior exhibited by a student; and
- Includes the following at a minimum:
 - o A definition or description of the desired target behavior or outcome in specific measurable terms;
 - o A plan for preventing and eliminating inappropriate student behavior by changing a condition that is triggering, motivating, underlying, or supporting that behavior as determined through a FBA;
 - o A plan for teaching a student to demonstrate appropriate social, emotional, or behavioral self-management, or a new method to address or meet the student's needs;

- o A description of how a specific incentive or consequence will be used as needed to decrease or eliminate inappropriate student behavior and increase appropriate behavior;
- o A plan for managing a crisis situation;
- o A system to collect, analyze, and evaluate data about the student;
- o The school personnel, resources, and training needed before implementation of the BIP; and
- o The timeline for implementing different facets of an intervention, including without limitation when the intervention will be formally reviewed.

"Chemical restraint" means the use of a drug or medication to control the behavior of a student or restrict the free movement of the student; however, chemical restraint does not include the use of medication that is prescribed by a licensed physician, or other qualified health professional acting within the scope of the individual's professional authority under state law, for the standard treatment of a medical or psychiatric condition of a student and is administered as prescribed by the licensed physician or other qualified health professional acting within the scope of the individual's professional authority under state law.

"Crisis" means a situation in which a student engages in a behavior that threatens the health and safety of the student or others and includes without limitation a situation in which the student becomes aggressive or violent at school and is unable to regain self-control without posing a danger of injury to the student or others.

"Crisis intervention" means the implementation of a service, support, or strategy to immediately stabilize a crisis and prevent the crisis from reoccurring after the crisis ends.

"Dangerous behavior" means the behavior of a student that presents an imminent danger of serious physical harm to the student or others; however, dangerous behavior does not include the following:

- Disrespect;
- Noncompliance;
- Insubordination; or
- Destruction of property that does not create an imminent danger.

"De-escalation" means the use of a behavior management technique that helps a student increase the student's control over the student's emotions and behavior and results in a reduction of a present or potential level of danger that in turn reduces the level of imminent danger of serious physical harm to the student or others.

"Emergency" means a serious and unexpected situation that requires immediate action and which may be dangerous.

"Functional Behavior Assessment" (FBA) means a problem analysis step that:

- Occurs within the context of data-based problem-solving and involves:
 - o The review of existing records and other sources of information;
 - o Diagnostic or historical interviews;
 - o Structured academic or behavioral observations; and
 - o Authentic, criterion-referenced, or norm-referenced tests; and
- Is performed with the goal of determining why a specific problem or situation is occurring in order to directly link a strategic intervention to an assessment and solve or resolve the specific problem or situation.

"Imminent danger" means an existing dangerous situation that could reasonably be expected to immediately cause death or serious physical harm.

"Mechanical restraint" means the use of a device or equipment to restrict the free movement of a student; however, mechanical restraint does not include a device that is used by trained school personnel or a student for a specific and approved therapeutic purpose or safety purpose for which the device was designed or prescribed or a vehicle safety restraint that is appropriately used in the manner for which it was designed during the transport of a student in a moving vehicle.

"Physical escort" means a temporary touching or holding of the hand, wrist, arm, shoulder, or back of a student for the purpose of redirecting or inducing the student to move to a safe location.

"Physical restraint" means a personal restriction that immobilizes or reduces the ability of a student to move the student's torso, arm, leg, or head freely; however, physical restraint does not include a physical escort.

"Prone restraint" means restraining a student in a face-down position on the floor or another surface and applying physical pressure to the body of the student to keep the student in the prone position.

"Serious physical harm" means bodily injury that involves a substantial risk of death, extreme physical pain, protracted and obvious disfigurement, or protracted loss or impairment of the function of a bodily member, organ, or mental faculty.

"Supine restraint" means the restraint of a student in a face-up position on the student's back on the floor or another surface and with physical pressure applied to the body of the student to keep the student in the supine position.

Multi-Tiered Behavioral Interventions

The District shall establish a multi-tiered system of behavioral interventions for each student who exhibits social, emotional, or behavioral difficulty that may escalate, if not addressed, to potentially dangerous behavior.

Behavior Intervention Team

A behavior intervention team (BIT) shall be established for each student who exhibits social, emotional, or behavioral difficulty that may escalate, if not addressed, to potentially dangerous behavior. The BIT shall include members who are academic and behavioral assessment and intervention professionals.

A student's BIT shall:

- a. Work with the teachers of a student to complete a FBA of the student and an assessment of any problematic situations involving the student;
- b. Consider the need for a BIP with the goal of preventing or resolving the social, emotional, or behavioral difficulty of the student and developing a response that will de-escalate and stabilize a potential emergency situation that approaches the danger level; and
- c. Regularly review the data on incidents involving the use of physical restraint on the student and adjust, as necessary, the procedures concerning the use of physical restraint on the student.

Special education procedures shall be followed if a student is suspected of having a disability that relates to behavioral concerns.

Physical Restraint

Except in the case of a clearly unavoidable emergency situation in which a trained member of school personnel is not immediately available due to the unforeseeable nature of the emergency situation, the physical restraint of a student shall only be used by a member of school personnel who is appropriately trained to administer physical restraint.

When using physical restraint on a student, school personnel shall:

- Use the least restrictive technique necessary to end imminent danger or serious physical harm to a student and others;
- Use the safest method available and appropriate to the situation;
- Consider the health and safety of a student, including without limitation whether the student has an existing medical condition that makes the use of physical restraint inadvisable;

- Not restrict the ability of a student to communicate unless the use of a less restrictive technique will not prevent imminent danger of serious physical harm to the student or others;
- Use only the amount of force that is reasonably necessary to protect a student or others from imminent danger of serious physical harm to the student or others;
- Not verbally abuse, ridicule, humiliate, taunt, or engage in any other similar action towards the student; and
- Continuously and visually observe and monitor the student while the student is under physical restraint.

Physical restraint of a student shall only be used for a limited period of time and shall not be used:

- o When imminent danger or serious physical harm to the student or others dissipates;
- o If a medical condition occurs that puts the student at risk of harm;
- o Unless the behavior of the student poses an imminent danger of serious physical harm to the student or others;
- o After the threat of imminent danger of serious physical harm to the student or others dissipates; or
- o In the following manner:
 - § To punish or discipline the student;
 - § To coerce the student;
 - § To force the student to comply;
 - § To retaliate against the student;
 - § To replace the use of an appropriate educational or behavioral support;
 - § As a routine safety measure;
 - § As a planned behavioral intervention in response to behavior of the student that does not pose an imminent danger of serious physical harm to the student or others;
 - § As a convenience for school personnel; or
 - § To prevent property damage unless the act of damaging property committed by the student poses an imminent danger or serious physical harm to the student and others.

Even in an emergency, supine restraint shall not be used on a student except by a staff person who has been certified by a crisis intervention training program and the certified staff person determines that supine restraint is required to provide safety for the student and others.

At no time shall school personnel use the following on a student:

Mechanical restraint;

Chemical restraint;

Aversive behavioral interventions that compromise health and safety;

Physical restraint that is life-threatening or medically contraindicated; or

Prone restraint or other restraint that restricts the breathing of a student.

Following the first incident of physical restraint used on a student, an FBA shall be conducted unless a previous FBA was conducted for the same behavior that was at issue when the physical restraint was used.

The use of physical restraint on a student as a planned behavioral intervention shall not be included in a student's IEP, 504 Plan, BIP, individual safety plan, or other individual planning document but may be considered as a crisis intervention if appropriate for the student. A student's IEP team or 504 Plan team shall consider whether an FBA should be performed; if a BIP should be developed for the student or if a student's existing BIP should be revised; and if additional behavioral goals and interventions should be included in the student's existing IEP or 504 Plan.

Parents may submit complaints regarding an incident involving the use of physical restraint on their student. A complaint shall be referred for review to the appropriate school personnel:

§ The student's BIT;

§ The student's IEP team; or

§ The student's 504 Plan team.

A complaint by a parent shall be handled by the appropriate District staff in the same manner as a debrief following the use of physical restraint on a student.¹

Use of a physical restraint technique that is abusive shall be reported to the Child Abuse Hotline and law enforcement.

Reports and Debriefing

After the occurrence of an incident involving physical restraint of a student, the building principal, or the principal's designee, shall be notified of the incident as soon as possible but by no later than the end of the school day when the incident occurred.

The student's parent shall be notified of the incident of the use of physical restraint via verbal or electronic communication as soon as possible but by no later than the end of the school day when the incident occurred. In the event the student's parent is unable to be notified via verbal or electronic communication within twenty-four (24) hours after the incident occurred, then the parent shall be mailed written notification of the incident within forty-eight (48) hours after the incident occurred.

School personnel involved in the incident shall document the incident in a written report, which is to be completed within twenty-four (24) hours after the incident occurred. The written report of the incident shall:

1. Include all information contained in the Division of Elementary and Secondary Education (DESE) Physical Restraint or Seclusion Incident Record and Debriefing Report;
2. Be maintained in the student's education record; and
3. Be provided to the student's parent within one (1) school day of the completion of the report.

A debriefing meeting shall be held within two (2) school days after the incident occurred. The following school personnel shall be present at the debriefing meeting:²

- a. A member of school personnel who was present during the incident;
- b. A member of school personnel who was in the proximity of the student on whom physical restraint was used immediately before and during the time of the incident;
- c. A school administrator; and
- d. Any other member of school personnel determined to be appropriate by the District.

The purpose of the debriefing meeting shall be to:

- Determine whether the procedures used during the incident were necessary;
- Evaluate the use of any behavioral supports and de-escalation techniques by school personnel before and during the incident;
- Evaluate the school district's behavioral intervention procedures and prevention techniques in order to minimize future use of physical restraint; and
- If a trained member of school personnel was not immediately available due to the unforeseeable nature of the emergency situation when the incident occurred:
 - o Reevaluate the training needs of school personnel;
 - o Reevaluate the physical restraint policy and practices; and

- o Develop a plan to prevent a future incident.

At a debriefing meeting, school personnel shall:

1. Consider relevant information in the student's education record, including without limitation:
 - a. The concerns of the student's parent;
 - b. The student's social and medical history;
 - c. The student's FBA, if one exists; and
 - d. The student's BIP, if one exists;
2. Consider relevant information from the teachers, parents, and other District professionals;
3. Discuss whether the District's behavioral intervention procedures were appropriately implemented;
4. Discuss the duration and frequency of the use of physical restraint on the student;
5. Discuss appropriate action that may be taken to prevent and reduce the need for physical restraint;
6. Consider whether additional intervention and support is necessary for the student;
7. Consider whether additional intervention and support is necessary for school personnel; and
8. Consider how and when to debrief a person who was not present at the debriefing meeting, including without limitation:
 - a. The student;
 - b. The student's parent; and
 - c. Other school personnel or students who witnessed the incident.

DESE's Physical Restraint or Seclusion Incident Record and Debriefing Report, or an alternative report that includes the same information, shall be completed during the debriefing meeting. A copy of the report shall be:

- Submitted to the building principal;³
- Mailed to the student's parent within two (2) days of the date on which the debriefing meeting was held; and
- Maintained as part of the student's education record along with other documents consulted during the debriefing meeting.

Cross Reference: 3.6—LICENSED PERSONNEL EMPLOYEE TRAINING

Legal Reference: A.C.A. § 6-18-2401 et seq.

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

4.61—STUDENT USE OF MULTIPLE OCCUPANCY ROOM

Definitions

"Multiple occupancy room" means an area in a District building that is designed or designated to be used by one (1) or more individuals at the same time and in which one (1) or more individuals may be in various stages of undress in the presence of other individuals, which includes, without limitation, a restroom, locker room, changing room, or shower room.

"Sex" means the physical condition of being male or female based on genetics and physiology, which may be demonstrated by the sex identified on a student's original birth certificate.

Each multiple occupancy room in a District building shall be designated as either male or female. Except as permitted by this policy, a student shall not enter a multiple occupancy room that does not correspond to the student's sex.

An individual who is unwilling or unable to use a multiple occupancy room designated for the individual's sex shall be granted a reasonable accommodation, which may include, without limitation, access to a single-occupancy restroom or changing area. A reasonable accommodation shall not include access to a restroom or changing area that is designated for use by members of the opposite sex to an individual while members of the opposite sex of the individual are present or may be present in the restroom or changing area.

The prohibitions in this policy do not apply to an individual who enters a multiple occupancy room designated for use by the opposite sex when the individual enters for any of the following reasons:

- custodial, maintenance, or inspection purposes;
- To render emergency medical assistance;
- To address an ongoing emergency, including without limitation a physical altercation;

- To accommodate individuals protected under the Americans with Disabilities Act; or
- To assist young children who are in need of physical assistance when using a restroom or changing facility that is located in the District.

Legal Reference: A.C.A. § 6-21-120

Date Adopted: 5/22/23

Last Revised: 5/22/23

4.62—STUDENT NAME, TITLE, OR PRONOUN

Unless a District employee has the written permission of the parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student or the student if the student is an emancipated minor or over eighteen (18) years of age, a District employee shall not address a student with a:

1. Name other than that listed on the student's birth certificate, except for a derivative of the name; or
2. Pronoun or title that is inconsistent with the student's biological sex.

A student shall not be subject to discipline for declining to address a person using a:

- a. Name other than that listed on the student's birth certificate, except for a derivative of the name; or
- b. Pronoun or title that is inconsistent with the person's biological sex.

Legal Reference: A.C.A. § 6-1-108

Date Adopted: 5/22/23

Last Revised: 5/22/23

4.63—STUDENT RELIGIOUS EXPRESSION

The Alpena School District Board of Directors does not allow the discrimination against a student based on a student's voluntary religious expression, if any. At the same time, the District shall provide a process to eliminate any actual or perceived sponsorship or attribution to the District of a student's public voluntary expression of a religious viewpoint, if any.

Student Assignments

Student assignments include, but are not limited to:

- Homework;
- Classwork;
- Artwork; and
- Other written or oral assignments.

A student may express the student's religious viewpoint, if any, in the student's assignments without discrimination based on the religious content, if any. A student's assignments shall:

1. Be graded and judged:
 - By ordinary academic standards of substance and relevance; and
 - Against other conventional, pedagogical topics as identified by the District curriculum; and
2. Not be penalized or rewarded based on the religious content, if any, of the student's assignments.

Student Presenters

A student's expression of a religious viewpoint, if any, on an otherwise permissible subject shall not be excluded from a forum, whether oral or in writing, where students are allowed to speak.

The District has the right to restrict student speech that is inappropriate in the school setting by being obscene, vulgar, offensively lewd, or indecent.

Review of written student forums shall be handled in accordance with Policy 4.14—STUDENT MEDIA AND THE DISTRIBUTION OF LITERATURE.

If the forum is a scheduled event with designated student speakers, the building principal shall have an opportunity to review pre-written remarks prior to the student's presentation at the scheduled forum. The principal may require the student to amend the student's remarks to the extent necessary to address any portions that are determined to be inappropriate. A student's refusal to amend the remarks that were determined to be inappropriate may be prohibited from participation in the forum. A student who diverts from the approved pre-written remarks during a speech in such a manner that is determined to be inappropriate by the building principal or another present District staff member may be asked to return to the approved remarks. If a student refuses to return to the approved remarks or continues to divert from the approved remarks in a manner that is determined to be inappropriate may be escorted from the forum and disciplined in accordance with the District's Student Code of Conduct.

If the timing or format of the forum does not provide for pre-written remarks to be reviewed, then the building principal or other District staff shall have the authority to address a student whose remarks are determined to be inappropriate. The building principal or District staff member shall initially ask the student to cease the inappropriate remarks. If the student refuses or makes additional inappropriate remarks after being directed to cease such remarks, Then the building principal or District staff member may escort the student from the forum and the student may be disciplined in accordance with the District's Student Code of Conduct

There shall be a disclaimer that a student speaker's speech does not reflect the endorsement, sponsorship, position, or expression of the District. The disclaimer shall be provided at all forums where students speak and at all graduation ceremonies. The disclaimer shall be provided orally or in writing as most appropriately fits the format of the forum.

Information on how to participate in a student forum shall be provided to all students in a timely manner preceding the opportunity.

In addition to the salutatorian and valedictorian selection process in Policy 5.17—HONOR ROLL AND HONOR GRADUATES, other students may speak during the District's graduation ceremony as dictated by the principal and his/her designee.

Cross References: 4.14—STUDENT MEDIA AND THE DISTRIBUTION OF LITERATURE
5.17—HONOR ROLL AND HONOR GRADUATES

Legal References: A.C.A. § 6-10-138
A.C.A. § 6-18-101
A.C.A. § 6-18-1201 et seq.

Date Adopted: 5/22/23
Last Revised: 5/22/23

4.64—STUDENT USE OF ARTIFICIAL INTELLIGENCE

Definitions

"Artificial Intelligence (AI) Tools" means Software applications or platforms that utilize machine learning algorithms to perform tasks typically requiring human intelligence, such as generating content, providing recommendations, or solving problems. For purposes of this policy, AI tools does not include the use of spell check or grammar check.

The purpose of this policy is to establish guidelines for the responsible use of AI tools by District students. The policy applies to all students enrolled in the District and covers the use of AI tools when completing District assignments or projects.

The district shall provide teachers and students resources and education on AI literacy and digital citizenship. The District shall establish a committee who shall be responsible for the review and selection of AI tools that shall be available for students to use. All AI tools selected by the committee shall comply with applicable state and federal data privacy laws. Students shall only use AI tools that were approved by the District committee for classroom assignments or projects.

Teachers are responsible for providing instructions on when and how AI tools may be used for classroom assignments. Students may use AI tools as approved by their classroom teacher to enhance learning and develop future-ready skills.

Students should use AI tools ethically and responsibly, aligning with the district's educational objectives, and in a manner that does not harm themselves or others. As part of using AI tools responsibly, students should be cautious about the information they provide to AI tools and consult with a teacher if unsure. At no time shall Students share personal, sensitive, or confidential information with AI tools, especially AI tools requiring data input.

When a student uses AI tools, a student shall:

1. Review and verify the accuracy of content that is generated by an AI tool;
2. Cite AI tools used as part of an assignment or project as a source, following District citation guidelines; and
3. Be transparent about their use of AI in completing assignments.

Students must ensure all submitted work is their own and properly acknowledge or cite any assistance from AI tools. Students are encouraged to ask questions if they are unsure about the acceptable use of AI tools.

The following actions regarding AI tools are strictly prohibited:

- Misuse of AI tools for cheating, plagiarism, or any form of academic dishonesty, including the submission of assignments that were fully generated by an AI tool and presented as original student work.
- Altering or falsifying academic documents or records using AI tools;
- Using AI tools to:
 - o Gain unauthorized access to District systems; or
 - o Bypass District security measures;
- Using AI tools to produce misleading or false information, imagery, or any form of false outputs about themselves, other students, or staff members.

Students should report any inappropriate content or security concerns encountered while using AI tools to a teacher or administrator.

Violations of this policy shall be handled in accordance with the District's disciplinary procedures.

Cross References:

3.58—LICENSED PERSONNEL USE OF ARTIFICIAL INTELLIGENCE

4.13—PRIVACY OF STUDENTS' RECORDS/ DIRECTORY INFORMATION

5.10—ARTIFICIAL INTELLIGENCE

7.16—INFORMATION TECHNOLOGY SECURITY

Legal References:

A.C.A. § 6-18-2601 et seq.

A.C.A. § 25-1-128
15 U.S.C. § 6501
20 U.S.C. § 1232g
34 C.F.R. Part 99

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

4.65—ANTISEMITISM PROHIBITED

“Antisemitism” means a certain perception of Jews, which may be expressed as hatred toward Jews. Rhetorical and physical manifestations of antisemitism are directed toward Jewish or non-Jewish individuals and/or their property, toward Jewish community institutions and religious facilities. Antisemitism may be expressed in speech; writing; visual forms; and actions, and employs sinister stereotypes and negative character traits.

The following are examples of actions, when taken as a whole, that may constitute antisemitism:

- The targeting of the state of Israel, conceived as a Jewish collectivity;
- Charging Jews with conspiring to harm humanity;
- Calling for, aiding, or justifying the killing or harming of Jews in the name of a radical ideology or an extremist view of religion;
- Making mendacious, dehumanizing, demonizing, or stereotypical allegations about Jews as such or the power of Jews as collective — such as, especially but not exclusively, the myth about a world Jewish conspiracy or of Jews controlling the media, economy, government or other societal institutions;
- Accusing Jews as a people of being responsible for real or imagined wrongdoing committed by a single Jewish person or group, or even for acts committed by non-Jews;
- Denying the fact, scope, mechanisms (e.g. gas chambers) or intentionality of the genocide of the Jewish people at the hands of National Socialist Germany and its supporters and accomplices during World War II (the Holocaust);
- Accusing the Jews as a people, or Israel as a state, of inventing or exaggerating the Holocaust;
- Accusing Jewish citizens of being more loyal to Israel, or to the alleged priorities of Jews worldwide, than to the interests of their own nations;

- Denying the Jewish people their right to self-determination, e.g., by claiming that the existence of a State of Israel is a racist endeavor;
- Applying double standards by requiring of Israel a behavior not expected or demanded of any other democratic nation;
- Using the symbols and images associated with classic antisemitism (e.g., claims of Jews killing Jesus or blood libel) to characterize Israel or Israelis;
- Drawing comparisons of contemporary Israeli policy to that of the Nazis; or
- Holding Jews collectively responsible for actions of the state of Israel.

Antisemitism does not include criticism of Israel similar to the criticism leveled against any other country.

Discrimination and harassment based on antisemitism is expressly prohibited.

The District shall appoint an individual to act as the District's Title VI Coordinator, who shall be responsible for investigating any complaints of discrimination or harassment based on antisemitism. The District shall:

1. Include contact information for the Title VI Coordinator in information that is provided to staff, students, and parents; and
2. Provide the following on the District website that may be accessed through a link titled "Antisemitism/Title VI":
 - a. The District's definition of antisemitism;
 - b. A statement that antisemitism is prohibited in the District's educational programs and activities;
 - c. A statement that complaints of discrimination or harassment based on antisemitism may be filed with the Title VI Coordinator;
 - d. Contact information for the District's Title VI Coordinator; and
 - e. Information on how to file a complaint of antisemitism with the Title VI Coordinator at the Arkansas Department of Education.

A student or a student's parent may contact the District Title VI Coordinator directly with any complaints of discrimination or harassment based on antisemitism. District employees are responsible for timely notifying the District Title VI Coordinator of any complaints they receive or incidents they witness of discrimination or harassment based on antisemitism.

Complaints of discrimination or harassment based on antisemitism shall be investigated and handled in accordance with Policy 6.7—COMPLAINTS.

A student who is found to have violated the provisions of this policy may be subject to discipline, up to and including expulsion.

The District Title VI Coordinator shall report an incident or complaint of discrimination or harassment under this policy to the Arkansas Department of Education Title VI Coordinator.

In addition to the filing of a complaint under this policy, complaints of discrimination or harassment based on antisemitism may be submitted directly to the Title VI Coordinator at the Arkansas Department of Education.

Nothing in this policy shall be construed to diminish or infringe upon any right protected under the First Amendment to the United States Constitution or Arkansas Constitution, Article 2, §§ 4, 6, and 24.

A.C.A. § 6-16-2003 encourages schools to:

- o Incorporate antisemitism awareness training into any required anti-bias training for students, employees, administrators, and campus police; and
- o Integrate Jewish-American heritage curriculum for students that incorporates Jewish experiences in the United States pre- and post-American Revolution; pre- and post-World War II and the Holocaust; and in modern times.

Cross Reference: 6.7—COMPLAINTS

Legal Reference: A.C.A. § 6-16-2001 et seq.

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

4.66—ARKANSAS DIRECT ADMISSIONS PROGRAM

The District shall participate in the Arkansas Direct Admissions Program.¹ As part of the District's participation, the District shall provide data to the Division of Higher Education (DHE) that includes, without limitation:

1. A student's grade point average;
2. A student's assessment scores;
3. A student's course completion; and
4. Other information required by DHE.

The District shall inform all students about how the student may participate in the Arkansas Direct Admissions Program.²

The District shall not actively discourage or prohibit an eligible student from participating in the Arkansas Direct Admissions Program.²

Legal Reference: A.C.A. § 6-60-1701 et seq.

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

5.7—SELECTION OF LIBRARY/MEDIA CENTER MATERIALS

The ultimate authority for the selection and retention of materials for the schools' media centers rests with the Board of Education, which shall serve as a final arbiter in resolving a challenge to any media center materials. Licensed media center personnel shall make the initial selections in consultation with school and district licensed staff. Materials selected shall be in accordance with the guidelines of this policy.

The purpose of the schools' libraries/media centers is to supplement and enrich the curriculum and instruction offered by the District. Promoting the dialogue characteristic of a healthy democracy necessitates the maintenance of a broad range of materials and information representing varied points of view on current and historical issues. In the selection of the materials and resources to be available in each library/media center consideration will be given to their age appropriateness. Materials should be available to challenge the different interests, learning styles, and reading levels of the school's students and that will help them attain the District's educational goals.

Selection Criteria

The criteria used in the selection of media center materials shall be that the materials:

- A. Support and enhance the curricular and educational goals of the district;
- B. Are appropriate for the ages, learning styles, interests, and maturity of the schools' students, or parents in the case of parenting literature;
- C. Contribute to the examination of issues from varying points of view and help to broaden students understanding of their rights and responsibilities in our society;
- D. Help develop critical thinking skills;

E. Are factually and/or historically accurate, in the case of non-fiction works and/or serve a pedagogical purpose;

F. Have literary merit as perceived by the educational community; and

G. Are technically well produced, physically sound (to the extent appropriate), and represent a reasonably sound economic value.

Retention and Continuous Evaluation

Media center materials shall be reviewed regularly to ensure the continued appropriateness of the center's collection to the school's curriculum and to maintain the collection in good repair. Those materials no longer meeting the selection criteria, have not been used for a long period of time, or are too worn to be economically repaired shall be withdrawn from the collection and disposed of. A record of withdrawn media materials including the manner of their disposal shall be maintained for a period of three (3) years.

Gifts

Gifts to the media centers shall be evaluated to determine their appropriateness before they are placed in any media center. The evaluation shall use the same criteria as for all other materials considered for inclusion in the media centers. Any items determined to be unacceptable shall be returned to the donor or disposed of at the discretion of the media specialist. The media centers shall have a list of desired items to give to prospective donors to aid them in their selection of materials to donate.

Kindergarten Through Grade Five (K-5) Libraries

The library media center located in a District elementary school that serves students in kindergarten through grade five (K-5) shall store non-age-appropriate sexual content, including without limitation a book or other resource that is located in the library media center that is available to the public, in a locked compartment.

For purposes of this policy, "non-age-appropriate sexual content" means any materials that include explicit instruction, promotion, or advocacy of sexual ideology, behaviors, or orientations that are not developmentally appropriate for kindergarten through grade five (K-5) students.

A student enrolled in the school shall not view or check out a book or other resource that concerns non-age-appropriate sexual content without the prior written approval from the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student.

District staff who are found to have knowingly violated the provisions of this section of the policy shall be disciplined in accordance with A.C.A. 6-25-107.

Challenges

The parent, legal guardian, person having lawful control of a student, or person acting in loco parentis of a student affected by a media selection, or a District employee may formally challenge the appropriateness of a media center selection by following the procedure outlined in this policy. The challenged material shall remain available throughout the challenge process.

Before any formal challenge can be filed, the individual contesting (hereinafter complainant) the appropriateness of the specified item shall request a conference through the principal's office with a licensed media center employee. The complainant shall be given a copy of this policy and the *Request for Formal Reconsideration Form* prior to the conference. The meeting shall take place at the earliest possible time of mutual convenience, but in no case later than five (5) working days from the date of the request unless it is by the choice of the complainant.

In the meeting, the media specialist shall explain the selection criteria and how the challenged material fits the criteria. The complainant shall explain the complainant's reasons for objecting to the selected material. If, at the completion of the meeting, the complainant wishes to make a formal challenge to the selected material, the complainant may do so by completing the *Request for Formal Reconsideration Form* and submitting it to the principal's office.

To review the contested media, the principal shall select a committee of five (5) or seven (7) licensed personnel consisting of the principal as chair and at least one media specialist. The remaining committee members shall be licensed personnel with curriculum knowledge appropriate for the material being contested and representative of diverse viewpoints. The task of the committee shall be to determine if the challenged material meets the criteria of selection. No material shall be withdrawn solely for the viewpoints expressed within it and shall be reviewed in its entirety and not selected portions taken out of context.

The principal shall convene a meeting after a reasonable time for the committee members to adequately review the contested material and the *Request for Formal Reconsideration Form* submitted by the complainant. All meetings of the committee shall be open to the public. The complainant shall be allowed to present the complaint to the committee after which time the committee shall meet to discuss the material. The committee shall vote to determine whether the contested material shall be relocated within the media center's collection to an area that is not accessible to minors. A member from the voting majority shall write a summary of the reasons for their decision. A notice of the committee's decision and the summary shall be given (by hand or certified mail) to the complainant.

If the decision is to not relocate the material, the complainant may appeal the committee's decision to the district Board of Directors by filing a written appeal to the Superintendent within five (5) working days of the committee's decision or of written receipt of the decision. The Superintendent shall present the original complaint and

the committee's decision along with the summary of its reasons for its position plus a recommendation of the administration, if so desired, to the Board within fifteen (15) days of the committee's decision. The Board shall review the material submitted to them by the Superintendent and make a decision within thirty (30) days of receipt of the information. The Board's decision is final.

Legal Reference: A.C.A. § 6-25-101 et seq.

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

5.15—GRADING

Parents, legal guardians, persons having lawful control of a student, or persons standing in loco parentis shall be kept informed concerning the progress of their student. Parent-teacher conferences are encouraged and may be requested by parents, guardians, persons having lawful control of a student, persons standing in loco parentis, or teachers. If the progress of a student is unsatisfactory in a subject, the teacher shall attempt to schedule a parent-teacher conference. In the conference, the teacher shall explain the reasons for difficulties and shall develop, cooperatively with the parents, a plan for remediation, which may enhance the probability of the student succeeding. The school shall also send timely progress reports and issue grades for each nine (9) week grading period¹ to keep parents/guardians informed of their student's progress.

The evaluation of each student's performance on a regular basis serves to give the parents/guardians, students, and the school necessary information to help effect academic improvement. Students' grades shall reflect only the extent to which a student has achieved the expressed educational objectives of the course.

The grades of a child in foster care shall not be lowered due to an absence from school due to:²

1. A change in the child's school enrollment;
2. The child's attendance at a dependency-neglect court proceeding; or
3. The child's attendance at court-ordered counseling or treatment.

The District shall use Standards-based grading in the District's elementary schools.³

The grading scale for all schools other than elementary schools in the district shall be as follows:

A =100 – 90

B = 89 – 80

C = 79 – 70

D = 69 – 60

F = 59 and below

For the purpose of determining grade point averages, the numeric value of each letter grade shall be:

A = 4 points

B = 3 points

C = 2 points

D = 1 point

F = 0 points

The grade point values for accelerated learning courses and other approved courses for weighted credit shall be one (1) point greater than for regular courses with the exception that an F shall still be worth zero (0) points.

The final grades of students who transfer in for part of a semester will be determined by blending the grades earned in the district with those earned outside the district. Each final grade will be the sum of the percentage of days in the grading period transferred from outside the district times the transferred grade from outside the district plus the percentage of days in the grading period while in the district times the grade earned in the district.

For example: The grading period had forty (40) days. A student transferred in with a grade of eighty-three percent (83%) earned in ten (10) days at the previous school. The student had a grade of seventy-five percent (75%) in our district's school earned in the remaining thirty (30) days of the grading period. Ten (10) days is twenty-five percent (25%) of forty (40) days while thirty (30) days is seventy-five percent (75%) of forty (40) days. Thus the final grade would be $(0.25 \times 83) + (0.75 \times 75) = 77\%$.

Legal References: A.C.A. § 6-15-902

A.C.A. § 9-28-113(f)

Standards For Accreditation 5-A.1

Division of Elementary and Secondary Education Rules Governing Grading and Course Credit

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

5.15b—EXEMPTIONS FROM TESTS

All students grades 7 – 12 will take the semester tests at the end of the 1st semester, and 2nd semester. Students may be exempt from semester tests if they meet the following criteria.

- Miss no more than 3 days during the entire semester
- Maintain at least a B average
- Do not have more than 3 detentions during the entire semester
- Have no ISS, Corporal Punishment or OSS during the entire semester
- All fees, money owed and fines must be paid prior to test date.

5.17—HONOR ROLL AND HONOR GRADUATES

HONOR ROLL

Students in kindergarten through grade six (K-6) who maintain a 4.0 grade point average (GPA) for the grading period will be recognized as honor roll students for that grading period. Semester grades will determine the honor roll at the end of each semester.

Students in grades seven through twelve (7-12) who maintain a 4.0 GPA for the grading period will be recognized as honor roll students for that grading period. Semester grades will determine the honor roll at the end of each semester.

HONOR GRADUATES

A student may be eligible to be designated as an honor graduate if the student has:

1. Been enrolled in public school for the entirety of the student's high school career;
2. Been enrolled in a District high school for the student's entire final year; and
3. Successfully completed the minimum core of courses recommended for preparation for college as defined by the Higher Education Coordinating Board and the State Board of Education.

Students shall be designated as honor students as follows:

- Students with a GPA of 3.5 and taken 3 AP or concurrent classes shall be designated as graduating Cum Laude;
- Students with a GPA of 3.5 and taken 5 AP or concurrent classes shall be designated as graduating Magna Cum Laude; and
- Students with a GPA of 4.0 and taken 5 AP or concurrent classes shall be designated as graduating Summa Cum Laude.

The GPA shall be derived from courses taken in public schools starting in grade nine (9).

Parents or guardians of a student, or a student eighteen (18) years of age or older, who choose to not have the student publicly identified as an honor roll or honor graduate student must submit a written request that the student not be so identified.

Legal References: A.C.A. § 6-18-101 (a) (1)

A.C.A. § 6-18-101 (a) (2)

A.C.A. § 6-18-101 (b)

A.C.A. § 6-18-101(e)

A.C.A. § 6-61-217(a)

Date Adopted: 6/4/2026

Last Revised: 6/4/2026

5.19—ARKANSAS COURSE CHOICE PROGRAM

District students in grades six through twelve (6-12) are eligible to take courses through the Arkansas Course Choice Program (ACCP) if the student is:

- Seeking to take a course not offered by the District; or
- Attending a District school that received a school letter grade of D or F and the course is required for graduation.

The ACCP course catalog shall be made available to all students during student course selection. The District shall not actively discourage, intimidate, or threaten a student during course selection to not take a course through the ACCP.

A student attending courses through the ACCP shall enroll in at least one (1) course at the District, which may be either in person or a digital course offered by the District.

A District student attending courses through the ACCP is entitled to the following services as if the student were attending courses at the District:

1. Required assessments, including without limitation:
 - Statewide assessments;
 - Advanced Placement; and
 - International Baccalaureate;
2. Participation in extracurricular or cocurricular activities; and
3. Special education services pursuant to the student's individualized education program.

Credits earned through the ACCP shall appear on a student's official transcript and count fully towards the student's graduation requirements.

Cross Reference: 5.11—DIGITAL LEARNING COURSES

Legal Reference: A.C.A. § 6-15-1701 et seq.

Date Adopted : 6/4/2026

Last Revised : 6/4/2026

5.21— ACCELERATED LEARNING COURSES

Definition

“Accelerated learning” means an organized method of learning that enables a student to meet individual academic goals and graduation requirements while pursuing higher levels of skill development, including without limitation the following coursework:

1. A College Board Pre-Advanced Placement and Advanced Placement (AP) course;
2. An International Baccalaureate (IB) Diploma Programme course;
3. A Cambridge Advanced International Certificate of Education course;
4. A concurrent credit course; and
5. A substantively similar course or program approved by the Division of Elementary and Secondary Education (DESE).

Students in grades seven through twelve (7-12) who take accelerated learning courses or other courses approved for weighted credit by the Division of Elementary and Secondary Education (DESE) or the Division of Career and Technical Education (DCTE) shall be graded according to the following schedule:

A = 100 – 90

B = 89 – 80

C = 79 – 70

D = 69 – 60

F = 59 and below

For the purpose of determining grade point averages, the numeric value of each letter grade shall be:

A = 5 points

B = 4 points

C = 3 points

D = 2 point

F = 0 points

For a student to be eligible to receive weighted credit for an AP, or IB course:

- The course must be taught by an Arkansas licensed teacher who has received the appropriate training required by the appropriate accrediting organization; and
- The student takes the applicable AP or IB examination after completing the entire course. Credit shall be given for each grading period during the course of the year, but shall be retroactively removed from a student's grade for any course in which the student fails to take the applicable exam. Students who do not take the applicable exam shall receive the same numeric value for the grade the student receives in the course as if it were a non-AP or IB course.²

DESE shall approve additional courses, including other accelerated learning courses, for weighted credit if the course:

- a. Exceeds the curriculum standards for a non-weighted credit class;
- b. Meets or exceeds the standards of a comparable accelerated learning course; or
- c. Is identified by DESE as an honors class.

For career and technical education courses taken after July 1, 2023, career and technical courses that are eligible for weighted credit are those career and technical education courses that:

- Exceed the curriculum standards for a non-weighted class; and
- Lead to an approved industry-recognized certification or concurrent credit.

A student shall receive weighted credit for each approved career and technical education course upon the student:

- o Completing the relevant career and technical pathway; and

- o Earning the high-value industry credential aligned with the career and technical pathway.

A student who transfers into the district will be given weighted credit for the accelerated learning courses and other courses approved by DESE and DCTE for weighted credit that were taken for weighted credit at the student's previous school(s) according to the preceding scale.

Legal References: DESE Rules Governing Grading and Course Credit

A.C.A. § 6-15-902

A.C.A. § 6-16-1201 et seq.

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

5.22—College Courses

A ninth (9th) through twelfth (12th) grade student who successfully completes a college course(s) from an institution of higher education (IHE) approved by the Division of Higher Education (DESE) shall be given credit toward high school grades and graduation at the rate of one (1) high school credit for each three (3) semester hours of college credit.

A student who takes a three (3) semester hour remedial/developmental education course shall receive a half (1/2) credit for a high school career focus elective. The remedial/developmental education course cannot be used to meet core subject area/unit requirements.

Students will retain credit, including any weighted credit, earned as a concurrent credit course or as a dual enrollment course that was applied to a student's transcript from a previously attended, accredited, public school.

Concurrent Credit Courses

A student's participation in the concurrent high school and college credit program must be either:

1. Documented by a written agreement between:
 - The student;
 - The student's parent(s), legal guardian(s), person(s) standing in loco parentis to the student, or person(s) having lawful control of the student if the student is under the age of eighteen (18);
 - The District; and

- The publicly supported community college, technical college, four-year college or university, or private IHE the student attends to take the concurrent credit course; or
- 2. Taken through the Arkansas Course Choice Program.

While students are ultimately responsible for having the transcript for the concurrent credit course(s) they've taken sent to their school in order to receive credit for the course(s), the District shall work with the IHE(s) to establish a process for the District to receive student transcripts. Credit for concurrent credit courses will not be given until a transcript is received. Students may not receive credit for the course(s) they took or the credit may be delayed if the transcripts are not received at all or in a timely manner; this may jeopardize students' eligibility for extracurricular activities; graduation or awarding of a diploma of merit or a diploma of distinction.

A student or a student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student shall not be responsible for tuition, fees, or materials for participation in a concurrent credit course.

The District shall work with the IHE to ensure that a student receives any accommodations for a concurrent credit course that are required by the student's Individual Education Program (IEP) or 504 Plan.

Dual Enrollment Courses

Dual enrollment courses are college courses that are:

- Taken at an IHE the District does not have an agreement with;
- Taken at an IHE the District has an agreement with but are beyond the number of courses a student is allowed to take per year under the agreement with the IHE;
- Taken at an IHE the District has an agreement with but is a course offered by the IHE that is outside of the course list included in the agreement with the IHE; or
- Not taken through the Arkansas Course Choice Program.

Unless approved by the school's counselor, **prior to enrolling for the course**, dual enrollment courses shall be applied toward the student's graduation requirements as an elective.

Students are responsible for having the transcript for the dual enrollment course(s) they've taken sent to their school in order to receive credit for the course(s). Credit for dual enrollment courses will not be given until a transcript is received. Students may not receive credit for the course(s) they took or the credit may be delayed if the transcripts are not received at all or in a timely manner; this may jeopardize students' eligibility for extracurricular activities; graduation or awarding of a diploma of merit or a diploma of distinction.

A student or a student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to the student are solely responsible for tuition, fees, or materials for participation in a dual enrollment course.

The student's parent, legal guardian, person standing in loco parentis to the student, or the person having lawful control of the student or the student if the student is eighteen (18) years of age or older are responsible for working with the IHE to ensure that the student receives any necessary accommodations for a dual enrollment course.

Cross Reference: 4.59—ACADEMIC COURSE ATTENDANCE BY PRIVATE SCHOOL AND HOME SCHOOLED STUDENTS

Legal References: A.C.A. § 6-15-902(c)(1)
A.C.A. § 6-16-1201 et seq.
A.C.A. § 6-18-232
DESE Rules Governing Grading and Course Credit

Date Adopted: 6/4/2026

Last Revised: 6/4/2026

5.26—ALTERNATIVE LEARNING ENVIRONMENTS

The District shall provide an eligible alternative learning environment (ALE) for each eligible ALE student enrolled in a District school. The ALE shall be part of an intervention program designed to provide guidance, counseling, and academic support to students who are experiencing emotional, social, or academic problems. Placement of a student in an ALE **shall not** be punitive in nature.

The superintendent or designee shall appoint an Alternative Education Placement Team which shall have the responsibility of determining student placement in the ALE. A student may be enrolled in an ALE only on the referral of the Alternative Education Placement Team. The team's placement decision is final and may not be appealed.¹

The team is to be comprised of the following:

- a school counselor from the referring school;
- the ALE administrator and/or ALE teacher;
- the building principal or assistant principal from the referring school;
- a parent, legal guardian, person having lawful control of the student, or person standing in loco parentis (if they choose to participate);
 - o The District shall document its efforts to contact the student's parent, legal guardian, person having lawful control of the student, or person standing in loco parentis to schedule a meeting or a phone call for a placement meeting at the convenience of the parent, legal guardian, person having lawful control of the student, or person standing in loco

parentis, and maintain such documentation in the student's Student Action Plan (SAP).

- LEA special education/504 representative (if applicable);
- at least one (1) of the student's regular classroom teacher(s); and
- if the District so chooses, the student.

Students who are placed in the ALE shall exhibit at least two (2) of the following characteristics:

1. Ongoing, persistent lack of attaining proficiency levels in literacy and mathematics;
2. Abuse: physical, mental, or sexual;
3. Frequent relocation of residency;
4. Homelessness;
5. Inadequate emotional support;
6. Mental/physical health problems;
7. Pregnancy;
8. Being a single parent;
9. Personal or family problems or situations;
10. Recurring absenteeism;
11. Dropping out from school; or
12. Disruptive behavior.

Before or upon entry into the ALE, the ALE program shall assess the student in order to provide intervention services designed to address the student's specific educational and behavioral needs, with the focus for behavioral needs on long-term improvement of the student's ability to control the student's behavior.

No later than five (5) school days after a student begins alternative education interventions, the Alternative Education Placement Team shall develop a signed agreement between the ALE; the parent, legal guardian, person having lawful control of the student, or person standing in loco parentis (if they choose to participate); and the student, outlining the responsibility of the ALE; parent, legal guardian, person having lawful control of the student, or person standing in loco parentis; and the student to provide assurance that the plan for each student is successful.

No later than one (1) week after a student begins alternative education interventions, the Alternative Education Placement Team shall assess the student's current functioning abilities and all relevant social, emotional, academic, career, and behavioral information and develop an SAP outlining the intervention services to be provided to the student. The SAP may be revised from time to time by the ALE placement team. The SAP shall contain at a minimum:

- a. A plan of intervention services to be provided to address the student's specific educational needs and, if appropriate, the student's behavioral needs;
- b. Goals and objectives necessary to achieve positive reintegration into the regular educational environment;

- c. Exit criteria on which to base a student's return to the regular educational environment;
- d. Documentation of the presence of the characteristics listed above that were the reason for the student's referral to the ALE program;
- e. Documentation of the specific ALE programming and supports that will address each identified characteristic or situation causing a barrier to the student's success; and
- f. A positive behavior or transitional plan prior to a student's return to the regular educational environment.

The district's ALE program shall follow class size, staffing, curriculum, and expenditure requirements identified in the Division of Elementary and Secondary Education (DESE) Rules.

Legal References: A.C.A. § 6-20-2305(b)(2)

A.C.A. § 6-48-101 et seq.

DESE Rules Governing Student Special Needs Funding – 3.01, 4.00, and 8.0

DESE Rules Governing Student Discipline and School Safety

Date Adopted: 12/10/2007

Last Revised: 9/1/2026

5.26.1—ALE PROGRAM EVALUATION

The ALE program shall be evaluated at least annually to determine its overall effectiveness at providing a non-punitive environment that is conducive to learning, that eliminates traditional barriers to learning, and at compliance with the Division of Elementary and Secondary Education Rules Governing Student Special Needs Funding. The evaluation shall specifically address how the use of ALE funds is in alignment with the district's district strategic plan in addressing identified achievement gaps and student performance deficiencies.

Legal References: A.C.A. § 6-15-2914

DESE Rules Governing Student Special Needs Funding

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

6.4—VOLUNTEERS

Enlisting the support of volunteers is a way the District can expand the scope of resources and knowledge available to enrich the students' educational experiences, while strengthening the relationship between the school and the community.

Volunteers can also perform non-instructional tasks that allow licensed personnel more time to devote to instruction.

The Superintendent shall be responsible for establishing and maintaining a program to coordinate the services volunteers are willing and able to contribute with the needs of District personnel. The program shall establish guidelines to ensure volunteers are aware of pertinent District policies and rules. Volunteers who violate school policies or rules, or knowingly allow students to violate school rules, may be asked to leave the school campus. The guidelines should also include a provision for evaluation of the volunteer program and a method for soliciting suggestions from both the volunteers and staff for its improvement.

All volunteers who intend to act as head coaches or assistant coaches must:

1. Be at least twenty-two (22) years of age; and
2. Meet the requirements adopted by the Arkansas Activities Association (AAA) to volunteer for any athletics program for grades seven (7) through twelve (12).

A member of the board of directors of the District or the spouse of a member of the board of directors of the District may not be a registered volunteer for the District unless a majority of the disinterested members of the Board of Directors approves a resolution for the board member or board member's spouse to be a registered volunteer. The resolution approving the board member or board member's spouse to be a registered volunteer shall be effective for only one (1) school year.

A volunteer may act as a head coach in all varsity junior and senior high sports administered by the AAA except in the following sports:

- Football;
- Basketball; and
- Track and field.

Background Checks for Volunteers

For the purposes of this policy, "clear background check" means that:

- o A background check was performed on the potential school volunteer in accordance with A.C.A. §§ 12-12-1601 et seq.;
- o The potential school volunteer has not committed any of the crimes or offenses contained in A.C.A. §§ 6-17-410, 6-17-411 or 6-17-414 according to both the National and Arkansas background checks;

- o The potential school volunteer's name was not found on the Child Abuse Central Registry; and
- o The Arkansas Educator Licensure System does not indicate the potential volunteer to:
 - Have a currently suspended or revoked educator's license; or
 - Be the recipient of a current Level 3 or Level 4 public notification of ethics violation.

A person wishing to volunteer in a capacity that requires a background check may not perform volunteer services requiring a background check until a clear background check is received by the District. Once received, a clear background check is good for 5 years¹; a background check renewal must be applied for and a clear background check received prior to the time of renewal or an interruption of permitted volunteer service could occur. A clear background check will be accepted of any individual wishing to volunteer provided it was conducted within the timeframe provided for in this policy.

Option B: The Application for an initial background check may be made through the District administrative office. The District will incur the fee charged by the State of Arkansas for performing the initial check and any renewal checks.²

A person who failed a previous background check may petition the Board for a waiver from this policy's requirement. The petition shall be accompanied by a signed authorization for disclosure of the individual's entire criminal and child abuse registry history. In deciding whether to grant a waiver, the board may take into consideration: the circumstance or circumstances surrounding the act or omission that lead to the conviction, Child Abuse Registry true finding, or the receipt of the Level 3 or Level 4 Public Notification of Ethics Violation; the age of the person at the time of the act or omission; the length of time that has passed without reoffending; and other relevant circumstances. If the Superintendent recommends a waiver be granted, the Board may adopt a resolution by majority vote providing an exception to this policy's requirement for a time period not to exceed five (5) years. The board must consider this matter in open session, and may not confer or deliberate in closed or executive session.

The board shall not have the authority to waive the application of this policy to any potential volunteer who is a Registered Sex Offender or whose educator license has been revoked or is currently suspended.

Clear background checks for school volunteers are required for those individuals who are required to be or who seek to become Registered Volunteers, as defined in A.C.A. § 6-22-102 et seq.³ In addition to volunteers wishing to participate in the registered volunteers program, clear background checks are required for:⁴

School volunteers who wish to accompany students on overnight school trips.³

School volunteers who wish to volunteer to work one-on-one or in small groups of five (5) or fewer students, such as a tutor or a mentor.³

School volunteers who will volunteer to assist with any athletic programs.^{3,6}

No information relating to the application for or receipt of a criminal background check, including that a background check has or has not been applied for, shall be subject to disclosure under the Arkansas Freedom of Information Act, as provided by A.C.A. §§ 12-12-1601 et seq. Requests for background checks and reports on background checks obtained under this policy shall be retained by the district for a minimum of three (3) years.

The superintendent or a third-party vendor shall report to the state board the name of any person working as a registered volunteer in an athletic coaching capacity who:

1. Has pleaded guilty or nolo contendere to or has been found guilty of any felony or misdemeanor listed in A.C.A. § 6-17-410(b);
2. Has been arrested or charged with any felony or misdemeanor listed in A.C.A. § 6-17-410(b);
3. Has intentionally compromised the validity or security of any student test or testing program administered or required by the Division of Elementary and Secondary Education (DESE);
4. Has knowingly submitted falsified information or failed to submit information requested or required by law to DESE, the State Board, or Arkansas Legislative Audit; or
5. Has a true report in the Child Maltreatment Central Registry.

The District shall maintain the following information on volunteers:

- a. The total number, location, and duties of all volunteers;
- b. The total number of annual hours of service provided by volunteers; and
- c. Any reimbursements made to volunteers for expenses, transportation, or other costs incurred in connection with volunteer services.

Volunteers who are mandated reporters will be made aware of their status as mandated reporters of child maltreatment and will receive training on the responsibilities of a mandated reporter.⁷

Registered volunteers who will be working with students in an athletic coaching capacity or are in the process of obtaining a coaching certificate through the

Arkansas Activities Association shall be informed that they are bound by the Code of Ethics for Arkansas Educators and shall receive training on the Code of Ethics.

At least once every three (3) years, registered volunteer coaches shall receive training related to the recognition and management of concussions, dehydration, or other health emergencies; students' health and safety issues related to environmental issues; communicable diseases; and sudden cardiac arrest. The training may include a component on best practices for a coach to educate parents of students involved in athletics on sports safety. Registered volunteer coaches shall maintain a Basic Life Support certification in cardiopulmonary resuscitation and automated external defibrillation.

Legal References: A.C.A. §§ 6-17-301

A.C.A. § 6-17-410

A.C.A. § 6-17-411

A.C.A. 6-17-414

A.C.A. § 6-17-428

A.C.A. § 6-18-110

A.C.A. § 6-18-708

A.C.A. § 6-22-101 et seq.

A.C.A. §§ 12-12-1601 et seq.

A.C.A. § 12-18-402

A.C.A. § 12-18-909(g)(21)

A.C.A. § 21-13-101 et seq.

Division of Elementary and Secondary Education Rules Governing
Background Checks

Division of Elementary and Secondary Education Rules Governing
the Code of Ethics for Arkansas Educators

Date Adopted: 7/17/2025

Last Revised: 7/17/2025

PARENT/LEGAL GUARDIAN MEDIA RECORDING RELEASE FOR STUDENTS

I, _____, Parent/Legal Guardian of _____ (student's name), hereby grant permission to the Arkansas Department of Education (ADE) to use the above-named student's photo, video, and likeness for promotional purposes by the ADE in all manners, including, but not limited to: news releases, photographs, video, audio, website, and other electronic or printed published media. I agree that these images and/or voice recordings may be used for a variety of purposes without further notifying me. I understand the ADE shall not use any of the student's personally identifying information, except for the student's first name, the school that he/she attends, and the student's grade, without first obtaining my express permission. The ADE has my permission for this use until I submit written revocation of my permission to the ADE Communications Office at Four Capitol Mall, Room 404-A, Little Rock, AR 72201, ADE.Communications@Arkansas.gov, or you may call 501-682-2155. I understand the ADE does not have control over a third party who retrieves my student's information published by the ADE and uses it without my permission. I agree to hold the ADE harmless for such misuse of my student's information.

Parent/Legal Guardian Name

Parent/Legal Guardian Signature

Date

4.13F—OBJECTION TO PUBLICATION OF DIRECTORY INFORMATION

(Not to be filed if the parent/student has no objection)

I, the undersigned, being a parent of a student, or a student eighteen (18) years of age or older, hereby note my objection to the disclosure or publication by the Alpena School District of directory information, as defined in Policy No. 4.13 (Privacy of Students' Records), concerning the student named below.

I understand that the participation by the below-named student in any interscholastic activity, including athletics and school clubs, may make the publication of some directory information unavoidable, and the publication of such information in other forms, such as telephone directories, church directories, etc., is not within the control of the District.

I understand that this form must be filed with the office of the appropriate building principal within ten (10) school days from the beginning of the current school year or the date the student is enrolled for school in order for the District to be bound by this objection. Failure to file this form within that time is a specific grant of permission to publish such information.

I object and wish to deny the disclosure or publication of directory information as follows:

Deny disclosure to military recruiters_____

Deny disclosure to institutions of post-secondary education_____

Deny disclosure to potential employers_____

Deny disclosure to all public and school sources_____

Selecting this option will prohibit the release of directory information to the three categories listed above along with all other public sources (such as newspapers), **AND** result in the student's directory information **not** being included in the school's yearbook and other school publications.

Deny disclosure to all public sources_____

Selecting this option will prohibit the release of directory information to the first three categories listed above along with all other public sources (such as newspapers), but permit the student's directory information **to be included** in the school's yearbook and other school publications.

Name of student (Printed)

Signature of parent (or student, if 18 or older)

Date form was filed (To be filled in by office personnel)

4.29F—STUDENT ELECTRONIC DEVICE and INTERNET USE AGREEMENT

Student's Name (Please Print) _____ Grade Level _____

School _____ Date _____

The Alpena School District agrees to allow the student identified above ("Student") to use the district's technology to access the Internet under the following terms and conditions which apply whether the access is through a District or student owned electronic device (as used in this Agreement, "electronic device" means anything that can be used to transmit or capture images, sound, or data):

1. Conditional Privilege: The Student's use of the district's access to the Internet is a privilege conditioned on the Student's abiding to this agreement. No student may use the district's access to the Internet whether through a District or student owned electronic device unless the Student and his/her parent or guardian have read and signed this agreement.

2. Acceptable Use: The Student agrees that he/she will use the District's Internet access for educational purposes only. In using the Internet, the Student agrees to obey all federal laws and regulations and any state laws and rules. The Student also agrees to abide by any Internet use rules instituted at the Student's school or class, whether those rules are written or oral.

3. Penalties for Improper Use: If the Student violates this agreement and misuses the Internet, the Student shall be subject to disciplinary action. Penalties for a violation of this policy may vary according to the severity of the violation and the level to which a device, the network, or the educational process have been or could be disrupted.

First Offense

Minimum: *Restricted computer resource access for 1 week and student must submit to the principal or the principal's designee an acceptable 250 word essay explaining (a) what the student did wrong with technology, (b) how the student will avoid such actions in the future, and (c) a description of appropriate educational uses of technology. (*Restricted computer resource access will allow a student to logon to district computers with access to resources required for classwork as determined by the principal or principal's designee. Teachers may request access to additional resources as needed.)

Maximum: OSS with recommendation for Expulsion

Second Offense

Minimum: Restricted access for 9 weeks, detention, parent notification.

Maximum: Loss of computer access, or OSS with recommendation for Expulsion

Third Offense

Minimum: Restricted access for remainder of the school year, 1 day ISS, parent notification.

4. "Misuse of the District's access to the Internet" includes, but is not limited to, the following:

- a. using the Internet for other than educational purposes;
- b. gaining intentional access or maintaining access to materials which are "harmful to minors" as defined by Arkansas law;
- c. using the Internet for any illegal activity, including computer hacking and copyright or intellectual property law violations;
- d. making unauthorized copies of computer software;
- e. accessing "chat lines" unless authorized by the instructor for a class activity directly supervised by a staff member;
- f. using abusive or profane language in private messages on the system; or using the system to harass, insult, or verbally attack others;
- g. posting anonymous messages on the system;
- h. using encryption software;
- i. wasteful use of limited resources provided by the school including paper;
- j. causing congestion of the network through lengthy downloads of files;
- k. vandalizing data of another user;

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- l. obtaining or sending information which could be used to make destructive devices such as guns, weapons, bombs, explosives, or fireworks;
- m. gaining or attempting to gain unauthorized access to resources or files;
- n. identifying oneself with another person's name or password or using an account or password of another user without proper authorization;
- o. invading the privacy of individuals;
- p. divulging personally identifying information about himself/herself or anyone else either on the Internet or in an email unless it is a necessary and integral part of the student's academic endeavor. Personally identifying information includes full names, address, and phone number.
- q. using the network for financial or commercial gain without district permission;
- r. theft or vandalism of data, equipment, or intellectual property;
- s. attempting to gain access or gaining access to student records, grades, or files;
- t. introducing a virus to, or otherwise improperly tampering with the system;
- u. degrading or disrupting equipment or system performance;
- v. creating a web page or associating a web page with the school or school district without proper authorization;
- w. providing access to the District's Internet Access to unauthorized individuals;
- x. failing to obey school or classroom Internet use rules; or
- y. taking part in any activity related to Internet use which creates a clear and present danger of the substantial disruption of the orderly operation of the district or any of its schools.
- z. Installing or downloading software on district computers without prior approval of the technology director or his/her designee.

5. Liability for debts: Students and their cosigners shall be liable for any and all costs (debts) incurred through the student's use of the computers or access to the Internet including penalties for copyright violations.

6. No Expectation of Privacy: The Student and parent/guardian signing below agree that if the Student uses the Internet through the District's access, that the Student waives any right to privacy the Student may have for such use. The Student and the parent/guardian agree that the district may monitor the Student's use of the District's Internet Access and may also examine all system activities the Student participates in, including but not limited to e-mail, voice, and video transmissions, to ensure proper use of the system. The District may share such transmissions with the Student's parents/guardians.

7. No Guarantees: The District will make good faith efforts to protect children from improper or harmful matter which may be on the Internet. At the same time, in signing this agreement, the parent and Student recognize that the District makes no guarantees about preventing improper access to such materials on the part of the Student.

8. Signatures: We, the persons who have signed below, have read this agreement and agree to be bound by the terms and conditions of this agreement.

Student's Signature: _____ Date _____

Parent/Legal Guardian Signature: _____ Date _____

4.35F—MEDICATION ADMINISTRATION CONSENT FORM

Student's Name (Please Print) _____

This form is good for school year _____. This consent form must be updated anytime the student's medication order changes and renewed each year and/or anytime a student changes schools.

Medications, including those for self-, must be in the original container and be properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, its possible side effects, and any other pertinent instructions (such as special storage requirements) or warnings.

I hereby authorize the school nurse or his/her designee to administer the following medications to my child.

Name(s) of medication(s) _____

Name of physician or dentist (if applicable) _____

Dosage _____

Instructions for administering the medication _____

Other instructions _____

I hereby authorize _____ to administer the above medication to my student in the unavailability of the school nurse at school in accordance with the above medication administration instructions.

I authorize the school nurse to take a photograph of my student to be used to verify my student's identification before the school nurse or an authorized individual administers medications to my student

I acknowledge that the District, its Board of Directors, and its employees shall be immune from civil liability for damages resulting from the administration of medications in accordance with this consent form.

Parent or legal guardian signature _____

Date _____

Last Revised: 4/06/2018

4.35F2—MEDICATION SELF-ADMINISTRATION CONSENT FORM

Student's Name (Please Print) _____

This form is good for school year _____. This consent form must be updated anytime the student's medication order changes and renewed each year and/or anytime a student changes schools.

The following must be provided for the student to be eligible to self-administer rescue inhalers and/or auto-injectable epinephrine. Eligibility is **only** valid for this school for the current academic year.

- a written statement from a licensed health-care provider who has prescriptive privileges that he/she has prescribed the rescue inhaler and/or auto-injectable epinephrine for the student and that the student needs to carry the medication on his/her person due to a medical condition;
- the specific medications prescribed for the student;
- an individualized health care plan developed by the prescribing health-care provider containing the treatment plan for managing asthma and/or anaphylaxis episodes of the student and for medication use by the student during school hours; and
- a statement from the prescribing health-care provider that the student possesses the skill and responsibility necessary to use and administer the asthma inhaler and/or auto-injectable epinephrine.

If the school nurse is available, the student shall demonstrate his/her skill level in using the rescue inhalers and/or auto-injectable epinephrine to the nurse.

Rescue inhalers and/or auto-injectable epinephrine for a student's self-administration shall be supplied by the student's parent or guardian and be in the original container properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, its possible side effects, and any other pertinent instructions (such as special storage requirements) or warnings. Students who self-carry a rescue inhaler or an epinephrine auto-injector shall also provide the school nurse with a rescue inhaler or an epinephrine auto-injector to be used in emergency situations.

My signature below is an acknowledgment that I understand that the District, its Board of Directors, and its employees shall be immune from civil liability for injury resulting from the self-administration of medications by the student named above.

Parent or legal guardian signature _____

Date _____

Last Revised: 4/06/18

4.35F3—GLUCAGON ADMINISTRATION AND CARRY CONSENT FORM

Student's Name (Please Print) _____

This form is good for school year _____. This consent form must be updated anytime the student's medication order changes and renewed each year and/or anytime a student changes schools.

The school has developed a Section 504 plan acknowledging that my child has been diagnosed as suffering from diabetes. The 504 plan authorizes the school nurse or, in the absence of the nurse, trained volunteer district personnel, to administer Glucagon in an emergency situation to my child.

I hereby authorize the school nurse or, in the absence of the nurse, trained volunteer district personnel designated as care providers, to administer Glucagon to my child in an emergency situation. Glucagon shall be supplied to the school nurse by the student's parent or guardian and be in the original container properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, its possible side effects, and any other pertinent instructions (such as special storage requirements) or warnings.

I acknowledge that the District, its Board of Directors, its employees, or an agent of the District, including a healthcare professional who trained volunteer school personnel designated as care providers shall not be liable for any damages resulting from his/her actions or inactions in the administration of Glucagon in accordance with this consent form and the 504 plan.

Parent or legal guardian signature _____

Date _____

Last Revised: 4/06/18

4.35F4—EPINEPHRINE EMERGENCY ADMINISTRATION CONSENT FORM

Student's Name (Please Print) _____

This form is good for school year _____. This consent form must be updated anytime the student's medication order changes and renewed each year and/or anytime a student changes schools.

My child has an IHP that provides for the administration of epinephrine in emergency situations. I hereby authorize the school nurse or other school employee certified to administer auto-injectable epinephrine in emergency situations when he/she believes my child is having a life-threatening anaphylactic reaction.

The medication must be in the original container and be properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, its possible side effects, and any other pertinent instructions (such as special storage requirements) or warnings.

Date of physician's order _____

Circumstances under which Epinephrine may be administered _____

Other instructions _____

I acknowledge that the District, its Board of Directors, and its employees shall be immune from civil liability for damages resulting from the administration of auto-injector epinephrine in accordance with this consent form, District policy, and Arkansas law.

Parent or legal guardian signature _____

Date _____

Last Revised: 7/15/2019

4.35F5—ALBUTEROL EMERGENCY ADMINISTRATION CONSENT FORM

Student's Name (Please Print) _____

This form is good for school year _____. This consent form must be updated anytime the student's medication order changes and renewed each year and/or anytime a student changes schools.

My child has an IHP that provides for the administration of albuterol in emergency situations. I hereby authorize the school nurse or other school employee certified to administer albuterol to administer albuterol in emergency situations when he/she believes my child is in perceived respiratory distress.

The medication must be in the original container and be properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, its possible side effects, and any other pertinent instructions (such as special storage requirements) or warnings.

Date of physician's order _____

Circumstances under which albuterol may be administered _____

Other instructions _____

I acknowledge that the District, its Board of Directors, and its employees shall be immune from civil liability for damages resulting from the administration of albuterol in accordance with this consent form, District policy, and Arkansas law.

Parent or legal guardian signature _____

Date _____

Date Adopted: 7/15/19

Last Revised: 7/15/19

4.35F6—STRESS AND EMERGENCY DOSE MEDICATION ADMINISTRATION CONSENT FORM

Student's Name (Please Print) _____

This form is good for school year _____. This consent form must be updated anytime the student's medication order changes and renewed each year and/or anytime a student changes schools.

The school has developed an individual health plan (IHP) acknowledging that my child has been diagnosed as suffering from adrenal insufficiency. The IHP authorizes the school nurse to administer a stress or emergency dose medication to my child in an emergency situation.

Date of physician's order _____

Circumstances under which the stress or emergency dose medication may be administered

Other instructions _____

In the absence of the nurse, trained volunteer district personnel may administer a stress dose or emergency dose medication to my child in an emergency situation.

I hereby authorize the school nurse to administer a stress or emergency dose medication to my child, or, in the absence of the nurse, trained volunteer district personnel designated as care providers, to administer the stress or emergency dose medication to my child in an emergency situation. I will supply the stress or emergency dose medication to the school nurse in the original container properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, possible side effects, and any other pertinent instructions (such as special storage requirements) or warnings.

I acknowledge that the District, its Board of Directors, its employees, or an agent of the District, including a healthcare professional who trained volunteer school personnel designated as care providers shall not be liable for any damages resulting from his/her actions or inactions in the administration of the stress or emergency dose medication in accordance with this consent form and the IHP.

Parent or legal guardian signature _____ Date _____

Date Adopted:6/21/21

Last Revised:6/21/21

4.35F7—STRESS DOSE MEDICATION SELF-ADMINISTRATION CONSENT FORM

Student's Name (Please Print) _____

This form is good for school year _____. This consent form must be updated anytime the student's medication order changes and renewed each year and/or anytime a student changes schools.

The following must be provided for the student to be eligible to self-administer a stress dose medication. Eligibility is **only** valid for this school for the current academic year.

- a written statement from a licensed health-care provider who has prescriptive privileges that he/she has prescribed the stress dose medication for the student and that the student needs to carry the medication on his/her person due to a medical condition;
- the specific medications prescribed for the student;
- an individualized health care plan developed by the prescribing health-care provider containing the treatment plan for managing adrenal insufficiency of the student and for medication use by the student during school hours; and
- A statement from the prescribing health-care provider that the student:
 - o Possesses the skill and responsibility necessary to use and administer the stress dose medication; and
 - o Has been instructed on the details of his or her medical condition and the events that may lead to an adrenal crisis.

If the school nurse is available, the student shall demonstrate his/her skill level in administering the stress dose medication to the nurse.

Stress dose medication for a student's self-administration shall be supplied by the student's parent or guardian and be in the original container properly labeled with the student's name, the ordering provider's name, the name of the medication, the dosage, frequency, and instructions for the administration of the medication (including times). Additional information accompanying the medication shall state the purpose for the medication, its possible side effects, and any other pertinent instructions (such as special storage requirements) or warnings.

Students who self-carry stress dose medication shall also provide the school nurse with a dose of the stress dose medication to be used in emergency situations.

I understand this form authorizes my student to possess and use the medication included on this form while on school grounds and at school sponsored events but that distribution of the medication included on this form to other students may lead to disciplinary action against my student.

My signature below is an acknowledgment that I understand that the District, its Board of Directors, and its employees shall be immune from civil liability for injury resulting from the self-administration of medications by the student named above.

Parent or legal guardian signature _____ Date _____

Date Adopted: 6/21/21

Last Revised: 6/21/21

4.41F—OBJECTION TO PHYSICAL EXAMINATIONS OR SCREENINGS

I, the undersigned, being a parent or guardian of a student, or a student eighteen (18) years of age or older, hereby note my objection to the physical examination or screening of the student named below.

Physical examination or screening being objected to:

____ Vision test

____ Hearing test

____ Scoliosis test

____ Other, please specify

Non-emergency, invasive physical examination as defined in Policy 4.41

Comments: _____

Name of student (Printed)

Signature of parent (or student, if 18 or older)

Date form was filed (To be filled in by office personnel)

4.5F—SCHOOL CHOICE CAPACITY RESOLUTION

Whereas:

· The Board of Directors of the Alpena School District has approved by a vote of the Board, the following capacity resolution for school choice applicants for the Alpena school choice cycle under the provisions of policy 4.5—SCHOOL CHOICE and applicable Arkansas law.

· Applicants, whose applications meet the provisions of policy 4.5—SCHOOL CHOICE, will be sent a provisional acceptance notification letter which will give instructions on the necessary steps and timelines to enroll in the District or a District school other than the student's assigned school. Provisional acceptance shall be determined, and notice provided, within fifteen (15) calendar days and shall be based on the district's available capacity for each academic program, class, grade level, and individual school. While provisional rejections shall be provided within fifteen (15) days of the receipt of the school choice application, the District shall finalize all rejections by July 1 to account for any changes in capacity between the day the application is received and the end of the school year.

· Applications will not be accepted if the applications:

- Are received, electronically timestamped, or postmarked before January 1, unless the application is from a student who is transferring under Uniformed Service Member Dependent School Choice;
- Are received, electronically timestamped, or postmarked after June 1, unless the application is postmarked before June 1 or is from a student who is transferring under Uniformed Service Member Dependent School Choice;
- Are from a student whose resident district has been determined by the Division of Elementary and Secondary Education to be exempt due to an existing desegregation order; or
- ⊖—The student is transferring under Uniformed Service Member Dependent School Choice and the application is not accompanied by relevant documentation.

· The district reserves to itself the ability to determine, based on an examination of student records obtained from the student's assigned school or the student's prior district, and other information, whether any student would require a different class, course or courses, program of instruction, or special services than originally applied for. If such an examination determines that capacity has been reached in the appropriate class, course or program of instruction, or that additional teaching staff would have to be hired for the applicant, the District shall rescind the original provisional acceptance letter and deny the Choice transfer for that student.

· The district reserves to itself the ability to decline to accept under school choice any student whose acceptance would require the district to add additional staff to exceed the maximum student to teacher ratio in any of the District's current grade, program, or building capacity.

THEREFORE, let it be resolved that these shall constitute the School Choice openings at the beginning of the School Choice enrollment period for the Alpena school-choice cycle:

Board President

Board Secretary

Date

Date

4.5F2 --SCHOOL CHOICE PROVISIONAL ACCEPTANCE LETTER

Dear Parent's name,

The application you submitted for student's name has been provisionally accepted. While the Alpena School District looks forward to welcoming student's name as a student, to further the application process and to better assist the district in determining the proper placement of student's name, please submit the information listed below to Alpena School District by August 1. Failure to submit the information requested by the date specified shall void and nullify this letter's provisional acceptance. In addition to the information you submit, records may be requested from the student's current district/school, and final acceptance may depend on the content of those records as to appropriate grade placement, program placement or services required. A student who has not previously attended an Arkansas public school or did not attend an Arkansas public school in the previous academic year may be evaluated by the district prior to final acceptance, and the results of that evaluation could impact final acceptance.

1. For students applying to enroll in first grade or higher: a copy of the student's transcript from the school where the student is currently enrolled. The student's permanent record, including the original transcript, will be requested from the school immediately following the student's actual enrollment in our district.
2. Proof of the student's age; This can be a 1) birth certificate; 2) A statement by the local registrar or a county recorder certifying the child's date of birth; 3) An attested baptismal certificate; 4) A passport; 5) An affidavit of the date and place of birth by the child's parent or guardian; 6) United States military identification; or 7) Previous school records.
3. The student's health care needs at school.
4. Student's name age appropriate immunization record or an exemption granted for the previous school-year and a statement of whether or not the parent is intending to continue the exemption for the upcoming school year.

After reviewing the submitted documentation the District will determine if the applicant meets the District's capacity standards and notify you of its decision by July 1.

Respectfully,

Insert name

Insert position/title

4.5F3—SCHOOL CHOICE ACCEPTANCE LETTER

Dear Parent's name,

I am pleased to inform you that the application you submitted for student's name has been accepted pending enrollment of student's name by August 1, however, failure to enroll student's name by this date will render this offer of acceptance null and void.

I look forward to welcoming student's name as part of the Alpena School District.

Once your child has enrolled in school with us this coming school-year, student's name will be eligible to continue enrollment in the district until completing high school or is beyond the legal age of enrollment provided the student meets the applicable statutory and District policy requirements all other District students must meet (with the exception of residency in the District) to continue District enrollment. This information is contained in the student handbook.

Respectfully,

Insert name

Insert position/title

4.5F4--SCHOOL CHOICE REJECTION LETTER

Dear *Parent's Name*,

I am sorry, but the application you submitted for *Student's Name* has been rejected for the following reason(s):

_____ Your child's resident district has been determined by the Division of Elementary and Secondary Education to be exempt from the provisions of the School Choice Law due to it being under an enforceable desegregation order/plan.

_____ Your child does not meet the openings identified for the coming school year identified in the Board of Directors Resolution adopted on *insert date* due to the District having a lack of capacity by having reached at least ninety-five percent (95%) of the maximum teacher-to-student ratio in your student's grade, program, or building that is allowed under the Standards for Accreditation; State law and rules; or Federal law and regulations.

As noted in your original application, you have ten (10) days from receipt of this notice in which to submit a written appeal of this decision to the State Board of Education.

Respectfully,

Insert name

Insert position/title

5.6F—REQUEST FOR RECONSIDERATION OF INSTRUCTIONAL OR SUPPLEMENTAL MATERIALS

Name _____

Date submitted: _____ level one _____ level two _____ level three _____

Instructional material being contested _____

Reasons for contesting the material (be specific): _____

What is your proposed resolution? _____

Signature of receiving principal _____

Signature of curriculum coordinator _____

Signature of Superintendent _____

5.6F2—STUDENT OPT OUT OF INSTRUCTION, EVENT, OR ACTIVITY REGARDING SEX ED, SEXUAL ORIENTATION, OR GENDER IDENTITY

Parent's Name: _____

Student's Name: _____

I have reviewed the list of curricula, materials, tests, surveys, questionnaires, activities, and instruction of any kind regarding sex ed, sexual orientation, or gender identity and wish for my student to be excused from the following regarding sex ed, sexual orientation, or gender identity:

I understand that I may not opt my student out of curricula, materials, tests, surveys, questionnaires, activities, and instruction of any kind related to sex ed, sexual orientation, or gender identity if the curriculum, material, test, survey, questionnaire, activity, or instruction of any kind is directly related to a requirement under the Arkansas academic standards; a District employee responding to questions posed by students during class regarding sex education, sexual orientation, or gender identity as it relates to a topic of instruction; or a District employee refers to the sexual orientation or gender identity of a historical person, group, or public figure when such information provides necessary context in relation to a topic of instruction.

I understand that in order for my excused student to not be penalized for grading purposes due to my student being excused from the above instruction, instructional materials, events, or activities that my student must satisfactorily perform alternative lessons related to health.

Parent's Signature: _____ Date: _____

Date Adopted: 6/21/21

5.7F—REQUEST FOR FORMAL RECONSIDERATION FORM

Name: _____

Date submitted: _____

Media Center material being contested: _____

Reasons for contesting the material. (Be specific about why you believe the material does not meet the selection criteria listed in policy 5.7—Selection of Instructional and Library/Media Center Materials):

What is your proposed resolution?

Signature of receiving principal _____

Signature of Superintendent (if appealed) _____

5.20F1—PERMISSION TO DISPLAY PHOTO OF STUDENT ON WEB SITE

I hereby grant permission to the Alpena School District to display the photograph or video clip of me/my student (if student is under the age of eighteen {18}) on the District's website, including any page on the site, or in other District publications without further notice. I also grant the Alpena School District the right to edit the photograph or video clip at its discretion.

The student's first name and first initial of his/her last name may be used in conjunction with the photograph or video clip. It is understood, however, that once the photograph or video clip is displayed on a web site, the District has no control over how the photograph or video clip is used or misused by persons with computers accessing the District's website.

I (we) agree to defend and hold harmless the members of the Alpena School Board, the Alpena School District, its officers, employees, agents, successors and assignees from and against any and all claims and liabilities resulting from displaying my/my student's photograph or video clip.

Name of student (Printed) _____

Signature of student (only necessary if student is over 18) _____

Signature of Parent (required if student is under 18) _____

Date _____

5.20F2—PERMISSION TO DISPLAY STUDENT INFORMATION ON WEB SITE

I hereby grant permission to the Alpena School District to display my/my student's name (if student is under the age of eighteen {18})

It is understood, however, that once the information is displayed on a web site, the District has no control over how the information is used or misused by persons with computers accessing the District's website.

I (we) agree to defend and hold harmless the members of the Alpena School Board, the Alpena School District, its officers, employees, agents, successors and assignees from and against any and all claims and liabilities resulting from displaying my/my student's specified information.

Name of student (Printed) _____

Signature of student (only necessary if student is over 18) _____

Signature of Parent (required if student is under 18) _____

Date _____

5.24F1—OBJECTION TO PARTICIPATION IN SURVEYS, ANALYSIS, OR EVALUATIONS

I, the undersigned, being a parent or guardian of a student, or a student eighteen (18) years of age or older, hereby note my objection to participation by the student named below in the following survey, analysis, or evaluation.

I choose not to have my student participate in the following survey, analysis, or evaluation.

Name of specific survey _____

____ All surveys

Name of Student (Printed) _____

Signature of parent (or student if 18 or older) _____

Date form was filed (to be filled in by office personnel) _____

5.24F2—PERMISSION TO PARTICIPATE IN A SURVEY, ANALYSIS, OR EVALUATION

I, the undersigned, being a parent or guardian of a student, or a student eighteen (18) years of age or older, hereby grant my permission for the student named below to participate in the following survey, analysis, or evaluation.

Name of specific survey _____

Name of student (printed) _____

Signature of parent (or student if 18 or older) _____

Date form was filed (to be filled in by office personnel) _____

4.56.2F— HOME SCHOOLED STUDENTS' LETTER OF INTENT TO PARTICIPATE IN AN EXTRACURRICULAR ACTIVITY

Student's Name (Please Print) _____

Parent or Guardian's Resident Address

Street _____ Apartment _____

City _____ State _____ Zip Code _____

Student's date of birth __/__/__ _ Last grade level the student completed _____

Student has demonstrated academic eligibility by obtaining a verifiable minimum test score of the 30th percentile or better in the previous 12 months on the Stanford Achievement Test Series, Tenth Edition, or another nationally recognized norm-referenced test approved by the State Board of Education. _____

Name of test, Date taken, and score achieved _____

Extracurricular activity (ies) the student requests to participate in

Course(s) the student requests to take at the school _____

Proof of identity _____

Date Submitted __/__/__

Parent's Signature _____

Date Adopted: 5/21/2015

Last Revised: 5/21/2015

4.42F—HANDBOOK FORM

Receipt of Handbook/Policies Form Alpena School District

We, the undersigned, have received or have access online to the Alpena High School Student Handbook for the 2026-2027 school year which includes the following:

- Disciplinary Policies
- Attendance Policies
- Smart Core Curriculum Policies
- Required Course of Study for Graduation Policies
- Bullying Policies

Student Name PRINTED

Student Signature

Date

Parent/Guardian Name PRINTED

Parent Signature

Date

***This form must be completed and returned to the school office within seven days of the receipt of the Student Handbook.**

Acknowledgement of receipt of these policies is required by the Arkansas Department of Education.